University Disentanglement

Toward a Theory of University Governance

Seth C. Oranburg[1]

Abstract

As universities face mounting pressure to divest from controversial industries and navigate evolving legal standards, their lack of a coherent governance framework exposes them to significant risks that corporations, with established governance theories, can better mitigate. This Article argues that universities' distinctive and under-theorized nature as business entities leads to legal and ethical ambiguities, particularly in "university disentanglement"—the process of deciding whether to sever financial or operational ties with entities or ideas conflicting with institutional values. Without a structured approach to such critical decision-making, universities are left vulnerable to heightened business risks, elevated agency costs, and substantial legal liabilities.

To address this challenge, the Article proposes a business law framework for university governance focused on four key imperatives: (1) developing a theoretical model (the ethical governance matrix) that addresses universities' unique business characteristics, (2) adapting fiduciary duties to balance mission-driven goals with financial realities, (3) standardizing ethical practices to mitigate legal and reputational risks, and (4) reducing agency and transaction costs associated with decentralized decision-making. By offering legal and historical analysis—including detailed analysis and application of the matrix to eight case studies—the Article shows how adopting this framework can transform university governance, enabling institutions to align their decision-making with their social mission and expand their economic influence through innovative strategies like crowdfunding.

By integrating universities into the broader legal scholarship on business entities, this Article fills a critical gap in business law theory. It provides a structured approach to help universities meet the dual demands of social responsibility and financial stability, offering

---

[1] Professor of Law, University of New Hampshire Franklin Pierce School of Law; Director, Program on Organizations, Business, and Markets at NYU's Classical Liberal Institute. I extend my sincere thanks to Zachary M. Leininger (JD expected 2026) and Joe Mohler (JD expected 2025) for their invaluable assistance with cite-checking and research support. Their meticulous work has greatly contributed to the development of this Article.

a roadmap for legal reforms that can better accommodate the complex nature of non-corporate governance.

Keywords

University Governance; Disentanglement; Divestment; Ethical Decision-Making; Utilitarianism; Deontological Ethics; Virtue Ethics; Rawlsian Justice; Social Responsibility; Higher Education; Moral Philosophy; Financial Ethics; Institutional Autonomy; Corporate Governance; Sustainability; Human Rights; Climate Change; Ethical Investments; Public Trust; Academic Leadership

JEL Codes

K22; K32; L31; M14; Q56; A22; I23.

Abstract 1
Keywords 2
JEL Codes 2
I. Introduction 8
II. The Matrix of University Disentanglement as Analytical Framework 12
A. Why Traditional Governance Models Fall Short 12
B. How the Matrix Solves the Governance Puzzle 13
C. The Matrix as an Innovative Organizational Governance Tool 13
D. Lexicon 14
E. The Matrix of University Disentanglement 15
F. Why the Matrix Is Necessary 15
G. The Two Axes of the Matrix 15
1. Boycott vs. Divestiture 16
2. Perspectives vs. Identities 16
H. Four Quadrants of University Disentanglement 17
1. Boycott Based on Perspectives: Ideological Rejection 17
2. Boycott Based on Identities: Identity Exclusion 17
3. Divestiture Based on Perspectives: "Principled disengagement" 17
4. Divestiture Based on Identities: "Identity-Alignment Withdrawal" 18
I. Integrating Business Law Principles with Ethical and Moral Imperatives 18
J. Overview of the University Disentanglement Framework 19
III. Eight Historical Examples of University Disentanglement 20
A. Vietnam War Protests – Ideological Rejection 20
1. Nature of the Protests 21
2. Application of the Matrix 21
3. Ethical vs. Moral Considerations 22
4. Impact on Universities 22
5. Analysis 23
B. Anti-Jewish Quotas – Identity Exclusion 23

1. Nature of the Boycott 23
2. Application of the Matrix 24
3. Ethical vs. Moral Considerations 24
4. Impact on Universities 24
5. Analysis 25
C. LGBTQ Faculty and Students Boycott – Identity Exclusion 25
1. Nature of the Boycott 25
2. Application of the Matrix 26
3. Ethical vs. Moral Considerations 26
4. Impact on Universities 27
5. Analysis 27
D. South Africa Apartheid Divestment – Principled Disengagement 27
1. The Nature of the Campaign 28
2. Application of the Matrix 28
3. Ethical vs. Moral Considerations 29
4. Impact on Universities 29
5. Analysis 30
E. Fossil Fuel Divestment Movement – Principled Disengagement 30
1. Nature of the Campaign 30
2. Application of the Matrix 31
3. Ethical vs. Moral Considerations 31
4. Impact on Universities 32
5. Analysis 32
F. Boycott, Divest, Sanction Movement – Identity-Alignment Withdrawal 33
1. The Nature of the Campaign 33
2. Application of the Matrix 34
3. Ethical vs. Moral Considerations 34
4. Impact on Universities 35
5. Analysis 35

G. McCarthy Era Purges (1950s): From Ideological Rejection to Identity-Based Exclusion 36
1. The Descent into Identity-Based Purge 36
2. Application of the Matrix: Perspective vs. Identity 37
3. Ethical vs. Moral Considerations 38
4. Impact on Universities 38
5. Conclusion: Setting the Stage for Modern Analysis 38
H. Summary of Historical Examples 39
IV. Contemporary University Reactions to Disentanglement Demands 40
A. The Spark: October 7, 2023 42
B. The Powder: University Responses to October 7 44
1. Harvard University 45
2. University of Pennsylvania 49
3. University of Chicago 53
4. Columbia University 56
5. UCLA 61
6. Cornell University 64
7. MIT 67
8. Stanford University 71
9. Princeton University 75
10. NYU 78
11. Georgetown University 82
12. University of New Hampshire 86
C. Summary of Key Findings from Case Study 89
D. Consistency as a Key Determinant 91
E. The Challenges of Utilitarianism 92
F. Mixed Approaches Yield Mixed Results 92
G. Normative Implications for University Governance 92
V. Normative Foundations of University Disentanglement 93
A. Introduction to Normative Theories in Disentanglement 93

B. Utilitarianism and Consequentialism 93
C. Deontological Ethics and Duty-Bound Decisions 95
1. Duty vs. Consequence in Disentanglement Decisions 96
2. Moral Absolutism and Institutional Integrity 97
3. A Duty-Based Framework for University Governance 97
D. Virtue Ethics and Institutional Character 98
1. Integrity and Moral Consistency 99
2. Courage in the Face of Opposition 99
3. Justice and Fairness in Institutional Decisions 100
4. Wisdom in Navigating Complex Moral Terrain 101
5. Cultivating Institutional Virtue 101
E. Rawlsian Justice and Institutional Fairness 102
1. The "Veil of Ignorance" and University Decision-Making 103
2. Distributive Justice and the Allocation of Resources 103
3. Fairness in Academic and Administrative Governance 104
4. Rawlsian Justice as a Guide for Institutional Ethics 105
F. The Tension Between Autonomy and Social Responsibility 105
1. Autonomy as a Core Institutional Value 106
2. Social Responsibility as Moral Imperative 106
3. Navigating the Tension: Autonomy in Service of Social Responsibility 107
4. The Limits of Autonomy 108
5. A New Framework for Ethical University Autonomy 108
G. Moral Legitimacy and Public Accountability 109
1. The Importance of Public Accountability 110
2. Moral Leadership in a Global Context 111
3. The Risks of Failing Public Expectations 111
4. A Framework for Building Moral Legitimacy 112
H. Summary of Moral Philosophy of Disentanglement 112
VI. Conclusion 113

I. Introduction

Universities in the United States have long faced pressure to sever ties with controversial industries, individuals, and ideologies.[2] These pressures, spanning decades, have placed institutions at the center of ethical and political debates, forcing them to navigate the complex challenges of balancing financial interests with social responsibilities.[3] Yet, unlike corporations that benefit from established governance frameworks, universities lack a coherent theory to guide such critical decision-making.[4] This missing "theory of the university" creates significant legal, ethical, and operational challenges,[5] leaving institutions vulnerable to governance failures[6] and eroding public trust.[7]

This paper addresses the governance gap by proposing a structured approach to university decision-making that recognizes universities as unique business entities requiring their own theoretical framework. It introduces the "Matrix of University Disentanglement," a model designed to guide institutions through complex decisions about whether to sever financial, operational, or ideological ties. By focusing on key governance challenges—such as balancing fiduciary duties with mission-driven goals, standardizing ethical practices to mitigate legal risks, and reducing agency costs associated with decentralized decision-making—this paper lays the groundwork for developing a comprehensive theory of the university.

Through in-depth analysis of historical case studies analyzing how universities responded to eight different calls for disentanglement,[8] and through detailed analysis of how twelve universities responded to recent calls to divest from Israel,[9] this Article demonstrates how universities have incurred substantial legal liabilities and severe reputational harm by

---

[2] Cary Nelson, NO UNIVERSITY IS AN ISLAND: SAVING ACADEMIC FREEDOM, 35-37 (2010) (tracing the history of divestment movements and other pressures on university decision-making).
[3] *See infra* Part III (discussing case studies that demonstrate the application of the matrix to guide universities through various governance challenges).
[4] Derek Bok, HIGHER LEARNING, 42-43 (1986) (discussing the absence of a unified model for university governance compared to corporate governance frameworks).
[5] Joan W. Scott, *Knowledge,* POWER, AND ACADEMIC FREEDOM, 57-60 (2008) (discussing various governance issues in higher education related to legal compliance, ethical expectations, and organizational dynamics).
[6] Richard R. Nelson & Sidney G. Winter, AN EVOLUTIONARY THEORY OF ECONOMIC CHANGE, 44-45 (1982) (explaining how the absence of theoretical frameworks can hinder organizational decision-making and adaptation).
[7] Cass R. Sunstein, *Social Norms and Social Roles* in Eric A. Posner, LAW AND ECONOMICS, 142, 145 (2000) (examining how institutions, including universities, can shape and are shaped by changing social norms and the impact of failing to meet public expectations).
[8] See *infra* Part III.
[9] See *infra* Part IV.

failing to apply consistent, principles frameworks to crucial governance decisions. With these twenty scenarios in mind as illustrations, this Article then connects those facts to philosophical theories that offer foundations and frameworks for consistent approaches to future calls for disentanglement.[10] The Article thus demonstrates how the matrix can provide a consistent framework for navigating the ethical, financial, and social dimensions of university governance.[11]

The enduring nature of these governance challenges is evident throughout modern history, with universities repeatedly facing pressure to divest from contentious industries and individuals. This paper analyzes and applies its Matrix of University Disentanglement to illuminate the ethical frameworks employed in some of the most controversial university decision of the past century, including: Jewish quotas in the early 20th century;[12] LGBTQ exclusion in the 1940s;[13] anti-Communist purges during the McCarthy era;[14] protests against investments linked to the Vietnam War in the 1960s and 1970s;[15] and anti-apartheid divestment campaigns in the 1980s.[16] These issues have persisted across generations. More recently, demands for fossil fuel divestment,[17] calls for academic

[10] See *infra* Part V.
[11] See *infra* Part VI.
[12] Valerie Strauss, *A Brief History of Antisemitism in U.S. Higher Education*, *THE WASHINGTON POST* (Nov. 13, 2023), https://www.washingtonpost.com/education/2023/11/13/how-restricting-jews-created-modern-college-admissions/(discussing the establishment of Jewish quotas at elite institutions in the early 20th century to limit the number of Jewish students admitted).
[13] Margaret A. Nash & Jennifer A. R. Silverman, *An Indelible Mark: Gay Purges in Higher Education in the 1940s*, 75 J. HIST. SOC. 98, 104 (2010) (documenting exclusionary policies targeting LGBTQ faculty and students at universities during the mid-20th century).
[14] Alison D. Graham, *The Legacy of Vietnam War Protests on American College Campuses*, 54 AM. J. HIST. EDUC. 375, 379 (2018) (highlighting the impact of Vietnam War protests on university divestment decisions and ethical challenges).
[15] Alison D. Graham, *The Legacy of Vietnam War Protests on American College Campuses*, 54 AM. J. HIST. EDUC. 375, 379 (2018) (highlighting the impact of Vietnam War protests on university divestment decisions and ethical challenges).
[16] John Dugard, *Divestment from South Africa and the Role of Universities in Apartheid*, 42 INT'L & COMP. L.Q. 155, 160 (1988) (explaining the pressure on universities to divest from companies involved in South Africa's apartheid regime during the 1980s).
[17] Richard W. Painter, *Fiduciary Duty and Fossil Fuel Divestment*, 16 N.Y.U. J. L. & BUS. 159, 160 (2019) (discussing the rise of the fossil fuel divestment movement in higher education, with universities like Stanford, Harvard, and the University of California leading the trend in response to climate change activism).

boycotts of Israeli faculty,[18] and controversies over "cancel culture"[19] have continued to place universities at the center of ethical and political conflicts. Indeed, disentanglement challenges are currently playing out in real time, as university leadership struggles to respond contemporary, conflicting demands regarding the ongoing Israel-Hamas War and the emerging Israel-Hezbollah War.[20]

By examining these pivotal moments, this paper illustrates the systemic nature of the governance problems universities encounter, underscoring the need for a consistent framework to guide decision-making in response to evolving social expectations and demonstrating a critical gap in the existing understanding of a theory of the university.

While some theories about the role and mission of universities exist in the literature, such as the "Triple Helix" model[21] from innovation studies—which emphasizes the relationship between universities, industry, and government for innovation and economic development—these frameworks do not address the governance challenges that universities face. The Triple Helix and similar models focus on the university's role in economic and social change, but they lack the necessary legal and organizational dimensions to guide decision-making and fiduciary responsibilities. Furthermore, the legal literature on university governance is rather thin,[22] often focusing narrowly on compliance issues or specific areas like Title IX, without offering a broader theoretical model for governance. This paper seeks to fill that gap by proposing a framework that integrates governance principles with business law concepts, offering a structured approach to guide universities through their unique ethical, legal, and operational challenges.

This paper represents an inductive step toward building a comprehensive theory of the university by beginning with concrete governance challenges that universities face and

---

[18] Cary Nelson & Gabriel Brahm, THE CASE AGAINST ACADEMIC BOYCOTTS OF ISRAEL, 23-25 (2015) (examining the controversies surrounding the BDS movement in higher education and the ethical and governance dilemmas it presents for universities); Omar Barghouti, BDS: BOYCOTT, DIVESTMENT, SANCTIONS – THE GLOBAL STRUGGLE FOR PALESTINIAN RIGHTS, 78-81 (2011) (arguing that the BDS movement represents a legitimate form of nonviolent resistance aimed at addressing human rights violations and ethical concerns associated with corporate and institutional complicity in Israel's policies).

[19] Jonathan Haidt & Greg Lukianoff, THE CODDLING OF THE AMERICAN MIND: HOW GOOD INTENTIONS AND BAD IDEAS ARE SETTING UP A GENERATION FOR FAILURE, 79-80 (2018) (examining how "cancel culture" controversies on university campuses reflect broader societal debates over free speech and ideological conformity).

[20] See *infra* Part IV.

[21] The "Triple Helix" model was developed by Henry Etzkowitz and Loet Leydesdorff in the 1990s and focuses on the interactions between universities, industry, and government to foster innovation and economic development. See Henry Etzkowitz & Loet Leydesdorff, THE TRIPLE HELIX: UNIVERSITY-INDUSTRY-GOVERNMENT RELATIONS: A LABORATORY FOR KNOWLEDGE-BASED ECONOMIC DEVELOPMENT (1995). While influential in the fields of innovation studies and sociology of science, the model does not engage with governance or legal principles that are central to the challenges faced by universities in areas such as fiduciary duties and decision-making.

[22] Robert O'Neil, ACADEMIC FREEDOM IN THE WIRED WORLD, 23-25 (2008) (noting the limited focus of higher education law on governance as compared to compliance).

using them to inform a broader theoretical framework. By addressing specific issues—such as fiduciary duties, ethical decision-making, and agency costs—this paper aims to turn the "unknown unknown" of the missing theory into a "known unknown," setting the stage for further theoretical development. It does not claim to resolve an entire governance framework in a single paper; rather, this Article seeks to start at the heart of the matter by addressing some of the most pressing governance challenges in higher education today, particularly in a time of crisis when public trust in universities is at risk.[23]

Building on this foundation, the "Matrix of University Disentanglement" serves as a practical tool to guide universities through complex decisions about whether to sever financial, operational, or ideological ties. The matrix categorizes these decisions along two key dimensions: the mode of disentanglement (boycott or divestment) and the basis for action (perspective or identity).[24] By systematically addressing these dimensions, the framework offers a structured approach to navigating ethical, legal, and financial considerations. It equips universities to reconcile their dual roles as educational institutions and financial stewards, enabling more consistent governance practices that align mission-driven goals with fiduciary obligations. In doing so, the matrix helps bridge a critical gap in business law scholarship regarding the governance of non-corporate entities.

The paper is organized into six parts. This Part I presented the context of university disentanglement and established the need for a theory of the university that provides guidance when institutions faced pressure to sever ties with controversial industries, individuals, or ideologies. Part II introduces the "Matrix of University Disentanglement" as an analytical framework that meets this need and explains its two key dimensions. Part III presents eight historical disentanglement scenarios that illustrate the complexities of these governance decisions and demonstrate the matrix's practical application. Part IV zooms in to the present disentanglement conundrum by providing detailed facts regarding how twelve universities responded to very recent calls to disentangle from Israel and/or the Palestinian cause, and this Part IV analyzes how unprincipled or situational decision making caused substantial legal liability and severe reputational harm. Part V explores the moral and ethical considerations underpinning university decision-making, providing a philosophical perspective on the matrix's implications and offering a methodology for principled decision making. Finally, Part VI concludes with recommendations on how universities can align their actions with ethical obligations while maintaining financial

---

[23] Jeffrey M. Jones, *Confidence in U.S. Higher Education Down Since 2015*, GALLUP (July 17, 2018), https://news.gallup.com/poll/237240/confidence-higher-education-down-2015.aspx (reporting on declining public confidence in higher education institutions in recent years).

[24] Cf. Henry Mintzberg, STRUCTURE IN FIVES: DESIGNING EFFECTIVE ORGANIZATIONS, 42-45 (1983) (discussing how organizational structures can adapt to different types of decisions).

stability and public accountability. Through this analysis, the paper advances the understanding of non-corporate governance and offers a path forward for legal reforms that accommodate the unique nature of universities as complex business entities.

Ultimately, this paper seeks to lay the groundwork for a broader conversation about the governance of universities as unique business entities. By addressing some of the most pressing ethical and operational challenges through the lens of business law, it aims to spark further scholarly efforts to develop a comprehensive theory of the university. The Matrix of University Disentanglement is presented not as the final answer but as an essential starting point—one that provides immediate practical guidance while paving the way for future theoretical advancements.

II. The Matrix of University Disentanglement as Analytical Framework

Universities face a distinctive set of governance challenges, especially when considering whether to sever financial or operational ties with entities or practices that conflict with their values. These challenges are compounded by the absence of a unified framework to guide ethical decision-making, leading to heightened business risks, elevated agency costs, and legal uncertainties. Existing governance models, particularly those adapted from corporate contexts such as shareholder primacy, are insufficient for addressing the unique complexities of universities. Unlike corporations, universities must balance not only financial objectives but also social and ethical responsibilities, as well as public expectations.

To navigate these multifaceted demands, universities require a tool specifically designed to integrate the various dimensions of their decision-making process. This Article introduces the "Matrix of University Disentanglement" as that tool—a structured framework capable of accounting for the financial, ethical, legal, and reputational factors that universities must consider when making disentanglement decisions. By systematically weighing these elements, the matrix helps universities make consistent and legally defensible choices while addressing the specific needs of educational institutions.

A. Why Traditional Governance Models Fall Short

Traditional governance tools used in corporate decision-making, such as cost-benefit analysis and risk management frameworks, typically prioritize financial outcomes above all else. While these approaches are effective in corporate settings where shareholder interests dominate, they do not fully accommodate the broader public mission of universities or the complex ethical landscape in which these institutions operate. For

instance, divestment decisions at universities often involve balancing financial impacts against moral obligations to address social injustices, something that standard corporate governance frameworks do not adequately capture.

The Matrix of University Disentanglement addresses these limitations by offering a multi-faceted approach that integrates not only financial considerations but also ethical and social dimensions. This holistic framework ensures that universities can evaluate their decisions in a way that aligns with their dual role as both economic actors and moral leaders. In doing so, the matrix fills a critical gap in existing governance models, bringing business law principles into the realm of university decision-making.

B. How the Matrix Solves the Governance Puzzle

The Matrix of University Disentanglement serves as a practical tool that provides a structured approach to complex decision-making scenarios. For example, when considering divestment from a controversial industry, the matrix allows university leaders to systematically evaluate factors such as financial risk, ethical imperatives, stakeholder opinions, and potential legal liabilities. By laying out these considerations in a structured format, the matrix guides decision-makers through the various trade-offs, helping them arrive at a conclusion that is not only ethically sound but also legally defensible.

Furthermore, the matrix's adaptability makes it suitable for a wide range of disentanglement scenarios, whether the issue at hand involves financial investments, partnerships, or affiliations with external entities. Its flexibility allows universities to tailor the framework to specific circumstances while maintaining a consistent approach to governance. This ensures that decision-making processes are transparent, structured, and aligned with both institutional values and legal obligations.

C. The Matrix as an Innovative Organizational Governance Tool

The introduction of the Matrix of University Disentanglement represents a significant innovation in university governance. It extends beyond traditional business law principles by incorporating ethical considerations into the legal and financial analysis, offering a comprehensive framework that accommodates the unique nature of universities as business organizations.[25] The matrix enables universities to reduce agency costs, mitigate legal risks, and make governance decisions that uphold their social responsibilities while maintaining financial stability.

[25] *See* Clark Kerr, THE USES OF THE UNIVERSITY 100 (2001) ("Involvement in the life of society has grown greatly . . . How to serve the city, as the rural community has long been served, is now a perplexing problem for many campuses. New pressure groups are insisting that knowledge really be for 'everybody's sake.'")

By providing a tool that integrates these diverse factors, the Matrix of University Disentanglement not only addresses the shortcomings of existing governance models but also advances the understanding of how business law can be applied to non-corporate entities. In some cases, the demand is for universities to boycott certain ideologies or practices;[26] in others, the call is for divestiture from financially entangled entities.[27] In all four cases, the Matrix offers a roadmap for university leaders to navigate the increasingly complex demands of modern governance, helping them make decisions that are consistent, accountable, and aligned with the broader public good.

D. Lexicon

To clarify the distinction between ethics and morality within the framework of university governance, it is essential to define these terms as they pertain to institutional decision-making:

Ethics refers to the set of principles or guidelines that govern the behavior of individuals and institutions, often codified by external authorities,[28] such as professional standards, legal obligations, or organizational policies. In the context of universities, ethical considerations typically relate to institutional responsibilities, such as fiduciary duties to maintain financial health, adherence to compliance requirements, or obligations to stakeholders. Ethical decisions are systematic, rule-based, and grounded in established norms or expectations within specific professional or legal contexts. They often involve aligning conduct with clear standards to mitigate risks and uphold the institution's formal obligations.

Morality, on the other hand, encompasses the personal or collective principles of right and wrong, shaped by cultural, religious, or societal values.[29] While ethical decisions tend to be more codified and universally recognized, moral decisions are often abstract and situational, addressing deeper questions of justice, human rights, and identity. Morality operates at a more personal or communal level, often reflecting emotional, ideological, or philosophical convictions about what is considered just and fair. In university governance, moral considerations may drive decisions that go beyond mere compliance with rules to reflect a commitment to broader social values or causes.

---

[26] *See* discussion *infra* Part III (outlining historic examples of calls to boycott as well as to divest from companies based on discrimination or perceived harmful practices).
[27] *Id.*
[28] *Ethic – Definition*, MERRIAM-WEBSTER DICTIONARY, https://www.merriam-webster.com/dictionary/ethic (last visited Sept. 28, 2024).
[29] *The Definition of Morality*, STAN. ENCYCLOPEDIA PHIL. (Sept. 8, 2020), https://plato.stanford.edu/entries/morality-definition/

By understanding these distinctions, the Matrix of University Disentanglement can be used to assess both ethical obligations—such as compliance with fiduciary duties—and moral imperatives—such as acting in accordance with social justice principles. The matrix helps universities navigate the tension between rule-based ethical guidelines and the more fluid demands of moral leadership.

E. The Matrix of University Disentanglement

Universities face distinct governance challenges when deciding whether to sever ties with entities or practices that conflict with their values. Unlike corporate entities, which rely on established frameworks such as shareholder primacy to guide decision-making, universities must balance financial obligations with social and ethical responsibilities. Traditional governance tools, such as cost-benefit analysis and risk management frameworks, often prioritize financial outcomes, neglecting the broader ethical dimensions and reputational risks that universities must consider. These limitations create a need for a governance framework specifically tailored to address the complexities of university decision-making.

The **Matrix of University Disentanglement** addresses this gap by providing a structured approach that integrates traditional business law principles—such as fiduciary duties, risk management, and agency costs—with the unique ethical imperatives and social responsibilities that universities face. The matrix enables universities to systematically evaluate the financial, legal, and moral implications of their decisions. This approach allows institutions to navigate governance challenges in a manner that aligns both with business law standards and the institution's values.

F. Why the Matrix Is Necessary

Traditional business governance models, such as cost-benefit analysis, are insufficient for addressing the ethical and moral complexities unique to universities. While these models effectively manage financial risk and legal liability, they often fall short in guiding institutions through the nuances of social justice considerations, public accountability, and ideological opposition. The Matrix of University Disentanglement offers a holistic solution by combining the rigor of business law principles with the flexibility needed to incorporate ethical and moral considerations into governance decisions.

G. The Two Axes of the Matrix

The Matrix of University Disentanglement framework is designed around two key axes: **Boycott vs. Divestiture** and **Perspectives vs. Identities**. These axes capture the primary dimensions along which universities evaluate their decisions to sever ties or cease

collaboration with external entities, providing a structured approach to navigating the complex landscape of ethical and moral considerations.

1. Boycott vs. Divestiture

Boycott refers to the active refusal to engage, collaborate, or support specific individuals, organizations, or companies due to ideological opposition.[30] Boycotts are often motivated by calls to reject ideas, behaviors, or actions that conflict with the institution's ethical standards or moral principles. For universities, boycotting may involve ending relationships with companies involved in controversial practices, such as labor exploitation, or refusing to host speakers who espouse divisive ideologies.

Divestiture, on the other hand, involves the withdrawal of financial investments or severance of economic relationships with entities whose practices are deemed unethical or immoral.[31] Divestiture is a more financially direct response, often driven by public pressure or internal values aimed at ceasing monetary support for industries or organizations involved in practices such as fossil fuel extraction or arms manufacturing. It represents a tangible shift in financial strategy aligned with ethical or moral convictions.

2. Perspectives vs. Identities

Perspectives focus on ideas, corporate practices, or ideologies. [32] Universities may choose to boycott or divest based on the actions, behaviors, or stances that an entity represents, such as a corporation's involvement in war profiteering or contributing to environmental degradation. Decisions made along the perspectives axis reflect the institution's stance on specific practices or ideas rather than targeting an entity's inherent characteristics.[33]

Identities, by contrast, relate to intrinsic characteristics, such as nationality, religion, ethnicity, or race.[34] Universities may encounter pressure to disengage from affiliations with certain identity groups, countries, or organizations due to moral or political objections. [35] Decisions on this axis may involve significant ethical complexity, as disentangling based

---

[30] *Boycott – Definition*, MERRIAM- WEBSTER DICTIONARY, https://www.merriam-webster.com/dictionary/boycott (last visited Sept. 1, 2024).
[31] Laura E. Deeks, *Discourse and Duty: University Endowments, Fiduciary Duty, and the Cultural Politics of Fossil Fuel Divestment,* 47 Env't. Law, 335, 353 (2017).
[32] *Perspective – Definition*, MERRIAM-WEBSTER DICTIONARY, https://www.merriam-webster.com/dictionary/perspective (last visited Sept. 1, 2024).
[33] *See* discussion *infra* Part III.E. (exploring the calls for divestiture from companies engaged in the fossil fuel industry).
[34] *Identity – Definition*, MERRIAM-WEBSTER DICTIONARY, https://www.merriam-webster.com/dictionary/identity, (last visited Sept. 1, 2024).
[35] *See* discussion *infra* Part III.F. (exploring the anti-Israel BDS movement circa 2005).

on identity can raise questions of discrimination, justice, and the role of the institution in supporting or opposing broader sociopolitical movements.

H. Four Quadrants of University Disentanglement

These two axes create four quadrants, each representing a distinct type of university disentanglement.

1. Boycott Based on Perspectives: Ideological Rejection

This quadrant involves decisions to cease collaboration or support based on ideological or ethical opposition to an entity's ideas, actions, or corporate practices. Universities in this category refuse to engage with entities that represent controversial ideas or participate in practices contrary to the institution's values.

For example, a university may boycott a company involved in promoting harmful political lobbying or environmental destruction. Similarly, a decision to refuse speakers or partnerships with organizations that propagate discriminatory ideologies or anti-democratic principles would fall into this quadrant.

These decisions are grounded in a rejection of ideas and behaviors rather than individuals' or entities' inherent characteristics, making the ethical reasoning clearer in cases involving contested practices.

2. Boycott Based on Identities: Identity Exclusion

In this quadrant, a university's decision to boycott is based on the inherent characteristics of the individuals or organizations, such as nationality, race, religion, or other identity-based attributes. This form of disentanglement reflects broader political or moral objections related to identity-based policies.

For example, a university might choose to avoid hosting an event associated with a country that enforces discriminatory laws against marginalized groups, or it could refuse to collaborate with organizations connected to regimes that violate human rights.

Boycotts based on identities often raise challenging questions about fairness, justice, and the risk of discriminatory practices, leading to more complex ethical evaluations. Universities must weigh whether they are addressing institutional or systemic wrongs without unfairly targeting individuals based on immutable characteristics.

3. Divestiture Based on Perspectives: "Principled disengagement"

In this quadrant, universities divest from companies or industries based on opposition to their business practices or ideologies. The withdrawal of financial support reflects an

institution's stance on issues like environmental harm, labor exploitation, or political corruption.

Common examples include divestment from industries like fossil fuels, tobacco, or firearms manufacturing, where the university seeks to distance itself from business practices that conflict with its stated ethical or environmental goals.

Divestiture based on perspectives is often seen as a clear and direct way for universities to align their financial strategies with their ethical stances, reflecting a concrete disapproval of harmful corporate behaviors or ideologies.

4. Divestiture Based on Identities: "Identity-Alignment Withdrawal"

This quadrant represents the severance of financial ties due to the inherent identity-based characteristics of the entity in question. Universities may divest from corporations, countries, or organizations associated with controversial identity-related issues, such as nationality or race.

For example, A university may divest from companies operating in regions known for racial or religious persecution, or from entities tied to regimes that enact policies against specific identity groups.

Divesting based on identities involves complex moral judgments about collective responsibility, and it can sometimes be seen as controversial. Such decisions may be criticized as discriminatory or unjust unless grounded in clear, universally accepted principles of human rights or justice.

I. Integrating Business Law Principles with Ethical and Moral Imperatives

The Matrix of University Disentanglement integrates business law principles into ethical decision-making by incorporating concepts like fiduciary duties and risk management. By categorizing decisions along ethical and moral lines, it helps distinguish between two distinct approaches: **Principled Disengagement** and **Identity-Alignment Withdrawal**, offering a nuanced understanding of the challenges universities face when addressing demands for disentanglement.

Principled Disengagement, such as divestment from industries like fossil fuels or tobacco, is guided by institutional guidelines, fiduciary duties, and professional norms. These rule-based decisions often arise from ethical considerations, where corporate behavior conflicts with the institution's broader mission. In these cases, the matrix enables universities to align financial strategies with ethical obligations, ensuring that governance decisions adhere to established standards while mitigating risks associated with non-compliance or reputational harm.

In contrast, **Identity-Alignment Withdrawal** addresses decisions driven by moral imperatives tied to justice and identity. Divestments based on nationality, religion, or race often go beyond rule-based guidelines, placing universities in the midst of contentious political and social debates. Here, the matrix provides a structured approach to balance financial responsibilities with commitments to social justice and public accountability, guiding institutions through the complexities of identity-based decisions.

By systematically addressing both ethical (principled disengagement) and moral (identity-alignment) dimensions, the matrix ensures that governance decisions are not only financially sound but also ethically principled and morally defensible. This approach equips universities to navigate governance challenges in a way that aligns with business law standards and broader social responsibilities, offering a roadmap for principled action amid growing public and regulatory scrutiny.

J. Overview of the University Disentanglement Framework

The University Disentanglement Framework offers a practical tool for analyzing how universities have navigated ideological and identity-based disentanglements across different historical and contemporary contexts. By applying the framework, universities can better understand the motivations and consequences behind these decisions, and assess their alignment with the institution's values, legal obligations, and strategic goals.

The framework's four categories—**Ideological Rejection**, **Identity Exclusion**, **Principled Disengagement**, and **Identity-Aligned Withdrawal**—provide a basis for evaluating specific cases of boycott or divestment. For example, in applying the matrix, universities can assess whether divesting from fossil fuels constitutes a Principled Disengagement based on environmental perspectives, or whether refusing to host events connected with certain national governments aligns with Identity Exclusion driven by political or moral objections.

This application helps illuminate the broader ethical, social, and institutional implications of these decisions by providing structured criteria for evaluating the trade-offs involved. It supports university leaders in navigating the complexities of disengagement by guiding them in weighing ethical responsibilities against financial risks and reputational considerations.

University Disentanglement	*Basis of Disentanglement*	
	Perspective	Identity

Mode of Disentanglement	Boycott	Ideological Rejection	Identity Exclusion
	Divestment	Principled Disengagement	Identity-Aligned Withdrawal

Table 1. University Disentanglement Framework

The table serves as a reference for categorizing university actions, aiding in the analysis of different forms of disengagement to understand the decision-making processes and the ethical, social, and political challenges involved.

III. Eight Historical Examples of University Disentanglement

This Part illustrates the practical application of the Matrix of University Disentanglement by examining historical and contemporary case studies where universities faced significant pressure to sever ties with controversial industries, individuals, or ideologies. These cases, which span various decades and social movements, reveal the complexities and legal risks associated with governance decisions in higher education. From conflicts over war-related investments and civil rights issues to modern debates surrounding fossil fuel divestment and ideological disputes, these examples demonstrate how the absence of a coherent governance framework leaves universities vulnerable to inconsistent policies and reputational harm. By applying the matrix to these situations, this section seeks to provide a structured approach to understanding how universities can navigate ethical, financial, and legal challenges in alignment with their dual roles as educational institutions and financial stewards.

A. Vietnam War Protests – Ideological Rejection

The Vietnam War era was a period of intense student activism, particularly on university campuses, where opposition to U.S. involvement in the war was widespread.[36] The protests began in the mid-1960s and grew into a significant movement by the late 1960s and early 1970s, often targeting universities for their ties to companies that profited from the war effort, such as Dow Chemical and General Electric.[37] These companies were seen as war profiteers, manufacturing napalm and other materials used in military operations.

[36] *Vietnam: Growing War and Campus Protests Threaten Student Deferments*, 150 SCIENCE 1567, 1568 (1965) (exploring the uptick in denial of student deferments to the draft following extensive protests on college campuses).

[37] American Experience, *Protests and Backlash*, PBS, https://www.pbs.org/wgbh/americanexperience/features/two-days-in-october-student-antiwar-protests-and-backlash/ (exploring the Vietnam War protests on college campuses).

The protests culminated in sit-ins, strikes, and even violent confrontations, with student activists demanding that universities divest from and boycott these companies.[38]

1. Nature of the Protests

The protests on college campuses were primarily driven by ethical opposition to the war, rooted in a broader anti-imperialist and anti-war ideology.[39] Students, faculty, and even some administrators believed that universities should not be complicit in the war by supporting companies that contributed to the military-industrial complex. This resulted in calls for boycotts and divestment from those corporations. For example, Dow Chemical, which produced napalm, became a central target of the protests.[40] University students held sit-ins at Dow recruitment offices, disrupted career fairs, and demanded that universities end their relationships with these corporations.[41]

2. Application of the Matrix

The Vietnam War protests fit within the **Boycott/Perspectives** quadrant of the matrix. In this quadrant, universities are called upon to reject certain ideological perspectives or corporate practices, rather than targeting individuals or identity-based concerns. The student activists saw the war itself, and by extension the companies that profited from it, as ethically untenable.[42] The boycotts and protests were aimed at changing the universities' complicity in supporting the war effort through their investments and recruitment practices.[43] This case illustrates how **principled disengagement** can emerge from an ideological rejection of corporate behavior, rather than from issues related to identity or morality.

Unlike the identity-based targeting seen in the McCarthy era, the Vietnam protests were focused on **perspectives and practices**—in this case, the U.S. government's imperialist foreign policy and the corporations that enabled it. The moral imperative was to resist involvement in the war, and students believed that universities had a responsibility to stand in solidarity with those opposing the war, both ethically and ideologically. The protests also highlighted the growing expectation that universities, as public institutions,

---

[38] *Id.*
[39] *See* Steven Mintz, *From Draft Cards to Hashtags*, INSIDE HIGHER ED (Apr. 25, 2024), https://www.insidehighered.com/opinion/blogs/higher-ed-gamma/2024/04/25/protests-student-protests-vietnam-1960s-campus-higher-ed.
[40] *See, e.g., A Turning Point*, UNIV. WIS. MADISON, https://1967.wisc.edu/index.html (last visited Sept 28, 2024); *The University of Illinois in the Cold War Era 1945-1975: 1967 Protest-Sit-In against DOW Chemical*, UNIV. ILL. LIBGUIDES, https://guides.library.illinois.edu/c.php?g=348250&p=2350897 (last visited Sept. 28, 2024) (hereinafter Sin-In Against Dow).
[41] *See id.*
[42] Mintz, *supra* note 13.
[43] *Id.*

should align their actions with broader societal values and not simply focus on academic and financial interests.

3. Ethical vs. Moral Considerations

The protests against the Vietnam War represent an ethical challenge to universities. While the war itself was seen as a moral issue—one of imperialism, militarism, and human rights—the focus of the protests was primarily on the ethical implications of universities' financial ties to war-profiting corporations.[44] This case highlights the ethical responsibility universities face in aligning their investments and recruitment practices with their broader societal role. The moral question of whether the war was just was at the heart of the protests, but the ethical question was whether universities should continue to support companies that directly contributed to the war.

The protests also raised ethical dilemmas for university administrators. On one hand, maintaining relationships with companies like Dow Chemical provided financial and employment opportunities for students and faculty. On the other hand, continuing to support these companies risked compromising the university's integrity and standing with the anti-war movement. Ultimately, many universities chose to sever ties with war-profiting companies, illustrating the power of student-led ethical activism.

4. Impact on Universities

The Vietnam War protests had a profound and lasting impact on American universities. In addition to leading to divestment from war-profiting corporations, the protests also transformed universities into sites of political activism and social change.[45] The idea that universities should not merely be passive institutions, but should take active stances on moral and ethical issues, became a lasting legacy of the Vietnam War era. The protests also laid the groundwork for future divestment movements, such as those targeting apartheid in South Africa and fossil fuels in the 21st century.

Additionally, the Vietnam War protests highlighted the growing disconnect between university administrators and students, as administrators often prioritized financial

---

[44] Sit-In Against Dow, *supra* note 14; Alex Olson, *A Brief History of Protest and Divestment*, THE DAILY (May 10, 2024), https://www.dailyuw.com/opinion/a-brief-history-of-protest-and-divestment/article_f0bc07b4-0e92-11ef-83d2-9bf1a1dfcd3b.html.

[45] *See* Alison D. Graham, *The War in Vietnam*, PENN LIBRARIES (2007), https://archives.upenn.edu/exhibits/penn-history/global-engagement/international-crises/vietnam-war/ (discussing the impact of protests of the Vietnam War on college campuses, arguing that these are what the American college campus is most associated with).

stability over the ethical concerns raised by students.[46] This tension would continue to shape university governance in the decades that followed.

5. Analysis

The Vietnam War protests represent a clear case of **principled disengagement** in the **Boycott/Perspectives** quadrant of the matrix. The protests were driven by ideological opposition to corporate practices, rather than identity-based concerns, and they raised important ethical questions about the role of universities in society. By analyzing this case within the matrix, we can see how ethical boycotts can serve as powerful tools for challenging institutions to align their practices with broader moral and ethical concerns. The protests also illustrate the potential for student activism to drive significant institutional change, particularly in relation to universities' financial and ethical responsibilities.

B. Anti-Jewish Quotas – Identity Exclusion

In the early 20th century, many prestigious universities in the United States implemented formal or informal quotas to limit the admission of Jewish students.[47] This practice, particularly prominent at elite institutions like Harvard, Yale, and Princeton, was an identity-based form of boycott rooted in anti-Semitism.[48] These quotas sought to reduce the number of Jewish students in order to preserve the cultural and social character of these institutions, which were predominantly Protestant at the time.[49]

1. Nature of the Boycott

The anti-Jewish quotas were imposed in response to the growing number of Jewish immigrants, many of whom excelled academically and sought admission to elite universities.[50] These institutions, concerned about the "Jewish invasion," implemented quotas to cap Jewish enrollment, often around 10-15% of the student body.[51] The quotas

---

[46] *Id.*
[47] Valerie Strauss, *A Brief History of Antisemitism in U.S. Higher Education*, THE WASHINGTON POST (Nov. 13, 2023), https://www.washingtonpost.com/education/2023/11/13/how-restricting-jews-created-modern-college-admissions/.
[48] *See id.*
[49] *See id.* ("Columbia started to see Protestant students going to other schools because they did not like the changing culture at Columbia.").
[50] *See id.* ("The character of the campus began to change. Jewish boys were going to school not to participate in a cappella singing and fraternity pranks and intramural sports but to study hard and get a leg up, and this changed the culture in ways that were threatening to the gentry who had considered these schools their own playgrounds." (internal citations omitted)).
[51] *See* Stephen Steinberg, *How Jewish Quotas Began*, COMMENTARY (Sept. 1971), https://www.commentary.org/articles/stephen-steinberg/how-jewish-quotas-began/.

were justified by the notion that Jewish students, seen as socially and culturally distinct, would upset the traditional character of these universities.[52]

Unlike divestment movements that target corporations or nation-states, the anti-Jewish quotas directly boycotted individuals based on their religious and ethnic identity.[53] Universities rejected or limited Jewish students, not because of their academic abilities or perspectives, but because of their inherent identity. This form of boycott institutionalized anti-Semitism and reinforced discriminatory practices within higher education.

2. Application of the Matrix

The anti-Jewish quotas fall squarely into the **Boycott/Identities** quadrant. These actions were a direct boycott of individuals based solely on their ethnic and religious identity. Universities sought to maintain their social and cultural norms by excluding or limiting Jewish students, viewing their identity as incompatible with the institutions' elite, Protestant traditions.

This form of **moral disentanglement** highlights how universities historically used identity-based exclusions to maintain social hierarchies. The boycott of Jewish students was not about their political or ideological perspectives but about their ethnicity and religion, marking a clear instance of identity-based moral rejection.

3. Ethical vs. Moral Considerations

The anti-Jewish quotas present a clear case of **moral disentanglement**. These policies were rooted in a moral rejection of Jewish identity, framed as a threat to the cultural and religious values of elite institutions. Ethically, universities justified their actions as necessary to preserve institutional character and societal harmony, though these justifications were thinly veiled rationalizations of anti-Semitic prejudice. The moral dimension was tied to Jewish identity, casting it as inherently incompatible with the ethos of elite academia, reflecting broader societal xenophobia and exclusion.

4. Impact on Universities

The impact of anti-Jewish quotas was significant, both for Jewish students and for the universities themselves. Many talented Jewish students were either denied admission to elite universities or forced to attend less prestigious institutions.[54] This exclusion

---

[52] *See supra* note 13.
[53] *See id.*
[54] *See* Steinberg, *supra* note 15 (noting the drop in percentage of Jewish students at prestigious Ivy League universities).

reinforced broader societal anti-Semitism and perpetuated discriminatory norms within higher education.[55]

Over time, as societal attitudes shifted and legal frameworks evolved, these quotas were gradually dismantled.[56] However, the legacy of these policies is still felt today, as they represent a clear example of how universities have historically participated in and institutionalized identity-based discrimination.

5. Analysis

The anti-Jewish quotas of the early 20th century provide a stark example of identity-based boycott within higher education. This form of institutional exclusion was deeply rooted in the moral and social codes of the time, which sought to preserve the cultural homogeneity of elite universities. In the following section, we will explore another form of identity-based boycott: the exclusion of LGBTQ individuals in the mid-20th century.

C. LGBTQ Faculty and Students Boycott – Identity Exclusion

In the mid-20th century, LGBTQ faculty and students faced systematic exclusion from universities, reflecting deep institutional discrimination based on sexual orientation.[57] This exclusion was often enforced through formal policies and informal social pressures, with universities refusing to admit LGBTQ students or employ openly LGBTQ faculty due to moral and cultural opposition to their identity.[58]

1. Nature of the Boycott

LGBTQ individuals were frequently ostracized from academic environments under the guise of maintaining moral standards and preserving the reputation of universities.[59] LGBTQ professors were often fired or forced to resign if their sexual orientation became known, while LGBTQ students were either denied admission or forced into secrecy to avoid expulsion.[60] Universities, many of which were influenced by religious or conservative

---

[55] *See generally,* Deborah L. Coe & James D. Davidson, *The Origins of Legacy Admissions: A Sociological Explanation*, 52 REV. RELIGIOUS RSCH. 233 (2011).
[56] *See* Steinberg, *supra* note 15 (noting that while quotas were dismantled at least nominally, structures and admissions processes remain in place today that, while seemingly innocuous, may serve as fronts for discriminatory admissions practices).
[57] *See generally* Margaret A. Nash & Jennifer A. R. Silverman, *An Indellible Mark: Gay Purges in Higher Education in the 1940s*, 55 HIST. EDUC. Q. 441 (2015).
[58] *Id.*
[59] *Id.*
[60] *Id.*; *see also* Margaret A. Nash, *The Hidden History of Gay Purges in Colleges*, HUFFPOST (Dec. 11, 2016), https://www.huffpost.com/entry/the-hidden-history-of-gay_b_8760644.

values, viewed homosexuality as incompatible with their institutional identities and moral missions.[61]

This form of identity-based exclusion was fueled by the broader societal belief that LGBTQ individuals posed a threat to traditional values and morality.[62] Unlike the McCarthy-era exclusions that were based on political perspectives, the boycott of LGBTQ individuals focused exclusively on their identity, with no regard for their academic or intellectual contributions.[63]

2. Application of the Matrix

The LGBTQ boycott fits within the **Boycott/Identities** quadrant of the matrix, where exclusion is based on an individual's inherent identity rather than their perspectives or beliefs. Universities enacted this boycott under the pretext of preserving moral order and institutional reputation, categorizing LGBTQ individuals as incompatible with their academic communities.

This **moral disentanglement** targeted individuals for who they were, rather than what they thought or said, making it a clear case of identity-based exclusion. The justification for these policies was grounded in the belief that LGBTQ identities were inherently immoral, reflecting broader social prejudices at the time.

3. Ethical vs. Moral Considerations

In the case of LGBTQ faculty and students, the distinction between **moral** and **principled disengagement** is equally stark. Morally, universities regarded homosexuality as deviant and contrary to societal values, which led to exclusion and suppression.[64] Ethically, universities framed their actions as protective of institutional reputation and moral standards, drawing on religious or cultural values.[65] The exclusion of LGBTQ individuals was justified under the guise of institutional integrity, yet it was clearly an identity-based boycott reflecting moral objections to the existence of LGBTQ identities within academia.

---

[61] Nash & Silverman, *supra* note 21.
[62] *See id.* (discussing the fear at the state level of national security threats from gay employees who may have ties to communism, as well as university concerns for the reputation of the universities in question).
[63] *See* Nash, *supra* note 24 (discussing the case of a man who was a decorated war hero with high recommendations from military superiors who requested an accelerated degree prior to returning to the service for the Korean war who was denied likely due to his homosexuality).
[64] Nash & Silverman, *supra* note 21.
[65] *Id.*

4. Impact on Universities

The exclusion of LGBTQ individuals had significant consequences for both the individuals and the academic institutions. Many LGBTQ scholars were driven out of academia, while others were forced to hide their identities, leading to a culture of repression and fear within universities.[66] This exclusion stifled academic freedom and diversity, particularly in disciplines where the exploration of alternative perspectives could have enriched intellectual discourse.

The legacy of these exclusionary practices still resonates in academia today, as the LGBTQ rights movement has pushed for greater inclusion and representation within universities.[67] While modern universities have largely abandoned these policies, the historical exclusion of LGBTQ individuals remains a critical example of identity-based boycott in higher education.

5. Analysis

The systematic exclusion of LGBTQ faculty and students in the mid-20th century reflects another instance of identity-based boycott, where universities actively disentangled themselves from individuals based on their sexual orientation. This boycott was driven by moral opposition to LGBTQ identities and reinforced broader social prejudices.

D. South Africa Apartheid Divestment – Principled Disengagement

The divestment campaign targeting South Africa during the apartheid era was one of the most influential and widespread ethical movements on university campuses. Activists, students, and faculty around the world called for universities to divest from companies operating in South Africa or those that profited from its oppressive racial policies.[68] The campaign argued that continued financial ties with these companies meant tacit approval of apartheid, creating both a moral and ethical imperative to sever such relationships.[69]

---

[66] *See* Nash, *supra* note 24.

[67] Note, for example, the growth in LGBTQ student groups on campus. *See, e.g., About Us,* CAMPUS PRIDE, https://www.campuspride.org/about/ (last visited Sept 27, 2024).

[68] *See, e.g.*, Tracey Johnson, *The Divestment Movement at Rutgers University and the Limits of Interracial Organizing 1977-1985, in* SCARLET AND BLACK (Vol. 3, 2021) (discussing the explosion of anti-apartheid divestment campaigns at Rutgers University among many other college campuses beginning in the 60s and growing in the 70s and 80s); Jacob Ivey, *Divestment and Lemon Meringue Pie: Anti-Apartheid Movements and the University of Florida in Gainesville*, 23 SAFUNDI 46, 47 (2022) ("The mid-1980s saw a significant uptick in the anti-apartheid movement, creating a 'burst' of activity across the United States.").

[69] Johnson *supra* note 6, at 209-210 (discussing the goal of the student organizations to achieve complete divestment from the South African economy and the view that continued financial entanglement, even reduced from pre-protest levels was immoral).

1. The Nature of the Campaign

The anti-apartheid divestment campaign began in the 1960s but reached its peak in the 1980s, with increasing international pressure to end apartheid in South Africa.[70] Universities became focal points of the movement, as activists argued that academic institutions had a responsibility to reject complicity in the human rights abuses perpetrated by the apartheid government.[71] The campaign's demands were simple but powerful: universities were to divest from any company that did business in or supported South Africa's apartheid regime.[72] This included industries such as mining, banking, and manufacturing.

The divestment movement was marked by massive protests on campuses, hunger strikes, and sit-ins, pressuring university administrations to respond.[73] The movement was not only about ending financial complicity but also about aligning university values with broader ethical principles. The divestment campaign directly challenged universities to rethink their roles as global ethical actors and not just financial institutions.

2. Application of the Matrix

This case fits within the **Divestiture/Perspectives** quadrant of the matrix, where the decision to divest is driven by opposition to corporate practices or perspectives rather than identity-based concerns. Unlike the identity-targeted actions of McCarthyism, the apartheid divestment campaign focused on the corporate perspective of doing business with a government engaged in systemic racial oppression. The central ethical argument was that universities, as institutions committed to justice and equality, could not continue to invest in companies that upheld or profited from apartheid.

This quadrant helps frame the distinction between divestiture campaigns based on ethical concerns about corporate practices versus those based on moral imperatives related to identity. The apartheid campaign, while deeply moral, was fundamentally an ethical decision to disentangle from companies whose practices supported a system of injustice.

---

[70] *Id.*

[71] *See* Sarah A. Soule, *The Student Divestment Movement in the United States and Tactical Diffusion: The Shantytown Protest*, 75 SOCIAL FORCES 855, 855-857 (discussing the widespread protests on American campuses opposing South African apartheid); *See also* Tracey Johnson, *The Divestment Movement at Rutgers University and the Limits of Interracial Organizing 1977-1985, in* SCARLET AND BLACK (Vol. 3, 2021); *see also* Jacob Ivey, *Divestment and Lemon Meringue Pie: Anti-Apartheid Movements and the University of Florida in Gainesville*, 23 SAFUNDI 46 (2022).

[72] Johnson *supra* note 6, at 209-210 ("Proponents of divestiture wanted universities to abandon their investments in corporations that supported the South African economy.").

[73]

It was not simply a rejection of South African identity but a broader rejection of the practices that upheld apartheid.

3. Ethical vs. Moral Considerations

The apartheid divestment movement was driven by both ethical and moral considerations, but the primary focus was on the ethical implications of financial complicity.[74] Activists argued that universities had a fiduciary and ethical responsibility to align their investments with the values they espoused in their teaching and mission statements. The moral issue of apartheid—systemic racial oppression—was clear, but the ethical question revolved around whether universities should profit from such a system.[75] The movement was, at its core, about forcing institutions to take a stand on ethical grounds rather than simply remaining neutral.

Ethical considerations involved the financial entanglement of universities with companies that perpetuated apartheid.[76] By severing these ties, universities aimed to demonstrate that they were not merely passive investors but active participants in shaping global justice.

4. Impact on Universities

The impact of the apartheid divestment campaign on universities was profound. Many institutions eventually caved to student and faculty pressure, leading to widespread divestments from companies operating in South Africa.[77] The movement also paved the way for future divestment campaigns, such as those targeting the fossil fuel industry and tobacco companies. It set a precedent for universities being held accountable for their investment practices and demonstrated the power of grassroots activism in shaping institutional policies.[78]

More importantly, the campaign reshaped how universities understood their ethical responsibilities in the global arena. No longer could universities claim neutrality in the face of human rights abuses; the apartheid divestment movement forced them to acknowledge

---

[74] *See* Ivey *supra* note 6, at 52 (analyzing the tension between protestors and trustees, with the trustees opposing divestment for divestments sake, but the student protestors adamantly insisting on the necessity of divestment in order to avoid responsibility for the injustice of apartheid).
[75] *See id*. (some trustees believe that while apartheid is clearly immoral, this does not necessarily require university divestment where the effect of divestment is uncertain or even potentially counterproductive).
[76] *See* Johnson *supra* note 6, at 209.
[77] *See, e.g., id.* at 224 (noting Rutgers' decision to completely divest from companies doing business with South Africa).
[78] The protests of South African Apartheid are widely viewed as one of the most influential protest campaigns in political history, creating a new era and form of political involvement by the populace. *See* Ivey *supra* note 6, at 46

their role as ethical actors in a global context. Universities were no longer seen as merely educational institutions but as key players in the global struggle for justice.

5. Analysis

The South Africa apartheid divestment campaign stands as a powerful example of **principled disengagement** in the **Divestiture/Perspectives** quadrant of our matrix. It illustrates how divestiture can serve as a tool for universities to align their financial practices with their ethical values, without targeting identities or individual affiliations. The movement also highlighted the power of sustained activism in forcing institutions to confront their ethical responsibilities and take meaningful action. Through this case, the matrix demonstrates the importance of distinguishing between identity-based Identity-Alignment Withdrawal and perspective-based ethical divestment, with the latter often leading to broader institutional change.

E. Fossil Fuel Divestment Movement – Principled Disengagement

The fossil fuel divestment movement gained significant momentum in the 2010s. It calls for universities to divest from companies involved in fossil fuel extraction and production, citing environmental concerns and the ethical responsibility to combat climate change.[79] Similar to the apartheid movement, student activists argue that universities should align their investments with their stated commitments to sustainability and environmental justice.[80]

1. Nature of the Campaign

The fossil fuel divestment movement mirrors the earlier apartheid campaign in several ways but focuses specifically on the global climate crisis. As climate science has shown the significant contribution of fossil fuel consumption to global warming, universities have come under pressure from students, faculty, and environmental organizations to divest from companies involved in the fossil fuel industry.[81] These companies are seen as major contributors to environmental degradation and climate change, raising the ethical question of whether universities should continue to profit from these investments while claiming to promote sustainability.[82]

---

[79] Benjamin J. Richardson, *Universities Unloading on Fossil Fuels: The Legality of Investing*, 10 CARBON AND CLIMATE LAW REVIEW 62, 62 (2016).
[80] *Id.* at 64.
[81] *Id.* at 62.
[82] *See id.* at 64 (quoting a statement released by a student organization calling for Harvard to divest, "As Harvard continues to establish itself as a leader in campus sustainability, it must be ready to engage in sustainable practices at all levels–especially with regards to its investment activities")

Proponents argue that universities have a responsibility to help mitigate climate change by severing ties with fossil fuel companies and instead investing in renewable energy or sustainable technologies.[83] Critics, however, argue that divestment would have little financial impact on the fossil fuel industry and that universities could better address climate change through research and innovation rather than divestiture.[84]

2. Application of the Matrix

This movement clearly fits within the **Divestiture/Perspectives** quadrant of the matrix. The call to divest from fossil fuel companies is rooted in ethical opposition to their business practices and environmental impact rather than in targeting individual identities.[85] The ethical framework here revolves around corporate responsibility and the role of universities in fostering a sustainable future. By divesting, universities aim to distance themselves from industries that are seen as contributing to global harm, aligning their financial practices with their ethical and academic values.

This quadrant helps differentiate between divestment campaigns driven by ethical concerns about global sustainability versus those driven by moral concerns about identity-based injustices. While fossil fuel companies are not being targeted for their corporate identities, they are being boycotted for the ethical implications of their business practices, much like the companies in the apartheid divestment campaign.

3. Ethical vs. Moral Considerations

Like the apartheid divestment movement, the fossil fuel divestment campaign is driven by ethical concerns, specifically regarding the role of universities in exacerbating or mitigating climate change. The central question is whether universities, as global institutions committed to the public good, should continue to invest in industries that contribute to the destruction of the environment.

The movement also presents a moral dimension, as it engages with the broader ethical debate around climate justice and the rights of future generations. However, the primary focus remains on the ethical responsibilities of universities to align their investment strategies with their environmental commitments. In this case, principled disengagement from fossil fuel investments is seen as a necessary step toward fulfilling those commitments.

---

[83] *Id.*

[84] Noam Bergman, *Impacts of Fossil Fuel Divestment Movement: Effects on Finance, Policy, and Public Discourse*, SCIENCE POLICY RESEARCH UNIT, UNIV. SUSSEX 2 (2018) ("Divestment has been criticized for having no significant impact on fossil fuel funding and for its political and financial naivete.").

[85] *See* source and accompanying text *supra* note 9.

4. Impact on Universities

The fossil fuel divestment movement has already had a significant impact on universities around the world. Several prestigious institutions, including Harvard and the University of California, have committed to divesting from fossil fuels, citing the need to address the climate crisis.[86] The movement has also reshaped the conversation around sustainable investments, leading universities to adopt more comprehensive sustainability policies that include not just divestment but also investments in renewable energy and green technologies.[87]

However, the movement has also faced criticism from some university administrators and financial experts, who argue that divestment is largely symbolic and unlikely to impact the fossil fuel industry in any meaningful way.[88] Additionally, some universities have resisted divestment, citing concerns about financial stability and fiduciary responsibilities to their endowments.[89]

5. Analysis

The fossil fuel divestment movement provides a contemporary example of **principled disengagement** in the **Divestiture/Perspectives** quadrant of the matrix. Like the apartheid divestment campaign, it seeks to align university investments with ethical values, particularly regarding global sustainability and environmental responsibility. By analyzing this case within the matrix, we can see how universities are being called upon to play a more active role in addressing global challenges through their financial decisions. This case also highlights the ethical tension between financial stability and moral

---

[86] Naomi Oreskes & Sofia Andrade, *Harvard and Other Schools Make a Choice on Fossil Fuels*, THE NEW YORK TIMES (Oct. 2, 2021) https://www.nytimes.com/2021/10/02/opinion/divestment-fossil-fuels-harvard.html ("This month, the University of Minnesota, Boston University and Harvard, our institution, announced that they'll divest from the fossil fuel industry."); Leah Asmelash, *The University of California Has Fully Divested From Fossil Fuels. It's the Largest School in the US to Do It.* CNN (May 20, 202 4:03 PM), https://www.cnn.com/2020/05/20/us/university-of-california-divest-fossil-fuels-trnd/index.html.

[87] *See, e.g., U of I System Expands Commitment to Sustainable Investments*, UNIV. OF ILL SYS. NEWS (Oct. 13, 2022, 8:00 AM) https://news.uillinois.edu/view/7815/1433298724; SUSTAINABLE GW, https://sustainability.gwu.edu/investment (last visited Sept 1, 2024) (GW engages with investment managers to encourage their investment in companies with environmentally sustainable business practices and to accelerate their transition to fossil-free portfolios.").

[88] Benjamin J. Richardson, *Fossil Fuels Divestment: Is it Lawful?,* 39 UNIV. OF NEW SOUTH WALES L.J. 1686, 1686 (2016) ("The . . . campaign is opposed by many financiers, and governments too, for reasons that include the belief that divesting is financially irresponsible, it cannot leverage positive change and that it is unlawful or legally dubious.")

[89] Benjamin J. Richardson, *Universities Unloading on Fossil Fuels: The Legality of Investing*, 10 CARBON AND CLIMATE LAW REVIEW 62, 62 (2016) (noting MIT's refusal to divest due to legal and financial concerns, and the perceived inefficacy of the strategy).

responsibility, a theme that continues to shape debates around university governance in the 21st century.

F. Boycott, Divest, Sanction Movement – Identity-Alignment Withdrawal

The 2005 BDS (Boycott, Divestment, and Sanctions) movement emerged in response to the intensifying Israeli-Palestinian conflict,[90] specifically after the Second Intifada (2000-2005), a period marked by widespread violence and military incursions in Palestinian territories.[91] This campaign called on universities to divest from Israeli companies and institutions as a protest against allegations of human rights violations by Israel in the Palestinian territories,[92] a claim contested by various international actors. Advocates argued that financial entanglement with Israeli firms and the Israeli government was morally indefensible, drawing on precedents like the South African apartheid movement.[93]

1. The Nature of the Campaign

The BDS campaign was launched formally in July 2005 by a coalition of Palestinian civil society organizations.[94] It was framed as a non-violent resistance movement aimed at holding Israel accountable for its treatment of Palestinians.[95] The movement called for three specific actions: (1) ending the Israeli occupation of Palestinian territories[96]; (2) recognizing the fundamental rights of Arab-Palestinian citizens of Israel[97]; and (3) promoting the right of return for Palestinian refugees.[98]

---

[90] Jim Zanotti, et al., *Israel and the Boycott, Divestment, and Sanctions (BDS) Movement*, 8 CURRENT POLITICS AND ECONOMICS OF THE MIDDLE EAST 285, 288 (2017).
[91] Ali Adam, *Palestinian Intifada: How Israel Orchestrated a Bloody Takeover*, AL JAZEERA (Sept. 28, 2020), https://www.aljazeera.com/news/2020/9/28/palestinian-intifada-20-years-later-israeli-occupation-continues; *see also The Second Intifada 2000*, ANTI-DEFAMATION LEAGUE (Sept. 1, 2016), https://www.adl.org/resources/backgrounder/second-intifada-2000; Ian Oxnevad, THE COMPANY THEY KEEP 16 (2023).
[92] Daniel Henninger, *The Cookie-Cutter Campus Protests: Anti-Israel Students*, WALL STREET JOURNAL (Oct. 2023), https://www.wsj.com/articles/the-cookie-cutter-campus-protests-anti-israel-students-dcfdeb9b?st=7il2q5r3d648wbu&reflink=desktopwebshare_permalink.
[93] *See* Zanotti *supra* note 26, at 289.
[94] Henninger *supra* note 26.
[95] *See generally*, Omar Barghouti, *On the Ethics of Boycott, Divestment, and Sanctions, in* J. Kehaulani Kauanui, INDIGENOUS POLITICS: CONVERSATIONS WITH ACTIVISTS, SCHOLARS, AND TRIBAL LEADERS (2018) (discussing the dual system of law in Israel which applies differently to Jewish people than it does to Palestinians).
[96] *Id.*
[97] *Id.*
[98] *Id.* at 289.

In practical terms, these goals translated into demands for universities to divest from Israeli companies, sever academic collaborations, and boycott Israeli products.[99] Central to the campaign was the perspective that universities as moral actors should reconsider investments tied to what they view as human rights abuses. Student groups and faculty across universities began to agitate for university boards and endowments to sever ties with corporations involved in infrastructure, military, and settlement expansions in the West Bank and Gaza.[100]

2. Application of the Matrix

The 2005-era BDS campaign fits into the **Divestiture/Identities** quadrant of the matrix. The focus was not on corporate malfeasance or financial misconduct, but on the identity of Israel as a nation-state. The movement framed Israel's policies as inseparable from its national identity, positioning divestiture as a stand against an entire nation rather than specific business practices.[101] Unlike divestment campaigns targeting fossil fuels or tobacco, which sought to change corporate behavior, the BDS movement made a broader moral claim by tying Israel's political actions directly to its national character.

3. Ethical vs. Moral Considerations

The campaign raised significant ethical and moral questions. Ethically, universities were asked to weigh their financial responsibilities against their roles as institutions of moral leadership. BDS advocates expressed concern that universities were involved in supporting what they view as Israel's occupation by financially benefiting from companies tied to Israel's military and infrastructural apparatus.[102] The moral argument extended beyond the economic, calling for a symbolic disavowal of Israel's state policies and practices, which were equated with what was described by some as systematic control.

---

[99] Jim Zanotti, et al., *Israel and the Boycott, Divestment, and Sanctions (BDS) Movement*, 8 CURRENT POLITICS AND ECONOMICS OF THE MIDDLE EAST 285, 289 (2017) (discussing calls to boycott Israel and their products as well as divest from Israeli companies in a manner similar to that employed in response to South African apartheid).

[100] *See* Nina Lakhani, *BDS Founder Hails Campus Protests for Taking Israeli Divestment Mainstream,* THE GUARDIAN (June 4, 2024), https://www.theguardian.com/us-news/article/2024/jun/04/bds-omar-barghouti-israel-campus-protests (discussing explosion of campus protests calling for divestment from Israeli economy); *see also* Zanotti *supra* not 26, at 290 (discussing Israeli settlements specifically).

[101] *See id.*

[102] Palestinian Campaign for the Academic and Cultural Boycott of Israel, *Universities are Ending Complicity in Israeli Apartheid and Its Gaza Genocide in Numbers Never Seen Before*, BDS MOVEMENT (May 19, 2024), https://bdsmovement.net/news/universities-are-ending-complicity-israeli-apartheid-and-its-gaza-genocide-numbers-never-seen; *see also* Lakhani *supra* note 36 (noting prominent BDS activist Omar Barghouti's comments that students were exposing the hypocrisy of universities that "put 'profit before people and the planet'").

However, critics of the BDS movement questioned whether targeting the policies of Israel's government, rather than specific practices, was an appropriate ethical approach. They argued that framing divestiture as a response to identity risked creating a form of collective punishment, where individuals or entities unconnected to human rights abuses would bear the brunt of economic consequences.[103] This ethical dilemma made the BDS campaign a complex moral issue for universities to navigate.

4. Impact on Universities

The 2005-era BDS campaign had a profound impact on universities, even though few institutions fully embraced divestment. Student-led protests and faculty petitions created significant pressure on university administrations to address the moral questions raised by the movement.[104] Several universities, such as Harvard and MIT, formed committees to evaluate their investment portfolios, but most stopped short of divesting from Israeli companies.[105] The discussions, however, forced universities to engage in debates about their ethical responsibilities in global conflicts.

Universities also began to institutionalize these conversations by creating frameworks for evaluating their investments from a social responsibility perspective.[106] The debates around BDS further polarized campuses, with intense opposition to the movement emerging from both students and faculty who viewed the campaign as anti-Semitic or overly broad in its targeting of Israel.[107]

5. Analysis

The 2005 BDS campaign represented a significant moment in the evolution of university divestiture movements, as it moved away from targeting corporate wrongdoing and focused instead on the identity of a nation-state. In contrast to prior divestment efforts, such as those against apartheid South Africa, the BDS campaign made the question of national identity central to the divestment argument. This shift introduced a new

---

[103] *See* Glenn C. Altschuler & David Wippman, *The Campus War of Words Over Antisemitism and the BDS Movement*, THE HILL (Dec. 17, 2023), https://thehill.com/opinion/education/4364136-the-campus-war-over-words-on-israel-and-palestine/ (discussing the negligible economic impact of the movement and the fear that it is really a challenge to Israel's right to exist and ends up punishing individual Jews who support this right).

[104] *See* Nathan Thrall, *BDS: How a Controversial, Non-Violent Movement Has Transformed the Israeli-Palestinian Debate*, THE GUARDIAN (August 14, 2018) https://www.theguardian.com/news/2018/aug/14/bds-boycott-divestment-sanctions-movement-transformed-israeli-palestinian-debate (discussing the pressure on universities, among other institutions, created by the growing BDS movement).

[105] *See, e.g.,* HARVARD UNIVERSITY SHAREHOLDER RESPONSIBILITY COMMITTEES https://www.harvard.edu/shareholder-responsibility-committees/ (last visited Sept 10, 2024).

[106] *Id.*

[107] *Id.* ("Critics responds that BDS is an inherently antisemitic effort…").

complexity to university governance, as institutions were now forced to weigh the implications of divesting from a nation-state with longstanding political and academic ties.

While the campaign was not successful in forcing widespread divestiture, it laid the groundwork for future divestment movements and intensified debates about the role of universities in global conflicts. The distinction between identity-based divestiture and perspective-based boycotts would later become even more blurred in the post-October 7, 2023 BDS calls, where universities found themselves facing renewed pressure to sever ties with Israel following the violent escalation of the conflict.

G. McCarthy Era Purges (1950s): From Ideological Rejection to Identity-Based Exclusion

The McCarthy Era, spanning the late 1940s and 1950s, was marked by widespread fear of communism, a sentiment fueled by the Cold War and anti-communist propaganda.[108] Senator Joseph McCarthy and the House Un-American Activities Committee (HUAC) led a fervent campaign to identify and root out supposed communist sympathizers, whom they viewed as subversives undermining American democracy.[109] Universities became prime targets in this effort, as intellectuals and academics were often perceived as harboring left-leaning views.[110] What began as an ideological movement to combat communism soon morphed into an identity-based purge, whereby individuals were ostracized not for specific actions, but for their perceived affiliation with communism.

1. The Descent into Identity-Based Purge

In universities, academics were subjected to intense scrutiny.[111] Loyalty oaths were introduced, requiring faculty to pledge allegiance to the U.S. and denounce communism.[112] Some professors were subpoenaed by HUAC or state-level committees, where they were pressured to reveal the identities of suspected communists among their

---

[108] *See* Ben W. Heineman, Jr., *The University in the McCarthy Era*, THE HARVARD CRIMSON (June 17, 1965), https://www.thecrimson.com/article/1965/6/17/the-university-in-the-mccarthy-era/ (noting that the period of the Red Scare generally ran from the 1948 Alger Hiss investigation to the Senate censure of McCarthy in 1955); *see also McCarthyism and the Red Scare*, THE MILLER CENTER, https://millercenter.org/the-presidency/educational-resources/age-of-eisenhower/mcarthyism-red-scare.

[109] Heineman, *supra* note 51.

[110] *Id.* (discussing formation of the National Council for American Education which published a booklet entitled *Red-Ucators at Harvard* calling out alleged Communist and Marxist propaganda being taught at Harvard and the House Un-American Activities Committee's commitment to "get[ting] the Reds" in higher education).

[111] Heineman, *supra* note 51.

[112] Ellen Schrecker, *McCarthyism: Political Repression and the Fear of Communism*, 71 SOC. RSCH. 1041, 1045 (2004) (noting that many companies chose to implement loyalty oaths merely to avoid government scrutiny).

colleagues.[113] Those who refused to cooperate faced blacklisting, dismissal, and reputational ruin.[114] Rather than serve as bastions of free inquiry, many universities capitulated to external pressures, enforcing these purges out of fear of losing public support, government funding, or the confidence of trustees and alumni.[115]

While the McCarthy purges began as an effort to disentangle universities from a dangerous political ideology, they quickly descended into a form of identity-based exclusion. The term "communist" became less a description of one's political stance and more a stigmatizing label—an identity that could not be shed. Faculty members were blacklisted, not for any explicit actions, but for their perceived identity as "communists."[116] Even tenuous associations with leftist organizations or ideas were grounds for dismissal, regardless of the individual's present beliefs or conduct.

This blurred line between perspective and identity marks a crucial turning point. What initially appeared to be an ethical, albeit controversial, effort to protect national security rapidly spiraled into a moral failure as universities abandoned principles of free inquiry and academic freedom in favor of purging those labeled as threats to institutional and national integrity.

2. Application of the Matrix: Perspective vs. Identity

In our matrix of university disentanglements, the McCarthy purges exist at the intersection of **Boycott/Perspectives** and **Boycott/Identities**. Initially, universities sought to disentangle themselves from those espousing communist perspectives, but over time, communism became an indelible identity marker. This transition from ideological opposition to identity-based exclusion serves as a cautionary tale. The purges show how easily ideological rejection can morph into a form of moral panic, where identities are targeted regardless of an individual's actual views or actions.

While early in the purges, universities may have justified their actions as protecting institutional ethics (e.g., ensuring loyalty to American democratic principles), they quickly engaged in what can only be seen as identity-based moral disentanglement. This highlights

---

[113] *Id.*
[114] *Id.*
[115] Diana Moyer, *University Speaker Censorship in 1951 and Today: New McCarthyism and Community Relations*, 41 J. OF THOUGHT. 29, 32–33 (2006) (discussing the anecdote of Ohio State University's shift in position on outside speakers following backlash from the public and the government during the McCarthy Red Scare).
[116] *See* Schrecker, *supra* note 55 (noting that many professors were terminated for pleading the Fifth as opposed to concrete evidence of Communist loyalties).

the dangers of engaging in such purges, as they often conflate ideological perspectives with fixed, unchangeable identities, undermining the ethical foundations of academia.

3. Ethical vs. Moral Considerations

The McCarthy purges raise significant ethical and moral questions. Initially, universities justified their actions on ethical grounds, claiming that purging suspected communists was necessary to preserve institutional integrity and align with national security priorities.[117] However, as the purges escalated, it became clear that the moral framework underpinning these actions was deeply flawed. The decision to blacklist individuals based on suspicion, rumor, or mere association with left-wing ideas reflected a moral failure, one driven by fear rather than justice. Academic freedom, a core ethical principle of universities, was sacrificed in favor of political expediency.

In hindsight, the McCarthy Era is often viewed as a period of moral failure, in which universities abandoned their ethical duties to protect intellectual freedom and promote open inquiry. The purges serve as a powerful reminder of how identity-based disentanglements—especially when driven by fear—can lead to long-lasting damage to both individual lives and institutional integrity.

4. Impact on Universities

The consequences of the McCarthy purges were far-reaching. Many universities lost esteemed faculty members, and the climate of fear stifled academic discourse for years. The purges set a troubling precedent: that universities, when faced with external political pressures, could be swayed to compromise their mission as bastions of free thought and academic integrity. By allowing fear of communism to dictate their policies, universities failed to uphold the ethical principles of academic freedom and intellectual diversity, resulting in a lasting impact on the culture of academia.

5. Conclusion: Setting the Stage for Modern Analysis

The McCarthy purges, with their shift from ideological rejection to identity-based exclusion, provide a crucial framework for understanding the complexities of university disentanglements. They show how initial ethical motives can easily slide into moral failure when the lines between perspectives and identities become blurred. As we turn to modern-day disentanglement efforts—such as the ongoing calls for boycotts and divestment in the context of the Israel-Palestine conflict—we must bear in mind the lessons of McCarthyism. The moral and ethical dilemmas that universities faced then are

---

[117] *Id.* at 1069-1070 (noting that an organization which represented 37 leading universities during the period justified terminations with the need to maintain a good public image).

echoed in today's challenges, reminding us of the importance of critical reflection when engaging in disentanglements.

H. Summary of Historical Examples

The historical episodes discussed in the preceding sections reveal the complex ways in which universities have navigated various forms of disentanglement, whether through ideological rejection, identity exclusion, principled disengagement, or identity-aligned withdrawal. These examples highlight how universities have responded to different ethical and moral pressures over time, with varying degrees of success and controversy. The following table summarizes the key characteristics of each episode, providing a comparative framework to better understand the underlying patterns and distinctions between them.

Quadrant	**Type**	**Definition**	**Example**
Boycott/Perspectives	Ideological Rejection	Rejection targeting ideas, beliefs, or perspectives.	McCarthy Era Purge, Vietnam War Protests
Boycott/Identities	Identity Exclusion	Boycotts targeting inherent identities, such as ethnicity or sexual orientation.	Anti-Semitic Boycotts, LGBTQ Boycotts
Divestiture/Perspective	Principled Disengagement	Divestment based on corporate or organizational behavior aligned with ethical principles.	Fossil Fuels, Tobacco Divestment
Divestiture/Identities	Identity-Aligned Withdrawal	Divestment targeting national or ethnic identities, tied to moral convictions.	South African Apartheid, 2005-Era BDS Campaign

Table 2. Comparative Analysis of University Disentanglement Strategies in Historical Context.

With this historical framework in place, we now turn to modern forms of disentanglement, focusing on the evolving BDS campaigns and their unique place in today's university landscape.

IV. Contemporary University Reactions to Disentanglement Demands

On October 7, 2023, Hamas militants infiltrated Israel and sparked a global conflict that quickly garnered worldwide attention. University administrations responded to the events of October 7 and subsequent protests in varied and multifaceted ways, reflecting the complexity of balancing free speech, student safety, and institutional reputation.[118] Such varied responses also reflected the incoherent nature of university governance. Virtually every university's administration was sharply criticized by parties on different sides of the protests. Many administrators were hauled before Congress and forced to resign. Universities suffered reputational harm, demonstrated by declining enrollments and reduced donor support. Next, universities and their administrators face legal liability, as multiple lawsuits have been filed regarding their purported misconduct. This Part shows how the absence of a theory of the university led to these problems by diving deep into the facts regarding what happened after October 7.

Administrators first issued public statements, often framed to offer condolences and support for students affected by the conflict.[119] These statements frequently emphasized a commitment to dialogue, mutual respect, and peace, though the specificity and tone of these responses varied.[120] Some universities explicitly condemned Hamas and the violence perpetrated against Israel, drawing clear lines against terrorism and aligning with global anti-terrorism sentiments.[121] Others, however, took a more neutral stance, attempting to avoid political entanglement by condemning violence broadly without specifying any party.[122] This more cautious approach was often met with criticism, particularly from Jewish students and alumni, who viewed the neutral tone as a failure to sufficiently condemn terrorism.[123] Meanwhile, pro-Palestinian students felt their voices were being marginalized, especially in institutions that focused solely on antisemitism without acknowledging the broader Israeli-Palestinian conflict.[124]

---

[118] *See* discussion *infra* Part IV.B.
[119] *Id.*
[120] *Id.*
[121] *Id.*
[122] *Id.*
[123] *See* discussion *infra* Part IV.B.
[124] *Id.*

In terms of protest management, many universities were confronted with a surge in activism, with student groups organizing rallies, sit-ins, and other demonstrations calling for divestment from companies tied to Israel.[125] The demand for divestment was not new, but after October 7, it gained significant traction.[126] Pro-Palestinian student groups, citing Israel's military actions and long-standing occupation, pushed for their universities to sever financial ties with companies that supplied weapons to Israel or that profited from Israeli military actions in Gaza.[127] In response, university administrations faced the challenge of balancing the right to protest with maintaining campus order and ensuring student safety. Some administrations enacted stricter protest regulations, requiring prior approval for demonstrations, limiting the time and place of protests, and increasing security measures to prevent disruption.[128]

At institutions like Columbia University and Harvard, where divestment movements were particularly strong, university leaders navigated difficult waters.[129] They were pressed from pro-Israel advocates, including alumni and donors, to not engage in any divestment actions, which they argued would politicize the university and harm Jewish students.[130] In contrast, pro-Palestinian groups viewed the refusal to divest as complicity in Israel's actions, accusing the universities of prioritizing financial interests over human rights.[131] Some administrations chose to publicly reaffirm their commitment to maintaining their endowment investments, arguing that endowments are financial instruments meant to ensure the sustainability of the institution rather than political tools.[132] Many university leaders pointed out that divestment from Israel could expose the university to legal risks, especially in states where anti-boycott laws have been enacted.[133]

The pressure on university administrations extended beyond protests themselves, as alumni, donors, and the media scrutinized institutional responses.[134] At several universities, major donors publicly threatened to withdraw financial support if the university did not take a stronger stance against antisemitism or refused to condemn pro-Palestinian student groups.[135] In some cases, this led to a delicate balancing act where universities attempted to distance themselves from the political implications of student

---

[125] *Id.*
[126] *Id.*
[127] *Id.*
[128] *See* source and accompanying text *infra* note 76.
[129] *See* discussions *infra* Part IV.B.1 and Part IV.B.4.
[130] *See* discussion *infra* Part IV.B.
[131] *Id.*
[132] *Id.*
[133] *Id.*
[134] *Id.*
[135] *See* discussion *infra* Part IV.B.

protests while upholding their commitments to free speech.[136] Simultaneously, they had to contend with legal and policy challenges, as private universities faced fewer First Amendment constraints than public institutions but still navigated a minefield of internal policies around speech and assembly.[137]

A. The Spark: October 7, 2023

On October 7, 2023, Hamas launched an unprecedented and highly coordinated attack on Israel, which rapidly escalated into one of the deadliest days in the history of the Israeli-Palestinian conflict. The core facts of the event are largely undisputed: Hamas militants infiltrated Israeli territory, attacking civilian communities, military installations, and gathering places such as the Nova Music Festival.[138] The assault involved the firing of over 5,000 rockets into Israel, ground incursions that overwhelmed Israeli defense systems, and the kidnapping of hundreds of Israeli civilians, including women, children, and elderly individuals.[139] Initial reports estimated that over 1,200 Israeli citizens were killed in the attacks, with many more injured or displaced.[140] While widely condemned as an unprecedented act of violence by Hamas, others frame the assault as part of an ongoing struggle against occupation.[141]

As Hamas militants swept through border towns and communities like Kibbutz Nir Oz and Kfar Aza, they engaged in indiscriminate killings, leading to horrific scenes of violence. Hostages were taken back to Gaza, further amplifying the shock and anger across Israel and the international community.[142] Videos of these kidnappings, circulated by Hamas, were used as propaganda to celebrate the success of the operation, but they also ignited a global wave of sympathy for Israel and condemnation of the actions as terrorism.

However, despite the clear facts about the scale and nature of the attack, the way these events were framed diverged sharply between different groups and narratives. In Israel and much of the Western world, the attacks were characterized as an act of terror that violated

---

[136] *Id.*
[137] *Id.*
[138] Tim Flack, *How Did the World Respond to the October 7th Massacre?* THE JERUSALEM POST (Apr. 3, 2024), https://www.jpost.com/opinion/article-795152.
[139] Abbas Al Lawati & Nadeen Ebrahim, *Israel Is at War with Hamas. Here's What to Know.,* CNN (Oct. 15, 2023), https://www.cnn.com/2023/10/09/middleeast/israel-hamas-gaza-war-explained-mime-intl.
[140] *See id.* (reporting 1,400 people killed).
[141] *See, e.g.*, Maureen Tkacik, *What Really Happened on October 7?* AMERICAN PROSPECT (Mar. 20, 2024), https://prospect.org/world/2024-03-20-what-really-happened-on-october-7/; *See also* Hussein Ibish, *History Didn't Begin on October 7th,* IN THESE TIMES (Dec. 5, 2023), https://inthesetimes.com/article/israel-occupation-palestine-settlers-apartheid-checkpoints-resistance.
[142] *Hamas Hostages: Stories of the People Taken from Israel*, BBC (Sept. 1, 2024, https://www.bbc.com/news/world-middle-east-67053011 (reporting 251 hostages taken on October 7, with 101 remaining, two of whom were taken prior to the October 7th attack, in 2014 and 2015 respectively)

international norms and warranted a forceful military response. Israeli Prime Minister Benjamin Netanyahu declared that Hamas had declared war on Israeli civilians and emphasized that these acts were designed to inflict maximum terror on non-combatants. The Israeli government quickly initiated Operation Iron Swords, a full-scale military campaign aimed at dismantling Hamas' military infrastructure in Gaza.[143]

From this perspective, the Hamas assault was framed as part of a broader global fight against terrorism, justifying Israel's retaliatory strikes and blockades of Gaza. Western leaders, including U.S. President Joe Biden, expressed strong support for Israel, reiterating that it had the right to defend itself in the face of such extreme aggression.[144] In this narrative, the central focus remained on the civilian casualties and the humanitarian cost inflicted by Hamas' actions.

In contrast, many pro-Palestinian groups and supporters of the Palestinian cause framed the events of October 7th differently. In their view, the Hamas operation was portrayed as a response to decades of Israeli occupation, blockades, and human rights violations against Palestinians living in Gaza and the West Bank.[145] While the scale of violence was acknowledged, these groups emphasized that the context of the attacks could not be separated from the broader struggle for Palestinian self-determination.[146] According to this framing, the assault was seen as part of a legitimate resistance movement against Israeli policies that had left Gaza isolated and impoverished for years.

Some Palestinian supporters pointed to Israel's military operations in Gaza, the blockade, and the ongoing expansion of settlements as driving forces behind the escalation.[147] They argued that the civilian deaths on October 7th, while tragic, were a byproduct of a long-standing conflict in which Palestinians had been systematically oppressed and forced into desperate measures.[148] This narrative was picked up by many international activists, particularly on university campuses, where student groups organized rallies and protests condemning Israel's military response as disproportionate.[149]

---

[143] *See* Al Lawati *supra* note 62.
[144] Myah Ward & Craig Howie, *"Rock Solid and Unwavering": Biden Pledges Support for Israel After Hamas Attacks*, POLITICO (Oct. 7, 2023), https://www.politico.com/news/2023/10/07/hamas-terrorism-attacks-on-israeli-civilians-00120480.
[145] *See* sources *supra* note 84.
[146] *See id.*
[147] *See* Mariam Barghouti, *On October 7, Gaza Broke Out of Prison*, AL JAZEERA (Oct. 14, 2023), https://www.aljazeera.com/opinions/2023/10/14/on-october-7-gaza-broke-out-of-prison (discussing the wall enclosing Gaza and its destruction on October 7).
[148] *See* sources *supra* note 84.
[149] *See* discussion *infra* Part IV.B.

The divide between these two framings led to a global polarization of opinion, with many seeing Hamas' actions as unjustifiable acts of terror, while others viewed them as part of an ongoing conflict that required a broader conversation about Palestinian rights and the end of Israeli occupation. This divergence in interpretation, particularly around questions of proportionality and resistance, fed directly into the responses seen on university campuses in the following days.

The events of October 7 thus set the stage for a wave of protests, statements, and divestment campaigns that swept across academic institutions. As we will explore in subsequent sections, the reactions to this attack — particularly on U.S. university campuses — illustrate how deeply divided the global community remains on issues of Israel, Palestine, and the ethics of university engagement with geopolitical conflicts. This section serves as the backdrop for understanding why the calls for university disentanglement, particularly around divestment from Israeli companies and institutions, have taken on a new level of intensity and controversy.

B. The Powder: University Responses to October 7

Following the devastating Hamas attacks on Israel on October 7, 2023, universities across the United States faced unprecedented challenges in responding to the unfolding events. As the violence shocked the world, the academic sphere was not immune to the tensions. University administrations, faculty, and students found themselves thrust into the broader political and moral debates surrounding the attacks, with many institutions struggling to balance academic freedom, free speech, and the moral implications of the violence.

The response from universities was marked by a mix of delayed condemnations, calls for peace, and, in some cases, the explicit avoidance of directly addressing the nature of the attacks. These responses sparked outrage among donors, students, and faculty members, many of whom felt the silence or vague condemnations were inadequate in the face of what they saw as acts of terrorism. On several campuses, the initial administrative statement in response was overshadowed by student protests, faculty statements, and increased activism on both sides of the issue, with calls for boycotts, divestments, and sanctions (BDS) against Israel gaining momentum.

In many cases, pro-Palestinian student groups seized on the moment to frame the events as part of a broader struggle for Palestinian rights, leading to accusations that universities were tacitly endorsing or allowing antisemitic rhetoric on campus. Conversely, pro-Israel students and faculty demanded stronger moral leadership from university administrations, insisting that the attacks needed to be condemned as terrorism, and any rhetoric justifying Hamas' actions should be treated as hate speech.

Amid this fraught atmosphere, university leaders were caught between protecting free speech and addressing the demands for moral clarity. This section will explore the specific responses from various universities, the protests that followed, and the tensions that arose as university administrations sought to navigate this complex and politically charged environment. Through twelve case studies, we will examine how these institutions responded, how their actions were perceived, and what the broader implications were for the role of universities in moments of global crisis.

We will now delve into detailed examples from institutions that faced significant controversy and public scrutiny, examining both their administrative responses and the broader campus climate. These case studies highlight the unique challenges universities face when navigating the intersection of free speech, academic freedom, and moral responsibility.

1. **Harvard University**

Harvard University, founded in 1636, is the oldest institution of higher learning in the United States. Its long history and significant endowment have enabled it to become a leading research university, offering a broad range of academic programs. Harvard's contributions to scholarship span multiple disciplines, from the humanities and social sciences to the natural sciences and technology. Its faculty and alumni include numerous notable figures who have played influential roles in government, business, and academia.

Harvard has also been involved in various socio-political events throughout its history. During the Vietnam War, the university became a focal point for both student activism and institutional responses to the conflict. Similarly, during the 1980s, Harvard took a public stance on apartheid in South Africa by engaging in divestment actions, responding to calls from students and faculty for greater social responsibility. These actions reflected the university's position as an institution with both academic and societal influence.

In addition to its academic contributions, Harvard has played a significant role in producing graduates who occupy leadership positions in many fields. Its alumni network includes multiple U.S. presidents, Supreme Court justices, and leaders in business and global governance. The university's prominence often places it at the center of public discourse, with its actions and positions on social and political issues being closely scrutinized.

In recent years, Harvard has responded to various contemporary global challenges, including climate change and social justice movements. The university has initiated sustainability programs aimed at reducing its carbon footprint and has launched initiatives to promote diversity and inclusion across its campus. Harvard's approach to these issues

reflects its broader role in addressing both academic and societal concerns, maintaining its status as a prominent institution in global higher education.

a. Harvard's Initial Administrative Statement

Harvard University's initial administrative statement in response to the events of October 7, 2023, came from President Claudine Gay.[150] In her first statement, issued soon after the attack, Gay expressed sorrow over the violence and extended support to students affected by the conflict.[151] The tone of the statement was measured and neutral, focusing on the need for community unity and mutual respect rather than condemning any specific actors.[152] She emphasized Harvard's role as an academic institution committed to free expression and open dialogue.[153] Gay's statement acknowledged the complex emotions within the community and highlighted the resources available for students needing support but avoided any specific political stance.[154]

Following the initial communication, additional statements were made by university officials, which echoed the same neutral tone. Harvard's administration focused on ensuring the safety of its students and providing mental health resources, reaffirming its commitment to fostering an environment of empathy, understanding, and thoughtful dialogue. The timing of the statements was criticized for being delayed, as they were not released immediately after the attack, but rather after internal deliberation on how to approach the highly sensitive topic without inflaming tensions.[155]

No immediate policy changes or actions were taken in response to the situation, aside from reinforcing the university's commitment to safety and providing spaces for reflection and support within the community. These initial steps set the stage for Harvard's administrative stance in the days following the attack.

b. Harvard Campus Protests and Calls for Divestment

Following the events of October 7, Harvard University became a central hub for pro-Palestinian student protests calling for divestment from companies tied to Israel.

---

[150] Maggie Hicks, *Here's What Colleges Are, and Aren't, Saying about the Israel-Hamas War*, THE CHRONICLE OF HIGHER EDUCATION (Oct. 2023), https://www.chronicle.com/article/heres-what-colleges-are-and-arent-saying-about-the-israel-hamas-war

[151] *See* Statement By President Gay, HARVARD OFFICE OF THE PRESIDENT (Oct. 9, 2023), https://www.harvard.edu/president/news-gay/2023/war-in-the-middle-east/.

[152] *See id.*

[153] *See id.*

[154] *See id.*

[155] *See, e.g.,* Alex Chou & Ayumi Nagatomi, *Israeli Harvard Alumni Slam University Over Response to Hamas Attack*, THE HARVARD CRIMSON (Oct. 20, 2023), https://www.thecrimson.com/article/2023/10/20/israel-harvard-alumni-backlash/.

Organized by groups such as the Palestine Solidarity Committee (PSC) and other student-led organizations, these protests demanded that Harvard disclose its financial ties and divest from institutions supporting the "Israeli occupation."[156] A significant rally in the Science Center Plaza drew over 150 students, where activists called for Harvard to sever its academic and financial links to Israel.[157] Protesters also pressured university administrators by organizing marches and delivering speeches, urging transparency in investments and academic partnerships with Israeli institutions.[158]

In addition to grassroots rallies, Harvard's student government was involved in pushing for divestment. A petition circulated by the PSC led to a referendum, asking undergraduates to vote on whether Harvard should divest from companies tied to Israel.[159] The petition quickly gathered the necessary signatures, and the referendum was set to take place within a few weeks.[160] However, Harvard's administration, including the Harvard Management Company, made it clear that it opposed calls for divestment, reiterating that boycotting Israel and its academic institutions did not align with university policies.[161]

Throughout the protests, Harvard maintained its position on upholding free speech while regulating protest activities to ensure campus safety and compliance with university guidelines.[162] University spokespersons declined to comment directly on the criticisms, but senior administrators, including interim President Alan Garber, reminded students about protest policies through formal communications.[163] This tension between student activism and administrative resistance continues to shape the debate on divestment and university governance at Harvard.

---

[156] Sally E. Edwards & Joyce E. Kim, *Pro-Palestine Groups Rally, Demand Harvard Divest Ties to Israel,* THE HARVARD CRIMSON (Feb. 9, 2024), https://www.thecrimson.com/article/2024/2/9/protest-harvard-divest-israel/.
[157] *Id.*
[158] Edwards & Kim, *supra* note 132
[159] Cam N. Srivastava & William Y. Tan, *Harvard Student Government Approves PSC Petition for Referendum on Israel Investment*, THE HARVARD CRIMSON (Apr. 10, 2024), https://www.thecrimson.com/article/2024/4/10/divestment-petition-israel-palestine/.
[160] *Id.*
[161] *Id.* ("A University statement released last week said that 'Harvard leadership has made clear that it opposes calls for a policy of boycotting Israel and its academic institutions.'").
[162] Edwards & Kim, *supra* note 132; *see also* Janet Lorin, Eliyahu Kamisher & Katia Porcekanski, *Harvard, Columbia Say No to Students Demanding Israel Divestment*, STARS AND STRIPES (Apr. 26, 2024), https://www.stripes.com/theaters/us/2024-04-26/harvard-columbia-students-divest-israel-13667375.html (discussing the efforts by universities to balance the need for campus safety with the goal of promoting free expression and open discourse).
[163] *Id.*

c. Analysis of Harvard's (Dis)Entanglement

Harvard University's response to the protests and calls for divestment following the events of October 7 drew significant national attention and sparked controversy, particularly in federal and state governments, the media, and public intellectual circles. Criticism of Harvard's response focused primarily on what many saw as a tepid initial reaction from the administration, exacerbated by subsequent events, including Harvard President Claudine Gay's appearance at a congressional hearing on antisemitism.[164]

Harvard initially faced backlash for its neutral stance and perceived failure to strongly condemn pro-Palestinian student groups that blamed Israel for the violence.[165] This criticism reached a boiling point when President Gay, alongside the presidents of MIT and the University of Pennsylvania, appeared before Congress on December 5, 2023.[166] During the hearing, Gay's responses to questions about free speech and antisemitism were widely viewed as evasive.[167] She and the other university leaders declined to definitively state whether calls for genocide against Jews violated their university's codes of conduct, prompting bipartisan condemnation from lawmakers, including Harvard alumni.[168]

The media, particularly outlets like *The Boston Globe*[169] and *Politico*,[170] extensively covered Gay's testimony and the subsequent fallout. Prominent public figures, including donors like Bill Ackman, openly criticized Harvard's handling of the situation, with some

---

[164] Andrew Silow-Carroll, *Many Jews Criticized Harvard's Oct. 7 Response. Fewer Are Applauding President Claudine Gay's Resignation.*, JEWISH TELEGRAPHIC AGENCY (Jan. 5, 2024 1:42 PM), https://www.jta.org/2024/01/05/united-states/many-jews-criticized-harvards-oct-7-response-fewer-are-applauding-president-claudine-gays-resignation; *Harvard University President Claudine Gay Resigns*, NPR (Jan 2, 2024 3:11 PM). https://www.npr.org/2024/01/02/1222516898/harvard-university-president-claudine-gay-resigns.

[165] Emma H. Haidar, et al., *Harvard's Gift Officers Are Worried About Backlash Over the School's Israel-Hamas Response. Here's Why.*, THE CRIMSON (Nov. 29, 2023 11:24 AM), https://www.thecrimson.com/article/2023/11/29/donor-backlash-israel-hamas-response/.

[166] *Harvard University President Claudine Gay Resigns*, NPR (Jan 2, 2024 3:11 PM). https://www.npr.org/2024/01/02/1222516898/harvard-university-president-claudine-gay-resigns.

[167] Andrew Silow-Carroll, *Many Jews Criticized Harvard's Oct. 7 Response. Fewer Are Applauding President Claudine Gay's Resignation.*, JEWISH TELEGRAPHIC AGENCY (Jan. 5, 2024 1:42 PM), https://www.jta.org/2024/01/05/united-states/many-jews-criticized-harvards-oct-7-response-fewer-are-applauding-president-claudine-gays-resignation (noting the "lawyerly" answers offered by President Gay).

[168] Miles J. Herszenhorn & Claire Yuan, *'I am Sorry': President Claudine Gay Addresses Backlash Over Congressional Testimony on Antisemitism,* THE HARVARD CRIMSON (Dec. 8, 2023), https://www.thecrimson.com/article/2023/12/8/gay-apology-congressional-remarks/?ref=stanfordreview.org.

[169] *See, e.g.,* Mike Damiano and Hilary Burns, *Harvard University Claudine Gay Resigns*, THE BOSTON GLOBE (Jan. 2, 2024), https://www.bostonglobe.com/2024/01/02/metro/claudine-gay-resignation/.

[170] *See, e.g.,* Eric Bazail-Eimil, et al., *Claudine Gay, First Black Woman President at Harvard, to Resign*, POLITICO (Jan 2, 2024 5:44 PM), https://www.politico.com/news/2024/01/02/harvard-claudine-gay-resign-00133459.

threatening to withdraw donations if the university did not take stronger action to protect Jewish students.[171] While Gay faced significant criticism, some within academic circles defended her cautious approach as a reflection of the complexity of balancing free speech with institutional neutrality.[172] In the wake of these events, Harvard faced ongoing congressional scrutiny and was called to submit documentation regarding its response to antisemitism on campus.[173]

The fallout from this situation ultimately led to Claudine Gay's resignation on January 2, 2024, marking the end of her brief tenure as Harvard's president.[174] Her resignation was welcomed by some Jewish students and donors, who had been calling for greater accountability, while others, including African American intellectuals like Cornel West, criticized her departure as being the result of undue pressure from powerful pro-Israel forces.[175] Gay's resignation highlighted the intersection of race, politics, and free speech issues at Harvard, complicating the narrative surrounding her leadership and the university's handling of the October 7 protests.[176]

Harvard's actions, including Gay's eventual resignation, were part of a broader reckoning with how U.S. universities handle issues of free speech, antisemitism, and political activism on campus, and they continue to reverberate both in the academic world and beyond.

2. University of Pennsylvania

The University of Pennsylvania (Penn), founded in 1740, is among the oldest higher education institutions in the United States. Established with a vision to blend practical and theoretical education, Penn became a pioneer in developing professional schools, such as the Wharton School of Business in 1881, the first of its kind. The university's influence

---

[171] Emma H. Haidar, et al., *Harvard's Gift Officers Are Worried About Backlash Over the School's Israel-Hamas Response. Here's Why.*, THE CRIMSON (Nov. 29, 2023 11:24 AM), https://www.thecrimson.com/article/2023/11/29/donor-backlash-israel-hamas-response/.

[172] Peter Pressman, *Opinion: In Defense of Claudine Gay and Academic Freedom*, PORTLAND PRESS HERALD (Jan. 7, 2024), https://www.pressherald.com/2024/01/07/opinion-in-defense-of-claudine-gay-and-academic-freedom/ ("three accomplished scholars and university presidents, including President Gay, fell into the trap of theoretically and intellectually trying to underscore the sanctity of free speech on campus.").

[173] Miles J. Herszenhorn & Claire Yuan, *Congress Opens Investigation Into Harvard Over Antisemitism on Campus*, THE HARVARD CRIMSON (Dec. 8, 2023), https://www.thecrimson.com/article/2023/12/8/congress-investigation-harvard/.

[174] Andrew Silow-Carroll, *Many Jews Criticized Harvard's Oct. 7 Response. Fewer Are Applauding President Claudine Gay's Resignation.*, JEWISH TELEGRAPHIC AGENCY (Jan. 5, 2024 1:42 PM), https://www.jta.org/2024/01/05/united-states/many-jews-criticized-harvards-oct-7-response-fewer-are-applauding-president-claudine-gays-resignation.

[175] *Id.*

[176] *See id.* (exploring the dialogue between various parties following President Gay's initial administrative response following Oct. 7 which in many cases centered around racial identity).

extends across a wide range of disciplines, including law, medicine, and business, shaping academic and professional standards in the U.S. and internationally. Its interdisciplinary approach, emphasizing both liberal arts and practical skills, has set a model that many other institutions have followed.

Penn has played an active role in various socio-political movements over time. During the Civil Rights Movement, the university became a hub for activism, with students and faculty supporting efforts for racial equality through protests and organizing. In the 1980s, Penn's decision to divest from companies involved in apartheid South Africa reflected its broader engagement with global justice issues. The university also witnessed significant anti-war protests during the Vietnam War, aligning with the broader national discourse around U.S. foreign policy and military actions.

In recent years, Penn has been involved in addressing contemporary socio-political challenges, particularly through its response to the Black Lives Matter movement. Following the 2020 protests against systemic racism, Penn launched initiatives aimed at increasing diversity and equity within its own community. The Task Force on Support for Faculty of Color and the Penn Medicine and University Health System's work on addressing racial health disparities are examples of how the university is responding to social justice movements. Additionally, Penn's sustainability initiatives, including its commitment to achieving carbon neutrality by 2042, reflect its engagement with global environmental issues.

As a prominent academic institution, Penn continues to contribute to both intellectual discourse and societal change. Its faculty, students, and alumni are actively involved in addressing pressing issues like climate change, economic inequality, and healthcare access. Through these efforts, Penn demonstrates its ongoing commitment to addressing not only historical socio-political concerns but also the evolving challenges of contemporary society.

a. Penn's Initial Administrative Statements

The University of Pennsylvania's initial administrative statement in response to the events of October 7 was delivered by President Liz Magill. In her official statement, Magill expressed deep sorrow over the violence in Israel and Gaza, offering support to those affected within the university community.[177] The tone of her message was compassionate,

[177] *See* Liz Magill & John L. Jackson, Jr., *War in the Middle East*, PENN TODAY (Oct. 10, 2023), https://penntoday.upenn.edu/announcements/war-middle-east; *A Message From President Liz Magill on the Terrorist Attacks in Israel*, PENN TODAY (Oct. 15, 2023), https://penntoday.upenn.edu/announcements/penns-response-recent-events-terrorist-attacks-in-israel.

focusing on the need for campus unity during a time of global conflict.[178] Magill emphasized that Penn is a place for open dialogue and respectful engagement with difficult topics.[179] The statement reaffirmed the university's commitment to ensuring the safety and well-being of all students, without taking a partisan stance on the conflict itself.

In addition to offering emotional and mental health resources for students, the administration highlighted existing structures to report any incidents of hate or discrimination that might arise in the aftermath of the violence.[180] No significant policy changes were announced at this stage, but the administration did stress the importance of fostering a respectful environment where diverse perspectives could be shared constructively.[181] The timing of the statement was relatively swift, appearing soon after the events unfolded, as the university sought to address growing concerns on campus and maintain a sense of community during an increasingly polarized global situation.

b. Penn Campus Protests and Calls for Divestment

Following the events of October 7, significant student activism emerged at the University of Pennsylvania, particularly calling for divestment from companies linked to Israel.[182] Pro-Palestinian groups, such as those organizing the "Gaza Solidarity Encampment,"[183] demanded that the university disclose its financial ties and divest from companies profiting from the conflict.[184] Penn's administration, led by interim president Dr. J. Larry Jameson, resisted calls for divestment but upheld the university's commitment to free speech while also addressing concerns about safety and campus policy.[185]

The university took measures to regulate protests, highlighting violations of campus policies, particularly regarding the encampment that had been set up on College Green.[186] While Jameson expressed support for open dialogue, he also emphasized that the encampment violated university rules, which led to police intervention and the eventual

---

[178] *See Id.*
[179] *See id.*
[180] *See id.*
[181] *See id.*
[182] Meir Rinde, *No Disruptions and Few Signs of Protest at University of Pennsylvania's Commencement*, BILLYPENN (May 20, 2024), https://billypenn.com/2024/05/20/university-of-pennsylvania-commencement-no-protests/.
[183] Diamy Wang, *The Graduation Issue 2024: Penn's Gaza Solidarity Encampment, From Beginning to End*, THE DAILY PENNSYLVANIAN (May 16, 2024), https://www.thedp.com/article/2024/05/penn-gaza-solidarity-encampment-recap.
[184] Ella Sohn, *A Look at the Pro-Palestine Encampment's Demands: Penn's Process Governing Disclosure and Divestment*, THE DAILY PENNSYLVANIAN (Apr. 28, 2024), https://www.thedp.com/article/2024/04/penn-divestment-endowment-explainer.
[185] *Id.*
[186] *Id.*

removal of the encampment.[187] Penn continued to balance its stance on free speech with campus safety, but its refusal to adopt divestment measures remained firm amid growing student activism.[188]

c. Analysis of Penn's (Dis)Entanglement

The University of Pennsylvania (UPenn) faced extensive national scrutiny following its response to student protests and calls for divestment after the events of October 7, 2023. President Liz Magill became a focal point for criticism, particularly following her testimony before Congress on December 5, 2023. During this hearing, Magill, along with the presidents of Harvard and MIT, was questioned about antisemitism on campus.[189] Her response to a question from Rep. Elise Stefanik (R-N.Y.)—whether calls for genocide against Jews constituted harassment under Penn's code of conduct—sparked outrage.[190] Magill's statement that it "depended on the context" was widely condemned by both Democrats and Republicans, including Pennsylvania Governor Josh Shapiro, who called her comments "shameful" and lacking in moral clarity.[191]

In the aftermath of the congressional hearing, Penn's Board of Trustees convened multiple emergency meetings to address the growing calls for leadership changes.[192] High-profile donors, including Jon Huntsman Jr., withdrew financial support, stating that Magill's leadership had damaged the university's reputation.[193] Republican lawmakers from Pennsylvania sent a formal letter demanding her resignation, citing her failure to adequately address antisemitism on campus.[194]

---

[187] *Id.*
[188] Neema Baddam & Katie Bartlett, *Penn Rebuffs Student Referendum Vote in Favor of Divestment From Israel*, THE DAILY PENNSYLVANIAN (June 27, 2024), https://www.thedp.com/article/2024/06/penn-muslim-student-association-referendum-vote.
[189] Michael Tanenbaum, *Penn President Liz Magill Responds to Backlash After Tense Congressional Hearing on Antisemitism*, PHILLY VOICE (Dec. 7, 2023), https://www.phillyvoice.com/penn-liz-magill-antisemitism-hearing-genocide-jewish-people-israel-gaza/.
[190] *Id.*
[191] *Id.*
[192] Jonah Miller, et al., *Live Updates: All the Events Leading Up to Penn President Liz Magill's Resignation*, THE DAILY PENNSYLVANIAN (Dec. 7, 2023), https://www.thedp.com/article/2023/12/penn-magill-resign-hearing-trustees
[193] Jared Mitovich, et al., *Huntsman Family, Longtime Penn Supporters, Will Halt Donations to 'Unrecognizable' University*, THE DAILY PENNSYLVANIAN (Oct. 15, 2023), https://www.thedp.com/article/2023/10/penn-jon-huntsman-jr-wharton-halts-donations-magill.
[194] *Id.*

On December 9, 2023, Magill resigned as Penn's president, a move that many saw as inevitable given the mounting pressure from both political figures and major donors.[195] Scott Bok, Chair of Penn's Board of Trustees, also resigned shortly thereafter.[196] This leadership turnover underscored the serious fallout from the university's perceived mishandling of the protests and the subsequent congressional oversight into campus antisemitism and free speech issues.

The national response to Penn's actions highlighted the deep divide between advocating for free speech and ensuring campus safety, particularly in the context of antisemitism and the Israel-Palestine conflict. Penn's ongoing challenges, including legal action from Jewish students and an investigation by the U.S. Department of Education, illustrate the long-term implications of this crisis.

3. University of Chicago

The University of Chicago, founded in 1890 by John D. Rockefeller, has been a major force in American higher education, renowned for its emphasis on rigorous academic inquiry and intellectual freedom. From its inception, the university sought to cultivate a climate of open debate and academic rigor, and its commitment to interdisciplinary research has produced significant contributions to fields ranging from economics to physics. The Chicago School of Economics, for instance, became famous for its neoliberal theories, which have shaped global economic policies for decades. The university's contributions to the Manhattan Project during World War II also cemented its role in global scientific and political developments, influencing the trajectory of the 20th century.

In addition to its academic achievements, the University of Chicago has played an important role in shaping socio-political discourse. During the Civil Rights Movement and the Vietnam War, the campus was a center for activism and debate, much like other prestigious institutions at the time. However, it is the university's strong defense of free speech, codified in the "Chicago Principles," that has distinguished it in the realm of socio-political affairs.[197] The Chicago Principles, adopted in 2014, are a set of guidelines affirming the university's commitment to free expression.[198] The principles assert that debate and dissent, even on controversial and divisive issues, are essential to the academic mission.

---

[195] Lauren Markoe, *University of Pennsylvania President Resigns After Widely-Panned Remarks About Jewish Genocide*, FORWARD (Dec. 9, 2023), https://forward.com/fast-forward/572966/liz-magill-university-pennsylvania-president-resigns-jewish-genocide-remarks-congress/.
[196] Lauren Markoe, *University of Pennsylvania President Resigns After Widely-Panned Remarks About Anti-Semitism*, FORWARD (Dec. 9, 2023), https://forward.com/fast-forward/572966/liz-magill-university-pennsylvania-president-resigns-jewish-genocide-remarks-congress/.
[197] *See* Free Expression, UNIV. CHICAGO, https://freeexpression.uchicago.edu (last visited Sept. 15, 2024).
[198] *See id.*

This policy has since become a model for other institutions, reinforcing the university's stance that intellectual engagement must not be stifled, regardless of the discomfort it may cause.

The university's influence on global affairs is evident in its production of scholars, policymakers, and activists who have shaped the political landscape. Notable alumni include Nobel laureates such as Milton Friedman and Barack Obama, both of whom have had a profound impact on global economic and political thought. The Chicago School's focus on free-market policies continues to shape international economic practices, while the university's political science and law programs have influenced discussions on governance and constitutionalism around the world.

In recent years, the University of Chicago has maintained its leadership in intellectual and moral debates by standing firm on its free speech policies, even amid growing tensions around political correctness and campus activism. As global issues such as free speech, climate change, and social justice dominate public discourse, the University of Chicago remains a beacon for those advocating for intellectual freedom and the unflinching pursuit of truth. The Chicago Principles continue to guide the university's response to contemporary challenges, reinforcing its position as a champion of open debate and academic integrity in a complex global landscape.

a. Chicago's Initial Administrative Statement

The University of Chicago's initial administrative statement in response to the events of October 7 adhered closely to its longstanding principles of free expression. University President Paul Alivisatos did not issue a politically charged statement, instead reinforcing the institution's commitment to free speech and open dialogue. The official response, which came shortly after the attacks, emphasized the university's dedication to allowing a wide range of views to be expressed on campus, consistent with the "Chicago Principles" that prioritize academic freedom.[199] The tone of the statement was neutral, with a focus on creating an environment conducive to respectful discourse.[200] The university also reminded the campus community of the resources available for students affected by the events and reiterated its commitment to the safety and well-being of all students.[201]

---

[199] *See* News Announcement, *Support for the University Community,* THE UNIV. CHICAGO CAMPUS & STUDENT LIFE (Oct. 9, 2023), https://csl.uchicago.edu/news/article/support-for-the-university-community-israel/.
[200] *See id.*
[201] *See id.*

b. Chicago Campus Protests and Calls for Divestment

Following the events of October 7, significant student activism erupted at the University of Chicago.[202] These protests, which included daily demonstrations on the campus quad, specifically called for the university to divest from companies linked to Israel, particularly weapons manufacturers that allegedly supported Israeli military actions.[203] Protesters drew attention to the university's investments in companies like General Dynamics and criticized the administration for its financial ties to corporations they associated with the conflict in Gaza.[204]

The protesters set up an encampment on the main quad as a form of direct action, demanding both divestment and greater transparency regarding the university's investments.[205] While the administration initially allowed the encampment to proceed under the banner of free expression,[206] it eventually ordered the removal of the encampment, citing violations of campus policies.[207] University President Paul Alivisatos underscored the importance of free speech but highlighted that such activities needed to comply with university regulations.[208]

Despite the university's stated commitment to neutrality—grounded in its historical "Kalven Report," which emphasizes institutional neutrality on political issues[209]—the student activists argued that investments in Israeli military contractors were inherently political and conflicted with the university's stated values of human rights.[210] Counterprotests also took place, with students carrying Israeli flags confronting the

---

[202] Peter Maheras, et al., *Pro-Palestine Protesters Hold Quad Rally and March Through Campus*, THE CHICAGO MAROON (Apr. 26, 2024), https://chicagomaroon.com/42179/news/pro-palestine-protesters-hold-quad-rally-and-march-through-campus/.
[203] *Id.*
[204] *Id.*
[205] *See* Mary Norkol, *University of Chicago Pro-Palestinian Encampment Cleared by Police*, CHICAGO SUN-TIMES (May 7, 2024), https://chicago.suntimes.com/israel-hamas-war/2024/05/07/pro-palestinian-encampment-university-of-chicago-tear-down; *see also* Paul Alivisatos, *Concerning the Encampment*, UNIV. CHICAGO OFFICE OF THE PRESIDENT, https://president.uchicago.edu/en/from-the-president/messages/240429-concerning-the-encampment.
[206] Alivisatos, *supra* note 181.
[207] Paul Alivisatos, *Ending the Encampment*, UNIV. CHICAGO OFFICE OF THE PRESIDENT, https://president.uchicago.edu/en/from-the-president/messages/2405207-ending-the-encampment.
[208] *Id.*
[209] Kalven Committee, *Report on the University's Role in Political and Social Action*, UNIV. CHICAGO OFFICE OF THE PROVOST (Nov. 11, 1967), https://provost.uchicago.edu/sites/default/files/documents/reports/KalvenRprt_0.pdf.
[210] Kevin Hu, *Chicago Students Join National Wave of Pro-Palestine University Protests*, SOUTH SIDE WEEKLY (Dec. 7, 2023), https://southsideweekly.com/chicago-students-join-national-wave-of-pro-palestine-university-protests/.

demonstrators, although these interactions remained largely peaceful with university police ensuring that tensions did not escalate further.[211]

c. Analysis of Chicago's (Dis)Entanglement

The University of Chicago's response to the post-October 7 protests, was met with mixed reactions from both the public and media. The protests, which included an encampment on the main campus quad, called for the university to divest from companies linked to Israel, such as General Dynamics and Boeing.[212] Protesters highlighted UChicago's financial ties to defense contractors, accusing the university of being complicit in the violence in Gaza.[213]

The administration, led by President Paul Alivisatos, maintained its long-standing commitment to free speech, allowing protests to continue within campus guidelines but dismantling the encampment after nine days, citing university regulations.[214] While the administration emphasized the need for dialogue, critics, including protestors, argued that the university's financial ties to companies involved in the conflict contradicted its claim to neutrality.[215]

The national response to UChicago's handling of the protests reflected broader debates about university investment policies. Media outlets, including *The Chicago Maroon*, detailed the university's refusal to bow to calls for divestment while upholding student protest rights.[216] However, no significant turnover or resignations resulted from the university's response, contrasting with the fallout seen at other institutions like Harvard and UPenn. UChicago continues to face calls for divestment, but its leadership has remained firm in its stance against taking a political position through its investment strategies.

4. Columbia University

Columbia University, founded in 1754 as King's College, is one of the oldest higher education institutions in the United States.[217] Located in New York City, it has played a

---

[211] Violet Miller, et al., *University of Chicago Officials, Protestors Hit Impasse Over Pro-Palestinian Encampment*, CHICAGO SUN-TIMES (May 3, 2024), https://chicago.suntimes.com/israel-hamas-war/2024/05/03/university-of-chicago-officials-pro-palestinian-protesters-encampment-impasse.
[212] Maheras, *supra* note 178.
[213] *Id.*; *see also* Hu, *supra* note 152
[214] Maroon Staff, *Police Raid Quad Encampment on Ninth Day*, CHICAGO MAROON (May 7, 2024), https://chicagomaroon.com/43133/news/live-updates-pro-palestine-encampment-enters-ninth-day-on-quad/.
[215] *See* Hu, *supra* note 186.
[216] *See, e.g.,* Maheras, *supra* note 178
[217] History of Columbia University, https://www.columbia.edu/content/university-history, (last visited Sept. 1, 2024).

significant role in advancing research and scholarship in various academic disciplines.[218] Over its long history, Columbia has developed a reputation for academic rigor and has contributed to fields such as journalism, law, medicine, and international relations.[219] The university's faculty and alumni include a wide range of notable figures, including Nobel laureates, Supreme Court justices, and leaders in government and business.[220]

Columbia has also been involved in key socio-political events, particularly during the 1960s. The 1968 student protests, which focused on issues such as the university's involvement in military research and plans to build a segregated gym in Morningside Park, brought national attention to questions of civil rights and university governance.[221] These protests, which culminated in a weeks-long occupation of campus buildings, marked a significant moment in the broader student movement of the time. Columbia's history of engagement with social issues continues today, particularly through its School of International and Public Affairs (SIPA), which has had a long-standing impact on global policy discussions.[222]

Columbia's contributions to higher education are evident in its well-regarded graduate programs and research centers, which attract scholars from around the world. The university also administers the Pulitzer Prizes, furthering its influence in the field of journalism.[223] Columbia has traditionally supported academic freedom, fostering open debate on issues such as climate change, economic inequality, and international relations. Its research initiatives often contribute to policy discussions on global challenges, such as healthcare access and environmental sustainability.

In response to contemporary global issues, Columbia has taken steps to address matters such as social justice and environmental responsibility. Following the 2020 Black Lives Matter protests, the university announced several initiatives aimed at improving diversity and combating racial inequities.[224] Additionally, Columbia remains involved in climate research and has made public commitments to sustainability.[225] The university's response

---

[218] *Id.*
[219] *Id.*
[220] *Id.*
[221] *Id.*
[222] History of Columbia University, https://www.columbia.edu/content/university-history, (last visited Sept. 1, 2024).
[223] Seymour Topping, Sig Gissler, and Sean Murphy, *History of the Pulitzer Prizes*, THE PULITZER PRIZES (last visited Sept. 1, 2024), https://www.pulitzer.org/page/history-pulitzer-prizes.
[224] *See, e.g., Diversity, Equity, and Inclusion Committee's Statement and Report on DEI-related Activities in Our Department Over the Past Year*, COLUM. UNIV. DEPT. OF PSYCHOLOGY (last visited Sept. 1, 2024), https://psychology.columbia.edu/news/diversity-equity-and-inclusion-committees-statement-and-report-dei-related-activities-our.
[225] *Plan 2030,* SUSTAINABLE COLUMBIA (last visited Aug. 30, 2024), https://sustainable.columbia.edu/content/plan-2030.

to these issues reflects its ongoing efforts to engage with and address current socio-political challenges.

a. Columbia's Initial Administrative Statement

Columbia University's initial administrative statement in response to the events of October 7 was delivered by President Minouche Shafik. In her statement, Shafik expressed deep concern for the violence in Israel and Gaza, calling for peace and reflection.[226] The tone of the message was measured, focusing on the need for unity within the campus community while avoiding a direct political stance.[227] Shafik emphasized the importance of free expression and respect for differing viewpoints, stating that Columbia is committed to fostering thoughtful dialogue during challenging times.[228] Immediate actions included ensuring that mental health resources were available for students affected by the conflict, as well as reinforcing safety and support measures on campus.[229]

b. Columbia Campus Protests and Calls for Divestment

Following the events of October 7, Columbia University became a focal point for significant student-led activism and protests, particularly advocating for divestment from companies tied to Israel.[230] Organized by groups such as Columbia University Apartheid Divest (CUAD), students called for the university to divest from companies they claimed were complicit in Israeli military actions, including McDonald's, Airbnb, and Texaco.[231] The protests intensified when the Columbia College Student Council (CCSC) passed a resolution to boycott companies that supported Israel and initiated a referendum for the entire student body to vote on university divestment.[232] This referendum was expanded to

---

[226] *See* Announcement, Columbia Office of the President, Message of Concern for Our Community (Oct. 9, 2023). https://president.columbia.edu/news/message-concern-our-community.
[227] *See id.*
[228] *Id.*
[229] *See id.*
[230] Daniel Henninger, The Cookie-Cutter Campus Protests: Anti-Israel Students, WALL STREET JOURNAL (Oct. 2023), https://www.wsj.com/articles/the-cookie-cutter-campus-protests-anti-israel-students-dcfdeb9b?st=7il2q5r3d648wbu&reflink=desktopwebshare_permalink. (exploring the protest activities at Columbia); Tawnell D. Hobbs, et. al., *Student Campus Protests and Veteran Activist Groups*, WALL STREET JOURNAL (Oct. 2023), https://www.wsj.com/us-news/education/student-campus-protests-veteran-activist-groups-17ccd094?st=xjhlmq5my8lsgoc&reflink=desktopwebshare_permali.nk (exploring the extent of campus protests and the involvement of left wing organizations at universities across the country, including Columbia).
[231] Oscar Noxon & Noah Bernstein, *CCSC Approves Referendum on Boycott from Israel, Adopts Boycott Strategy*, COLUMBIA SPECTATOR (Mar. 4, 2024 12:45 PM), [hereinafter CCSC Referendum] https://www.columbiaspectator.com/news/2024/03/04/ccsc-approves-referendum-on-divestment-from-israel-adopts-boycott-policy/.
[232] *Id.*

include several other schools at Columbia, including Barnard College and the School of General Studies.[233]

The demands of these student groups included divesting all university funds from companies profiting from Israel's actions, canceling Columbia's planned Tel Aviv Global Center, and ending the Dual Degree Program between Columbia University and Tel Aviv University.[234] These actions were framed by student activists as part of a broader movement to advocate for Palestinian liberation and criticize the university's financial ties to companies linked to Israel.[235]

Columbia University's administration, led by President Minouche Shafik, did not concede to the demands for divestment.[236] Instead, the university reiterated its commitment to upholding free speech and allowing student expression within the bounds of university policy.[237] The protests, however, led to continued debates on campus about the university's ethical responsibilities and involvement with Israel.

c. Analysis of Columbia's (Dis)Entanglement

Columbia University's handling of the protests and calls for divestment following the events of October 7 has garnered significant national attention and criticism. The protests, led by the group Columbia University Apartheid Divest and supported by various student organizations, centered around demands for the university to sever its financial ties with companies linked to Israel.[238] The protests, which included encampments on campus, culminated in confrontations with university administration and law enforcement.[239]

Columbia President Minouche Shafik faced intense criticism for authorizing the use of New York Police Department (NYPD) officers to dismantle a pro-Palestinian student

---

[233] *See* Harriet Engelke, *Columbia College Student Council Votes to Boycott Companies Supporting Israel And Pass a Divestment Referendum, Other Schools Follow Suit*, BWOG (Mar. 5, 2024), https://bwog.com/2024/03/columbia-college-student-council-votes-to-boycott-companies-supporting-israel-and-pass-a-divestment-referendum-other-schools-follow-suit/.
[234] *See* CCSC Referendum*, supra* note 207.
[235] *See id.*
[236] Matt Barnum & Juliet Chung, *Protestors Are Demanding that Colleges Divest from Israel. Here's Why That's Not Happening.* WALL STREET JOURNAL (Apr. 25, 2024), https://www.wsj.com/us-news/colleges-reject-divestment-demands-israel-fbb7a8fc?mod=article_inline.
[237] Statement, Columbia Office of the President, Statement From Columbia University President Minouche Shafik (Apr. 29, 2024), https://president.columbia.edu/news/statement-columbia-university-president-minouche-shafik-4-29.
[238] *See* discussion *supra* Section IV.B.4.b
[239] Melissa Korn & Douglas Belkin, *Columbia University President Resigns*, WALL STREET JOURNAL (Aug. 14, 2024 10:00 PM), https://www.wsj.com/us-news/education/columbia-university-president-minouche-shafik-resigns-f683cd80?st=udfrqeiez7hqd98&reflink=desktopwebshare_permalink (exploring the decision by Columbia to involve law enforcement)

encampment, leading to the arrest of over 100 students.[240] The university's decision to involve law enforcement was condemned by many faculty members and student organizations, further escalating tensions.[241] In response, hundreds of faculty members issued statements condemning Shafik's tactics, and many walked out in support of their students.[242] Shafik defended her actions by citing the need to maintain the university's operational integrity, claiming the protests posed a "clear and present danger" to campus functions.[243]

The fallout from these events was profound. Shafik, facing mounting pressure from both within the university and from public intellectuals, announced her resignation in August 2024, becoming the fifth Ivy League president to step down in the wake of campus protests over the Israel-Hamas conflict.[244] Shafik acknowledged the difficulty of her position, stating that the turmoil had taken a considerable toll on her family and the university community.[245] The protest group Students for Justice in Palestine welcomed her resignation, issuing statements that future leadership should heed student demands for divestment or face similar consequences.[246]

Shafik's resignation followed a string of other administrative departures, including three deans who resigned after their involvement in controversial communications regarding the protests came to light.[247] Columbia's response to the protests, and particularly the involvement of law enforcement, became a focal point of criticism from both Democratic and Republican politicians, as well as media outlets across the spectrum. Despite the leadership changes, the university maintained its refusal to divest from Israeli-linked companies, citing the complexity of its financial and academic relationships.[248]

---

[240] Sonel Cutler, Alecia Taylor, and Amelia Benavides-Colón, *Here's Where Student Protestors Have Demanded Divestment from Israel*, THE CHRONICLE OF HIGHER EDUCATION (Apr. 2024), https://www.chronicle.com/article/heres-where-student-protesters-are-demanding-divestment-from-israel ("Many of the student protests took the form of 'Gaza solidarity encampments' or 'liberated zones,' inspired by pro-Palestinian student protesters at Columbia University, where more than 100 protesters were arrested on April 18").
[241] *Columbia University President Resigns Following Backlash Over Gaza Protests*, PRESSTV (Aug. 15, 2024 8:38 AM), https://www.presstv.ir/Detail/2024/08/15/731400/Colombia-university-president-resign-Gaza-protest.
[242] *Id.*
[243] *Id.*
[244] *See* source cited *supra* note 217.
[245] *Columbia President Resigns Amid Criticism Over Her Response to Anti-Israel Protests*, THE TIMES OF ISRAEL (Aug. 15, 2024), https://www.timesofisrael.com/columbia-president-resigns-amid-criticism-over-her-response-to-anti-israel-protests/.
[246] *Id.* ("To be clear, any future president who does not pay heed to the Columbia student body's overwhelming demand for divestment will end up exactly as President Shafik did . . . ").
[247] *See* source cited *supra* note 217.

This series of events has had a lasting impact on Columbia's public image and has sparked broader discussions about the role of universities in handling politically charged protests and balancing free speech with institutional responsibility.

5. UCLA

The University of California, Los Angeles (UCLA), established in 1919, has grown into one of the largest and most respected public research universities in the United States. As part of the prestigious University of California system, UCLA has made significant contributions to academia across various disciplines, including medicine, law, engineering, and the arts. It has also played a prominent role in shaping higher education in California, making advanced education more accessible to diverse populations, which has significantly impacted the social and economic landscape of the state.

UCLA's history is closely intertwined with key socio-political movements in the United States. During the Civil Rights Movement, UCLA was a hub for activism, with students and faculty participating in protests and demonstrations advocating for racial equality. The university became a focal point during the Free Speech Movement in the 1960s, reflecting broader national debates on civil liberties and academic freedom. UCLA has also been involved in labor rights movements, with students and staff advocating for better working conditions for campus employees, further highlighting the university's engagement in socio-political issues.

More recently, UCLA has been actively involved in addressing contemporary social movements, particularly the Black Lives Matter (BLM) movement. Following the protests in 2020, UCLA implemented several initiatives to address systemic racism, including the formation of a Task Force on Advancing Racial Equity and the expansion of its Center for the Study of Racism, Social Justice, and Health. These actions are part of a broader effort to promote diversity, equity, and inclusion (DEI) on campus. UCLA has also taken significant steps to foster a more inclusive environment for historically underrepresented groups, making changes to admissions policies and increasing funding for DEI-related programs.

In addition to its work on social justice, UCLA has demonstrated a strong commitment to global challenges such as climate change and sustainability. The university has pledged to achieve carbon neutrality by 2025 as part of the University of California's system-wide initiative. UCLA's Sustainable LA Grand Challenge is another notable effort, bringing together researchers and policymakers to tackle environmental issues in the Los Angeles region with the goal of making the city fully sustainable by 2050. These initiatives showcase UCLA's leadership in addressing both local and global environmental concerns.

Through its historical and contemporary engagements, UCLA continues to shape public discourse on issues of justice, equality, and sustainability. The university's intellectual and moral leadership, as demonstrated by its involvement in social movements, research contributions, and public policy initiatives, reflects its ongoing commitment to addressing the challenges of both the past and the present.

a. UCLA's Initial Administrative Statement

UCLA's initial administrative statement in response to the events of October 7 was delivered by Chancellor Gene Block on October 9.[249] In his statement, issued soon after the attacks, Block expressed deep sadness over the violence in Israel and Gaza and called for compassion within the campus community. The tone of the message was measured and neutral, focusing on the need for peace and unity. He stated, "Violence, hate, and prejudice have no place at UCLA." The administration emphasized its commitment to supporting students through mental health services and reinforced campus safety measures. No immediate political stance was taken, with the statement focusing on maintaining a respectful environment for dialogue. UCLA Campus Protests and Calls for Divestment.

b. UCLA's Campus Protests and Calls for Divestment

After the events of October 7, student activism at UCLA surged, particularly through calls for divestment from companies linked to Israel. The protests were led by organizations like Students for Justice in Palestine (SJP) and the UC Divest Coalition, which rallied students on campus to demand the university cut financial ties with corporations accused of supporting Israel's military actions.[250] A notable rally occurred where students gathered to denounce the university's investments and support for companies allegedly complicit in the violence in Gaza.[251] Speakers at the rally invoked divestment as a successful method of bringing about social change, drawing parallels to past movements like those against apartheid in South Africa.[252]

The student government at UCLA responded to these demands by passing resolutions calling for the University of California system, including UCLA, to divest from companies

---

[249] UCLA Chancellor, University Statements on Violent Attacks Abroad, https://chancellor.ucla.edu/messages/university-statements-on-violent-attacks-abroad/.
[250] Dylan Winward, *Student Organizations Hold Rally Demanding UCLA's Divestment From Israel*, DAILY BRUIN (Feb. 8, 2024), https://dailybruin.com/2024/02/08/student-organizations-host-rally-demanding-uclas-divestment-from-israel.
[251] *Id.*
[252] *Id.*

doing business with Israel.[253] However, UCLA's administration, led by Chancellor Gene Block, made it clear that the university and the UC Board of Regents would not support divestment from Israel.[254] In his official statement, Block reiterated the administration's position against divestment, citing the university's commitment to academic freedom and the unfettered exchange of ideas.[255] He stressed that divestment decisions should be made with fairness and should not single out any one country, underscoring that the Board of Regents had previously rejected calls for similar actions.

The protests were closely monitored by university officials, who ensured that protest activities complied with campus policies on free speech and assembly.[256] Security measures were also heightened to manage potential clashes between pro-divestment protesters and counter-protesters supporting Israel.[257]

c. Analysis of UCLA's (Dis)Entanglement

UCLA's response to the post-October 7 protests, particularly those advocating for divestment from Israel, sparked national scrutiny and significant media attention. Led by pro-Palestinian groups, protests on campus called for UCLA to divest from companies linked to Israel.[258] Chancellor Gene Block testified before Congress in May 2024, where he faced criticism for the university's handling of these protests, particularly regarding violence and antisemitic incidents.[259] While UCLA maintained its stance against divestment, citing academic freedom and policy consistency across the University of California system, the administration faced criticism for the delayed response in addressing campus unrest.[260] This led to increased security on campus, heightened

---

[253] *UCLA Students Pass Israel Divestment Resolution*, THE TIMES OF ISRAEL (Nov. 19, 2023), https://www.timesofisrael.com/ucla-students-pass-israel-divestment-resolution/.
[254] News Statement, *UCLA Statement on Resolutions by Student Government Associations*, UCLA NEWSROOM (Feb. 21, 2024), https://newsroom.ucla.edu/ucla-statement-on-resolutions-by-student-government-associations.
[255] *Id.*
[256] *See Affirming Our Values in a Challenging Time*, UCLA CHANCELLOR (Apr. 30, 2024), https://chancellor.ucla.edu/messages/affirming-our-values-in-a-challenging-time/ (hereinafter 'Affirming Values').
[257] *See id.*
[258] *See* Winward, *supra* note 225.
[259] Shaanth Kodialam, *Gene Block Faces Scrutiny Over Protests Response in Congress Antisemitism Hearing*, DAILY BRUIN (May 25, 2024), https://dailybruin.com/2024/05/23/gene-block-faces-backlash-over-protest-response-in-congress-antisemitism-hearing.
[260] Christine Mai-Duc, *UCLA Chancellor Widely Criticized for Slow Response to Campus Violence*, THE WALL STREET JOURN. (May 3, 2024), https://www.wsj.com/us-news/ucla-chancellor-gene-block-criticism-protests-80c6ba2b.

oversight, and policy reviews to ensure campus safety and free speech.[261] Chancellor Block resigned at the end of this turbulent academic year.

6. Cornell University

Cornell University, founded in 1865, holds a unique place in American higher education as a private Ivy League institution with a land-grant mission, allowing it to combine elite academic scholarship with a commitment to public service. Established by Ezra Cornell and Andrew Dickson White, Cornell was founded on principles of inclusivity, aiming to provide education for all regardless of race, gender, or socioeconomic background. This forward-thinking mission has guided the university's historical development and continues to shape its influence in both academia and broader societal issues.

Throughout its history, Cornell has been involved in key socio-political movements and events. During the 1960s, the university played a significant role in the national discourse on civil rights and the Vietnam War. In 1969, the occupation of Willard Straight Hall by Black students protesting racism on campus marked a defining moment in Cornell's history. The event not only brought national attention to racial issues in higher education but also led to lasting changes in university policy, including the creation of the Africana Studies and Research Center. This incident was emblematic of Cornell's engagement with the larger civil rights movement and its willingness to confront institutional challenges related to race and equity.

In more recent years, Cornell has actively engaged with contemporary social movements, such as Black Lives Matter. Following the nationwide protests in 2020, Cornell established a series of initiatives to address racial inequality, including the launch of the Cornell Faculty Task Force to Advance Racial Equity and the development of new curricula focused on race and social justice. The university has made efforts to enhance diversity, equity, and inclusion (DEI) across campus, with measures such as increasing scholarships for underrepresented students and expanding programs to support DEI-related research and teaching.

Cornell has also demonstrated a strong commitment to addressing global challenges like climate change and sustainability. The university aims to achieve carbon neutrality by 2035, as part of its Climate Action Plan, and it has implemented numerous sustainability initiatives across its campuses. Cornell's Atkinson Center for Sustainability is a leading institution for interdisciplinary research on environmental issues, partnering with public and private sectors to develop solutions for sustainable development worldwide.

---

[261] *See* Affirming Values, *supra* note 231.

Through its historical engagements in socio-political affairs and its ongoing efforts to address contemporary challenges, Cornell University exemplifies its commitment to intellectual and moral leadership. Its responses to movements like Black Lives Matter, as well as its work on global sustainability, highlight its continuing influence in shaping public discourse and contributing to societal change. This dual focus on both academic excellence and public service remains at the core of Cornell's mission, reinforcing its role as a leader in higher education and global affairs.

a. Cornell's Initial Administrative Statement

Cornell University's initial administrative statement in response to the events of October 7 was issued by President Martha E. Pollack.[262] In her statement, Pollack expressed sorrow for the violence in Israel and Gaza, while underscoring the need for empathy and support within the Cornell community.[263] The tone of the statement was neutral and focused on healing, stating, "Our thoughts are with all those affected by the violence."[264] Pollack also emphasized that Cornell is a place for open dialogue and respectful exchange of ideas, while offering mental health resources and reaffirming the university's commitment to campus safety.[265]

b. Cornell's Campus Protests and Calls for Divestment

Following the events of October 7, student activism at Cornell University intensified, with significant calls for divestment from companies tied to Israel. The primary organizing group, the Coalition for Mutual Liberation (CML), led protests and sit-ins demanding that Cornell divest its $10 billion endowment from corporations they claimed were complicit in supporting Israel's military actions in Gaza.[266] Specifically, CML targeted companies such as BAE Systems, Boeing, Lockheed Martin, and others linked to arms manufacturing for the Israeli military.[267] Additionally, the group demanded that Cornell terminate its partnership with the Technion-Israel Institute of Technology, which they argued played a role in supporting Israel's military efforts.[268]

---

[262] University Statement, Cornell University, Response to the Terrorism in Israel (Oct. 10, 2023) https://statements.cornell.edu/2023/20231010-world-events.cfm
[263] *Id.*
[264] *See id.*
[265] *Id.*
[266] Arvind Dilawar, *Cornell Students Push for Divestment From Companies Arming Israel*, THE PROGRESSIVE MAGAZINE (Feb. 13, 2024), https://progressive.org/latest/cornell-students-push-for-divestment-from-companies-arming-israel-dilawar-20240213/
[267] *Id.*
[268] *Id.*

These student protests were accompanied by a formal resolution introduced in the Student Assembly, which called on the university to divest from companies involved in what was described as "morally reprehensible actions" in Gaza.[269] Despite these efforts, the resolution was ultimately rejected by the Student Assembly with a 16-4 vote.[270] The administration, led by President Martha Pollack, also declined to pursue divestment, citing the university's divestment guidelines, which require a company's actions to meet a high threshold of being deemed "morally reprehensible" by the Board of Trustees.[271] Pollack also referenced New York state law, which prohibits penalizing companies for doing business with Israel, complicating the feasibility of such demands.[272]

Despite the rejection, student protests continued, with activists organizing additional demonstrations and pushing for further action. However, Cornell's administration remained firm in its stance, emphasizing the university's role as a neutral academic institution and expressing support for open dialogue while maintaining its financial policies.[273]

c. Analysis of Cornell's (Dis)Entanglement

Cornell University's response to the student protests and calls for divestment from companies linked to Israel after the events of October 7 drew considerable attention from the national public, media, and government. The protests, led by groups like the Coalition for Mutual Liberation (CML), escalated in intensity, with students demanding that the university divest from defense contractors such as Lockheed Martin, Raytheon, and other companies alleged to be complicit in Israel's military actions in Gaza.[274] Nearly 70% of students who participated in a referendum voted in favor of divestment, highlighting significant student support for the movement.[275]

President Martha Pollack, while acknowledging the students' concerns, maintained that the university would not pursue divestment.[276] In an official statement, Pollack cited the

---

[269] Julie Senzon, *Student Assembly Rejects Israel Divestment Resolution,* THE CORNELL DAILY SUN (Feb. 1, 2024), https://cornellsun.com/2024/02/01/student-assembly-rejects-israel-divestment-resolution/.
[270] *Id.*
[271] Senzon, *supra* note 244.
[272] Matt Dougherty, *Cornell President Rejects Student Referendum Calling for Ceasefire and Divestment*, ITHACA TIMES (June 19, 2024), https://www.ithaca.com/news/ithaca/cornell-president-rejects-student-referendum-calling-for-ceasefire-and-divestment/article_dc73ded2-1f75-11ef-b5e1-8feb31543db5.html.
[273] *See* Dougherty, *supra* note 247.
[274] Dilawar, *supra* note 241.
[275] Matt Dougherty, *Cornell Students Approve Resolution Calling for University to Divest from Weapons Manufacturers and Support a Ceasefire in Gaza*, ITHACA TIMES (Apr. 22, 2024), https://www.ithaca.com/news/cornell-students-approve-resolution-calling-for-university-to-divest-from-weapons-manufacturers-and-support-a/article_4044a630-0117-11ef-8e69-f34850aead99.html.
[276] Dougherty, *supra* note 247.

importance of the university's endowment in funding its core academic mission and expressed concerns about singling out Israel when there were no equivalent divestment demands for other countries involved in military conflicts.[277] Pollack also pointed to legal constraints under New York state law, which prohibits certain actions targeting Israel under Executive Order 157.[278] Her response emphasized Cornell's role as a neutral academic institution that does not take political stances on complex geopolitical matters, while still allowing space for student expression and dialogue.

National media, including outlets like *The Ithaca Voice* and *The Cornell Daily Sun*, covered the protests extensively, noting both the administrative responses and the ongoing sit-ins and rallies organized by students. The protests sparked further debates on campus, particularly around free speech and safety, with some activists facing disciplinary hearings for violating Cornell's "Interim Expressive Activity Policy," which restricts where and when protests can occur on campus.[279] Faculty members criticized this policy, claiming it disproportionately affected marginalized voices, particularly those advocating for Palestinian rights.[280]

The national reaction was mixed, with some praising the university for upholding free expression, while others, particularly pro-Palestinian activists, condemned the administration's refusal to divest. President Pollack resigned amid this controversy.

Cornell's measured but firm stance reflects the challenges universities face when balancing student activism, institutional neutrality, and legal constraints in highly politicized contexts.

7. MIT

The Massachusetts Institute of Technology (MIT), founded in 1861, is recognized as one of the world's leading institutions for scientific and technological research. Established with a mission to advance knowledge and educate students in science, technology, and other areas of scholarship, MIT has played a crucial role in the development of modern engineering and innovation. Throughout its history, MIT has made significant contributions to both academic advancements and societal progress, particularly in fields such as

---

[277] *Id.*
[278] *Id.*
[279] Maggie Hicks, *Private Colleges Hope New Speech Policies Will Keep the Peace*, THE CHRONICLE OF HIGHER EDUCATION (Feb. 2024) https://www.chronicle.com/article/private-colleges-hope-new-speech-policies-will-keep-the-peace (explaining new speech and protest regulations adopted by universities across the country, including Cornell's Interim Expressive Activity Policy).
[280] Christina MacCorkle, *Faculty Members Continue to Denounce Interime Expressive Activity Policy's Ambiguity, Restrictiveness*, THE CORNELL DAILY SUN (Mar. 4, 2024), https://cornellsun.com/2024/03/04/faculty-members-continue-to-denounce-interim-expressive-activity-policys-ambiguity-restrictiveness/.

computer science, aerospace, and biotechnology. The university's approach has always been deeply pragmatic, focusing on the application of knowledge to solve real-world problems, which has helped position it at the forefront of technological development.

MIT's historical significance is also evident in its involvement with major socio-political events. During World War II, MIT contributed to the war effort through the development of radar technology and played a key role in the Manhattan Project. In the post-war period, the university's research was central to the Cold War arms race, shaping U.S. military and space policy. The institute has also been a site of political activism, especially during the Vietnam War, when students and faculty protested the university's involvement in military research. This activism led to significant changes, including a broader reflection on the ethical implications of research and development in technology.

In recent years, MIT has been actively involved in addressing contemporary socio-political movements. The university responded to the Black Lives Matter (BLM) movement by launching several initiatives aimed at promoting racial justice and addressing systemic racism. In 2020, MIT formed the MIT Task Force on Campus and Community to work on advancing diversity, equity, and inclusion (DEI) across the institution. Additionally, MIT's Institute Community and Equity Office (ICEO) has expanded programs to improve recruitment and retention of underrepresented minorities in both student and faculty populations, reflecting the university's ongoing commitment to DEI principles.[281]

MIT has also been a global leader in addressing climate change and sustainability. The university's Plan for Action on Climate Change, launched in 2015, outlines strategies for MIT to contribute to decarbonizing the global economy.[282] The institute has committed to achieving carbon neutrality by 2026 and is at the forefront of research on renewable energy, sustainable cities, and climate resilience.[283] MIT's Climate and Sustainability Consortium brings together academic and industry leaders to accelerate solutions to global environmental challenges, positioning the university as a key player in the global sustainability movement.[284]

Overall, MIT's intellectual and moral leadership is reflected in its historical and contemporary engagements with critical global challenges. Whether through its contributions to technological innovation, its responses to socio-political movements like Black Lives Matter, or its commitment to sustainability and climate action, MIT has

---

[281] *See* MIT INSTITUTE, CMTY., AND EQUITY OFFICE, https://iceo.mit.edu/# (last visited Sept. 27, 2024).
[282] *MIT's Climate Plan — Action on Campus*, MIT OFFICE OF SUSTAINABILITY, https://sustainability.mit.edu/plan-climate-action-page (last visited Sept. 20, 2024).
[283] *Id.*
[284] *See About Us*, MIT CLIMATE AND SUSTAINABILITY CONSORTIUM, https://impactclimate.mit.edu (last visited Sept. 20, 2024).

consistently leveraged its research and educational resources to address pressing societal issues. The university's pragmatic, solution-oriented approach continues to influence public discourse and policy, maintaining its role as a leading institution in both academic and global affairs.

a. MIT's Initial Administrative Statement

MIT's initial administrative statement in response to the events of October 7 was issued by President Sally Kornbluth.[285] In her public statement, Kornbluth expressed deep sorrow over the violence in Israel and Gaza, offering condolences to those affected. She highlighted MIT's commitment to supporting its students, particularly those with ties to the region, and emphasized the importance of providing mental health resources. The tone of the statement was empathetic but neutral, focusing on the need for campus unity. Kornbluth reaffirmed MIT's dedication to free expression, stating, "We uphold the value of open dialogue, even in moments of profound pain." Immediate actions included enhancing support services for students and reinforcing campus safety measures.

b. MIT Protests and Calls for Divestment

Following the events of October 7, student protests at MIT quickly gained momentum, with student groups, particularly Students for Justice in Palestine (SJP), leading calls for divestment from companies tied to Israel.[286] Demonstrators targeted defense contractors like Raytheon and Boeing, companies accused of supplying military equipment to Israel. Protests were organized on campus, with some blocking entry to the main lobby as part of their efforts to disrupt normal campus activity and increase pressure on the administration.

In response, MIT's administration reiterated its commitment to free speech while enforcing university policies related to public demonstrations. President Sally Kornbluth issued statements affirming MIT's support for peaceful protest but emphasized the need to respect campus rules and ensure the safety of all community members.[287] MIT did not adopt any divestment policies, continuing to uphold its long-standing neutrality regarding such political issues. Security was also increased during larger protests to prevent disruptions and maintain order.

---

[285] MIT President Sally Kornbluth, Video transcript: Our community and the violence in Israel and Gaza (October 10, 2023), https://president.mit.edu/writing-speeches/video-transcript-our-community-and-violence-israel-and-gaza.

[286] *See* Christina Hager, *MIT Warns Students Suspensions Are in the Works After Campus Protests*, CBS NEWS (May 7, 2024), https://www.cbsnews.com/boston/news/mit-campus-protests-suspensions-boston/.

[287] Sally Kornbluth, *Actions Being Taken Regarding the Encampment,* MIT ORGANIZATIONAL CHART (May 6, 2024).

c. Analysis of MIT's (Dis)Entanglement

The national response to MIT's handling of protests following the events of October 7 drew both criticism and praise from various sectors, including public intellectuals, lawmakers, and the media. MIT, led by President Sally Kornbluth, faced significant student activism, particularly from pro-Palestinian groups calling for divestment from companies linked to Israel's military actions.[288] As protests unfolded on campus, including disruptive demonstrations in key campus locations like Lobby 7, MIT's administration emphasized maintaining a balance between protecting free expression and enforcing campus policies to ensure safety and order.[289]

Kornbluth testified before Congress in December 2023 as part of a high-profile hearing on campus antisemitism, alongside the presidents of Harvard and the University of Pennsylvania.[290] Like her counterparts, Kornbluth was criticized for her responses to questions on whether calling for genocide against Jews would violate MIT's code of conduct.[291] Her more restrained, non-apologetic stance following the testimony, compared to the other university leaders, garnered both criticism and support.[292] Critics argued that Kornbluth's handling of the situation reflected a lack of moral clarity, while others defended her approach as consistent with MIT's policies on free expression. Despite the controversy, Kornbluth has retained her position, avoiding the fallout seen at other universities where leadership changes followed similar criticism.

MIT's response to the protests included temporary suspensions for students who refused to vacate campus spaces, although the suspensions were limited to non-academic activities to mitigate potential visa issues for international students.[293] This measured approach sought to balance discipline with student well-being, emphasizing that MIT supports free speech while setting clear boundaries to prevent disruption of essential academic functions.[294]

---

[288] Barbara Moran, *MIT Students Protest and March After Clearing of Campus Encampment*, WBUR (May 10, 2024), https://www.wbur.org/news/2024/05/10/mit-students-protest-gaza-encampment-suspension.
[289] Sally Kornbluth, *Today's Protest and Counter-Protest*, MIT OFFICE OF THE PRESIDENT (Nov. 9, 2023), https://president.mit.edu/writing-speeches/todays-protest-and-counterprotest.
[290] Juliana Kim, *Here's the Latest Fallout at Harvard, MIT and Penn After the Antisemitism Hearing*, IOWA PUBLIC RADIO (Dec. 11, 2023), https://www.iowapublicradio.org/news-from-npr/2023-12-11/heres-the-latest-fallout-at-harvard-mit-and-penn-after-the-antisemitism-hearing.
[291] *Id.*
[292] Menachem Wecker, *Harvard, Penn Presidents Attempt Hearing Cleanup, MIT Head Does Not*, JEWISH NEWS SYNDICATE (Dec. 7, 2023), https://www.jns.org/harvard-penn-presidents-attempt-hearing-cleanup-mit-head-does-not/.
[293] Kornbluth, *supra* note 261.
[294] *Id.*

In the broader media landscape, MIT was viewed as more restrained in its fallout compared to Harvard and UPenn, though the criticism from some corners of Congress and Jewish advocacy groups continues to place the university under scrutiny for its handling of the protests and free speech debates.

8. Stanford University

Stanford University, founded in 1885 by Leland and Jane Stanford in memory of their son, has become one of the world's leading research institutions. Originally established with a mission to promote the public welfare by exercising an influence on behalf of humanity and civilization, Stanford has since grown into a global academic powerhouse, particularly in fields such as engineering, business, and medicine. Located in California's Silicon Valley, Stanford's close ties to the tech industry have positioned it at the forefront of technological innovation and entrepreneurship, profoundly shaping both regional and global economic landscapes.

Historically, Stanford has played an important role in significant socio-political movements. During the 1960s and 1970s, the campus was a hotbed of activism, particularly during the Vietnam War, when students protested U.S. involvement in the conflict and the university's research ties to military contracts. This period of activism led to institutional changes, including increased scrutiny of Stanford's research agenda and a more open dialogue on the ethical responsibilities of academic institutions. Stanford also played a role in the anti-apartheid movement, with students and faculty advocating for the university to divest from companies doing business in South Africa during the 1980s.

In recent years, Stanford has been actively engaged in addressing contemporary social and political issues, particularly those related to racial justice. Following the 2020 Black Lives Matter (BLM) protests, Stanford launched several initiatives to confront systemic racism and improve diversity, equity, and inclusion (DEI) across the university. These initiatives include the IDEAL (Inclusion, Diversity, Equity, and Access in a Learning Environment) program, aimed at transforming the campus culture to be more inclusive.[295] Stanford also established new academic programs focused on race and justice, reflecting a commitment to addressing these issues through both scholarship and institutional reform.

Stanford has also taken a leadership role in tackling global challenges like climate change. The university's Sustainability Initiative, alongside its cutting-edge research at the Stanford Woods Institute for the Environment, aims to address pressing environmental issues such as climate change, water scarcity, and biodiversity loss.[296] In 2020, Stanford announced its

---

[295] *About IDEAL*, STANFORD IDEAL, https://ideal.stanford.edu/about-ideal (last visited Sept. 22, 2024).
[296] *About Us*, STANFORD WOODS INSTITUTE FOR THE ENVIRONMENT, https://woods.stanford.edu/about/about-us (last visited Sept. 22, 2024).

plans to achieve carbon neutrality by 2050, underscoring its long-term commitment to sustainability.[297] The university's interdisciplinary approach to solving global problems, integrating insights from engineering, policy, and the social sciences, positions Stanford as a critical player in the fight against climate change.

Stanford's intellectual and moral leadership is evident in its contributions to both historical and contemporary challenges. The university's ongoing efforts to promote diversity, equity, and sustainability, coupled with its historical involvement in key socio-political movements, reflect its broader mission to advance the public good. Through its academic research, public discourse, and institutional initiatives, Stanford continues to shape not only higher education but also the global conversation on justice, equity, and environmental responsibility.

a. Stanford's Initial Administrative Statement

Stanford University's initial administrative statement in response to the events of October 7 came from President Richard Saller, who issued a statement acknowledging the violence and its impact on the campus community.[298] The statement expressed deep concern for those affected by the conflict, emphasizing that their hearts are with all those who have been directly impacted by this horrific violence. The tone was empathetic and neutral, focusing on the need for community solidarity and support. Saller emphasized that Stanford is committed to providing a safe space for dialogue and highlighted mental health services available for students during this time.[299]

b. Stanford's Campus Protests and Calls for Divestment

Following the events of October 7, Stanford University became a significant site for student activism, particularly concerning calls for divestment from companies tied to Israel. Protests were organized primarily by the group *Liberate Stanford* in collaboration with *Students for Justice in Palestine* (SJP). The movement's demands included divestment from major defense contractors like Lockheed Martin and Hewlett-Packard (HP), which students accused of supplying Israel with military technologies used in Gaza.[300]

---

[297] *Sustainability at Stanford*, STANFORD 2022-23 YEAR IN REV., https://sustainability-year-in-review.stanford.edu/2023/ (last visited Sept. 24, 2024).
[298] *President Saller and Provost Martinez on the Middle East Conflict*, STANFORD REPORT (Oct. 9, 2023), https://news.stanford.edu/stories/2023/10/president-saller-provost-martinez-middle-east-conflict.
[299] *See id.*
[300] *Stanford Protests: Here's a Closer Look at University's Ties, Top 3 Israeli-Backing Companies Students Want Divestment From*, PATABOOK NEWS (Apr. 28, 2024), https://patabook.com/news/2024/04/28/stanford-protests-heres-a-closer-look-at-universitys-ties-top-3-israeli-backing-companies-students-want-divestment-from/.

Demonstrators also demanded that Stanford sever its academic and financial ties to Israeli institutions.[301]

A key moment in the protests occurred when students set up an encampment known as the "People's University for Palestine" in Stanford's White Plaza.[302] This encampment grew into a sit-in that lasted for several weeks, with the participants calling for divestment and for the university to take a clear stance on Israel's military actions in Gaza.[303] Over 100 students participated at various points in the protest, with around 20 consistently camping out in the plaza.[304] The protest also called for broader academic support for Palestinian students and increased mental health resources for those affected by the conflict.[305]

Stanford's administration, led by President Richard Saller, responded by emphasizing the university's commitment to free speech while also maintaining that divestment decisions would remain with the Board of Trustees. In a public statement, Stanford reiterated that its endowment has no direct holdings in Israeli companies or defense contractors, but small exposures could exist through passive index funds.[306] While university officials met with student organizers, they declined to endorse the divestment demands, citing the Board's longstanding policy on political neutrality.[307] Additionally, President Saller condemned acts of vandalism and violence that occurred during some protests, stating that such actions would not be tolerated.[308]

c. Analysis of Stanford's (Dis)Entanglement

Stanford University's response to the protests and calls for divestment following the events of October 7 drew national attention, particularly due to the protracted sit-in that became the longest in the university's history. Beginning on October 20, 2023, students associated with the "Sit-In to Stop Genocide" organized outside Stanford's White Plaza,

---

[301] *See id.*; *see also* Pauline Ertel, *Pro-Palestinian Campus Protests: What Have They Achieved So Far?*, MIDDLE EAST EYE (Aug. 14, 2024), https://www.middleeasteye.net/news/war-on-gaza-campus-solidarity-protests-what-has-been-achieved.
[302] Patabook News, *supra* note 274.
[303] Isha Trivedi, *Stanford Students Continue Sit-In, Demand University Condemn Israel's Siege on Gaza*, PALO ALTO ONLINE (Nov. 2, 2023), https://www.paloaltoonline.com/news/2023/11/02/stanford-students-continue-sit-in-demand-university-condemn-israels-siege-on-gaza/.
[304] *Id.*
[305] *See* Isha Trivedi, *Stanford Sit-In Persists Despite Holidays, Lack of Response From University Leaders*, PALO ALTO ONLINE (Dec. 22, 2023), https://www.paloaltoonline.com/news/2023/12/22/stanford-sit-in-persists-despite-holidays-lack-of-response-from-university-leaders/.
[306] Patabook News, *supra* note 274.
[307] *See* Insight Staff, *Historic Stanford Sit-In Comes to an End*, INSIGHT INTO DIVERSITY (Feb. 19, 2024), https://www.insightintodiversity.com/historic-stanford-sit-in-comes-to-an-end/.
[308] *See* Terry Chea & Olga R. Rodriguez, *Pro-Palestinian Demonstrators Arrested at Stanford University After Occupying President's Office*, ASSOCIATED PRESS (June 5, 2024), https://apnews.com/article/campus-protests-stanford-israel-gaza-f1ec47dcac1b55839e96b5442ebcf00d.

demanding that the university divest from companies linked to Israel's military actions and endorse a ceasefire in Gaza.[309] The protesters also called for more resources to support Palestinian and Arab students affected by the conflict.[310]

National public and media reactions to Stanford's handling of the protests were divided. Supporters of the protest, including various media outlets and intellectuals, praised the students' persistence and criticized the university's leadership for not taking a firmer stance against Israel. On the other hand, conservative media, as well as pro-Israel groups, condemned the university's perceived leniency towards the protesters. Stanford's administration, led by President Richard Saller, maintained a delicate balance by allowing the protests to continue while ensuring that university operations were not disrupted.[311] Saller met with the student representatives but did not accede to their demands for divestment.[312] Instead, he agreed to bring issues such as investment transparency and divestment from weapons manufacturers to the Board of Trustees for discussion, though without making any commitments.[313]

The protest gained significant media attention, with outlets like *Palo Alto Online* and *Insight Into Diversity* chronicling the events. Stanford did not face the level of congressional oversight or harsh public criticism that some other universities, like Harvard and the University of Pennsylvania, experienced. However, the university's refusal to take decisive action on the protesters' demands, such as endorsing a boycott or divestment from Israeli-linked companies,[314] did spark ongoing debates on campus and in national media circles.

The university's measured response to the protests, particularly its willingness to meet with student activists while avoiding direct confrontation, allowed Stanford to largely avoid major leadership turnover or significant public condemnation. However, the protest illuminated the complexities universities face in balancing free speech, activism, and institutional neutrality on highly charged political issues. This ongoing tension at Stanford reflects broader national debates on the role of universities in addressing geopolitical conflicts.

---

[309] Insight Staff, *supra* note 281.
[310] *See* Trivedi, *supra* note 279.
[311] *See, e.g.,* Eugene Volokh, *Stanford President's Message About Student Misconduct "as Part of a Protest March"*, REASON (May 25, 2024), https://reason.com/volokh/2024/05/25/stanford-presidents-message-about-student-misconduct-as-part-of-a-protest-march/ (discussing investigation and disciplinary proceedings which ensued when students entered a science building and disrupted lab operation).
[312] Insight Staff, *supra* note 281.
[313] *Id.*
[314] *Id.*

9. Princeton University

Princeton University, founded in 1746, is one of the oldest and most prestigious institutions of higher education in the United States. Initially established to train ministers, it has evolved into a leading research university known for its strong emphasis on undergraduate education and its contributions to academic and intellectual thought. Over the centuries, Princeton has played an influential role in shaping American political, social, and academic discourse, with its alumni network producing notable leaders in government, business, and academia, including several U.S. presidents.

Throughout its history, Princeton has been involved in significant socio-political events. In the 1960s, during the Civil Rights Movement and the Vietnam War, Princeton, like many universities, became a focal point for student activism. While initially slower than some peer institutions to engage in racial issues, by the late 1960s, Princeton began to admit more students of color and create programs that reflected the demands of a diversifying student body. These changes were part of broader social pressures for civil rights and inclusion, with the student body and faculty increasingly advocating for racial justice and university reform. Princeton's anti-apartheid activism in the 1980s also showcased the university's engagement in global socio-political issues, as students and faculty pushed for divestment from companies operating in apartheid-era South Africa.

More recently, Princeton has been active in addressing contemporary social movements, particularly those related to racial justice. In response to the Black Lives Matter (BLM) movement and the national reckoning with systemic racism following the death of George Floyd in 2020, Princeton took several steps to confront its own historical ties to slavery and racism. The university removed the name of Woodrow Wilson, a former U.S. president and Princeton alumnus, from its School of Public and International Affairs, due to his segregationist policies.[315] Additionally, Princeton launched initiatives to promote diversity, equity, and inclusion (DEI) across campus, including efforts to diversify faculty, enhance support for underrepresented students, and expand research on racial justice through programs like the Princeton African American Studies Department.

Princeton is also deeply engaged in global challenges, particularly through its sustainability efforts. The university has committed to achieving net carbon neutrality by 2046, the 300th anniversary of its founding, and has implemented a range of sustainability

[315] Office of Communications, *Board of Trustee's Decision on Removing Woodrow Wilson's Name From Public Policy School and Residential College*, PRINCETON UNIV. (June 27, 2020), https://www.princeton.edu/news/2020/06/27/board-trustees-decision-removing-woodrow-wilsons-name-public-policy-school-and.

initiatives to reduce its environmental impact.[316] Through its Princeton Environmental Institute (now the High Meadows Environmental Institute), the university supports interdisciplinary research on climate change, biodiversity, and environmental policy, reflecting its role in addressing global environmental issues.[317]

In conclusion, Princeton's intellectual and moral leadership is grounded in its historical and contemporary engagements with socio-political issues. From its involvement in movements for racial justice and anti-apartheid activism to its current initiatives focused on DEI and sustainability, Princeton has demonstrated a commitment to both academic excellence and social responsibility. By engaging with pressing challenges, both past and present, the university continues to influence public discourse and contribute to the global effort for a more just and sustainable world.

a. Princeton's Initial Administrative Statement

Princeton University's initial administrative statement in response to the events of October 7 was led by President Christopher L. Eisgruber, who issued a statement expressing deep sorrow for the violence and the suffering experienced by those affected.[318] The tone of the message was neutral and focused on empathy, emphasizing the importance of supporting all members of the university community.[319] Eisgruber highlighted Princeton's commitment to free speech and respectful discourse, encouraging the community to continue to engage in difficult conversations with care and respect. The administration also made mental health and counseling resources readily available to students during this time.[320]

b. Princeton Campus Protests and Calls for Divestment

After the events of October 7, Princeton University became a focal point for significant student activism, particularly through protests demanding the university divest from companies involved with Israel. A coalition of student groups under the banner of "Palestine Divest Now" organized multiple protests and sit-ins, calling for Princeton to sever its financial ties with companies that "profit from or engage in the State of Israel's

---

[316] Emily Aronson, *Princeton University Sustainability Plan Aims for Net Zero Emissions by 2046*, PRINCETON UNIV. (Apr. 22, 2019), https://www.princeton.edu/news/2019/04/22/princeton-university-sustainability-plan-aims-net-zero-emissions-2046.
[317] *About HMEI*, HIGH MEADOWS ENV'T. INSTITUTE, https://environment.princeton.edu/about/, (last visited Sept. 28, 2024).
[318] Christopher L. Eisgruber, *Statement on Terrorist Attacks and War in the Middle East*, PRINCETON UNIVERSITY OFFICE OF THE PRESIDENT (Oct. 10, 2023), https://president.princeton.edu/blogs/statement-terrorist-attacks-and-war-middle-east.
[319] *See id.*
[320] *Id.*

military campaign."[321] These protests included the establishment of an encampment on campus, symbolizing solidarity with Gaza, which was quickly dismantled by the university after students were warned of possible arrest.[322]

Protesters continued their efforts through a "Popular University for Gaza," holding teach-ins and discussions led by faculty members on the lawn of McCosh Courtyard.[323] Students also pushed for broader academic and cultural boycotts of Israeli institutions and criticized the university's involvement with defense-related research funded by the U.S. Department of Defense.[324]

The university, led by President Christopher Eisgruber, responded by reiterating its commitment to free speech and peaceful protest while emphasizing that such demonstrations must comply with university regulations.[325] The administration enforced policies prohibiting encampments and disruptive activities, leading to the removal of the protest tents and the arrest of a few students.[326] Despite the protests, and its serious consideration of divestment, Princeton did not divest against Israel, continuing its practice of institutional neutrality on political issues, in line with university policy.

c. Analysis of Princeton's (Dis)Entanglement

Princeton University's response to the post-October 7 protests, particularly those advocating for divestment and boycotts related to Israel, drew significant attention and both criticism and support from national and local media, federal government officials, and intellectuals. The protests, spearheaded by pro-Palestinian student groups, escalated into a sit-in at McCosh Courtyard and Clio Hall, demanding Princeton's divestment from companies tied to Israel's military actions.[327] Notably, these protests were framed around calls for broader academic boycotts and more robust institutional support for Palestinian students.

---

[321] *See* Asa Santos, *It's Not Too Late to Choose the Right Side of History*, THE DAILY PRINCETONIAN (Sept. 17, 2024), https://www.dailyprincetonian.com/article/2024/09/princeton-opinion-column-activism-community-engagement-encampment-divest.
[322] *See id.*
[323] David Chmielewski, *Our Memory of the Popular University for Gaza Teaches us How to Reimagine the University*, THE DAILY PRINCETONIAN (June 2, 2024), https://www.dailyprincetonian.com/article/2024/06/princeton-opinion-opguest-encampment-remembering-memory-story-solidarity-gaza-radical-tradition.
[324] *See* Santos, *supra* note 295.
[325] *See* Olivia Sanchez & Annie Ruperta, *Eisgruber Says Protestors Must Clear Encamptment, Divestment to be Formally Considered*, THE DAILY PRINCETONIAN (May 13, 2024), https://www.dailyprincetonian.com/article/2024/05/princeton-news-adpol-gaza-solidarity-encampment-divestment-statement-eisgruber.
[326] *Id.*
[327] *See id.*; *see also* Santos, *supra* note 250.

President Christopher Eisgruber and the university administration adopted a careful stance throughout the protests, allowing demonstrations to continue while maintaining statements about the university's neutrality on divestment. Eisgruber emphasized Princeton's commitment to free speech, asserting that while repugnant speech must be tolerated under university policy, calls for violence, such as genocide, would be met with forceful administrative action.[328] This balanced response was aimed at respecting the university's core values of free expression while ensuring the safety of all students on campus.[329]

The protests gained national media attention, with outlets such as *The Daily Princetonian* and *Princeton Alumni Weekly* extensively covering the events. The university's refusal to divest and its enforcement of policies, including the arrest of several protesters, led to further debate among faculty, alumni, and national observers. Some critics within the media and public intellectual circles expressed concern that Princeton had not done enough to address the demands of student activists, while others lauded Eisgruber's defense of free speech and the university's measured approach.

Eisgruber's testimony before congressional hearings on antisemitism also placed Princeton in the national spotlight, though the university largely avoided the severe fallout seen at other institutions like Harvard and the University of Pennsylvania. Eisgruber firmly rejected the notion that Princeton had tolerated antisemitic language, stating that the university had not heard calls for genocide on campus, but reiterated that such rhetoric would be met with swift action if it arose.[330]

Overall, Princeton's handling of the protests has been viewed as a delicate balancing act—preserving free expression while navigating intense pressures from both pro-Palestinian and pro-Israeli groups. Although the university did not experience major leadership turnover, the events underscored the challenges of managing campus activism in the context of a highly charged international conflict.

10. NYU

New York University (NYU), founded in 1831, has grown to become one of the largest private research universities in the United States, with a diverse student body and a global presence. Located in the heart of New York City, NYU has historically distinguished itself

---

[328] Sandeep Mangot & Isabel Conolly, *Eisgruber Issues Statement in Response to Congressional Hearing on Antisemitism,* THE DAILY PRINCETONIAN (Dec. 12, 2023), https://www.dailyprincetonian.com/article/2023/12/princeton-news-adpol-christopher-eisgruber-congressional-hearings.
[329] *See id.*
[330] *See* Mangot & Conolly, *supra* note 302.

through its commitment to serving a diverse urban population and embracing an open, inclusive educational model. From its inception, NYU was established with a mission to provide education to all, regardless of class, background, or religion, setting it apart from more exclusive Ivy League institutions. Over time, the university has become a leader in fields such as law, business, the arts, and social sciences, influencing both academic thought and public policy.

NYU has been actively engaged in several key socio-political movements throughout its history. During the 1960s, the university became a center for anti-war activism during the Vietnam War, with students and faculty organizing protests and sit-ins, calling attention to U.S. foreign policy and its impacts. NYU was also involved in the Civil Rights Movement, with students participating in marches and advocating for racial equality and justice. The university has continued to be a forum for public discourse on social issues, reflecting the broader political climate of New York City and the nation.

In more recent years, NYU has played a significant role in the Black Lives Matter (BLM) movement and the broader push for racial justice. Following the 2020 protests, the university announced a series of initiatives aimed at addressing systemic racism and improving diversity, equity, and inclusion (DEI) on campus. These efforts included the establishment of the NYU Office of Global Inclusion, Diversity, and Strategic Innovation, which works to advance DEI initiatives across the university. NYU also committed to reviewing its own historical ties to slavery and segregation, further integrating social justice into its institutional mission. Academic programs focused on racial justice, such as the Center for Black Visual Culture[331] and the Department of Social and Cultural Analysis,[332] contribute to NYU's role in fostering intellectual discourse on these critical issues.

NYU's engagement with global challenges extends to its commitment to sustainability and climate change. The university has pledged to achieve carbon neutrality by 2040 and has implemented various sustainability initiatives, including reducing energy consumption and promoting environmentally responsible practices across its campuses.[333] NYU's faculty and students are also actively involved in research on climate change, urban sustainability, and environmental justice, further cementing the university's role as a leader in addressing global environmental issues.

In conclusion, NYU's historical and contemporary involvement in socio-political affairs underscores its intellectual and moral leadership in addressing both local and global

---

[331] *About CBVC IAAA*, N.Y.U., https://cbvc.nyu.edu/about-cbvc-iaaa (last visited Sept. 28, 2024).
[332] *About*, N.Y.U. ARTS AND SCIENCE DEPT. SOC. CULTURAL ANALYSIS, https://as.nyu.edu/departments/sca/about.html (last visited Sept. 28, 2024).
[333] Andrew Hamilton, *NYU's Commitment*, NYU, https://www.nyu.edu/about/university-initiatives/2040-now/nyu-s-commitment.html (last visited Sept. 28, 2024).

challenges. From its early commitment to inclusivity and social justice to its recent initiatives focused on racial equity and sustainability, NYU continues to be a platform for public discourse and societal change. The university's actions reflect its ongoing dedication to fostering a more just, inclusive, and sustainable future.

a. NYU's Initial Administrative Statement

New York University's (NYU) initial administrative statement in response to to the events of October 7 was led by President Linda Mills, who issued a statement expressing profound sadness and concern over the violence in Israel and Gaza.[334] The tone of the statement was empathetic yet neutral, aimed at maintaining campus solidarity while recognizing the pain felt by many members of the university.[335] Mills reaffirmed NYU's commitment to fostering an inclusive environment for all perspectives that must remain a place of open discourse while also ensuring the safety and well-being of all our students. Immediate actions taken included bolstering mental health services and emphasizing the importance of respectful dialogue during difficult times.[336] Additionally, NYU reiterated its commitment to free speech, allowing for student expression while calling for thoughtful and constructive conversations.[337]

b. NYU Campus Protests and Calls for Divestment

After the events of October 7, student activism at New York University (NYU) intensified, particularly through protests led by the NYU Palestine Solidarity Coalition.[338] Demonstrators called for the university to divest from companies tied to Israel, such as those involved in defense contracting, including Lockheed Martin and General Electric.[339] The protests escalated when the "Gaza Solidarity Encampment" was established on Gould

---

[334] Evan Chesler and Linda G. Mills, *Statement on Israel*, NYU (Oct. 10, 2023), https://www.nyu.edu/about/leadership-university-administration/office-of-the-president/comms/statement-on-israel.html.
[335] *Id.*
[336] *See id.*
[337] *See id.*
[338] Francesca Block, *NYU's Pro-Palestine Coalition Says it Supports 'Armed Struggle'*, THE FREE PRESS (Jul. 29, 2024), https://www.thefp.com/p/nyus-pro-palestine-coalition-says.
[339] *See* Arwa Mahdawi, *Why is New York University Making Protestors Watch the Simpsons as Punishment?*, THE GUARDIAN (May 22, 2024), https://www.theguardian.com/us-news/article/2024/may/22/new-york-university-student-protesters.

Plaza, which became the focal point of these efforts.[340] Protesters demanded that NYU not only divest from these companies but also close its Tel Aviv study abroad program.[341]

On multiple occasions, the protests were met with a response from law enforcement, with over 130 arrests made when police cleared the encampment.[342] Despite the intensity of these protests, NYU's administration, led by President Linda Mills, maintained a position of neutrality on the issue of divestment.[343] The university emphasized that its investment policies were focused on maximizing returns for its endowment to support the university's educational mission, and that divestment would not be considered as part of its financial strategy.[344]

NYU upheld its commitment to free speech, allowing the protests to take place within the boundaries of campus policies, though the administration intervened when encampments and demonstrations violated safety regulations.[345] The tension between protestors and the administration continues, with students and faculty pushing for greater transparency and changes in the university's financial involvement in companies tied to Israel.[346]

c. Analysis of NYU's (Dis)Entanglement

Following the events of October 7, NYU became a hotbed of protests, with student activists, particularly from the *NYU Palestine Solidarity Coalition*, organizing demonstrations and calling for divestment from companies with ties to Israel.[347] One of the most notable protests involved the establishment of the "Gaza Solidarity Encampment" at Gould Plaza. This encampment, like similar ones across campuses nationwide, called for the university to sever financial ties with companies profiting from Israel's military actions and to shut down its study abroad program in Tel Aviv.[348]

The university's response, led by President Linda Mills, was met with substantial controversy. NYU initially allowed the protests to continue under its free speech guidelines but took a stronger stance when the encampment became disruptive. Over 130 students

---

[340] *See id.*; *see also* Qianqian Fan, *Students Reflect on NYU Campus Protests Against Israel*, THE NYC DAILY POST (May 6, 2024), https://nycdailypost.com/2024/05/06/new-york/students-reflect-nyu-campus-protests-against-israel/.
[341] Naim Mousa, *Inside NYU's Generation-Defining Protests for Palestine,* +972 MAGAZINE (Apr. 30, 2024), https://www.972mag.com/nyu-palestine-campus-protests/
[342] *Id.*
[343] Adrianna Nehme & Dharma Niles, *NYU Says It is Not Considering Divestment from Israel Amid Protests*, WASHINGTON SQUARE NEWS (Apr. 25, 2024), https://nyunews.com/news/2024/04/25/israel-divertment-protests-continue/.
[344] *Id.*
[345] *See, e.g.,* Madhawi, *supra* note 313.
[346] Nehme & Niles, *supra* note 317.
[347] *See* Block, *supra* note 312.
[348] Mousa, *supra* note 315.

were arrested after NYPD officers were called to clear the encampment, leading to accusations that the university used excessive force to suppress student activism.[349] More than 5,000 alumni, led by the group *NYU Alumni for Justice in Palestine*, signed a letter condemning the administration for involving the police and demanding that the university meet the protesters' calls for divestment and boycott, as well as granting amnesty to arrested students.[350]

The national media's reaction to NYU's handling of the situation was varied. While some outlets criticized the university's decision to use law enforcement, others noted the complexity of maintaining order while respecting the students' right to protest. Public intellectuals and lawmakers were divided, with some praising the university for maintaining a balance between free speech and campus safety, while others expressed disappointment at the perceived heavy-handed approach.

Despite the controversy and demands for further action, there has been no major leadership turnover or resignations at NYU. However, the situation sparked an ongoing debate about the university's role in navigating the balance between political activism, academic freedom, and institutional neutrality on contentious global issues.

11. Georgetown University

Georgetown University, founded in 1789 by John Carroll, is the oldest Catholic and Jesuit institution of higher education in the United States. Located in Washington, D.C., Georgetown has long held a significant place in American academic and political life due to its location and its religious and ethical mission. As a university grounded in Jesuit values, Georgetown has historically emphasized social justice, service to others, and the pursuit of knowledge for the betterment of society. Over time, it has grown into a leading global research university with strong programs in international relations, law, and public policy, attracting students and scholars from around the world.

Georgetown has played a prominent role in several key socio-political movements throughout its history. During the Civil Rights Movement, Georgetown was a site of significant student activism, with students and faculty engaging in discussions on racial justice and organizing events to support desegregation. The university's School of Foreign Service, established in 1919, has long been a center for discussions on global politics and

---

[349] *Id.*

[350] Open Letter to New York University Leadership, NYU Alumni for Justice in Palestine, https://nyuajp.org/#:~:text=To%20Linda%20G.,and%20rightfully%20protesting%20this%20complicity.; Dharma Niles & Yezen Saadah, *Over 5,000 Alumni Demand NYU Remove Police From Campus, Meet Protestors Demands,* WASHINGTON SQUARE NEWS (May 5, 2024), https://nyunews.com/news/2024/05/05/nyu-alumni-demand-nypd-removal/

international diplomacy, helping shape U.S. foreign policy and contributing to public discourse on global governance. Georgetown's Jesuit tradition of social justice has also informed its response to socio-political issues, leading the university to address historical injustices, including its ties to slavery. In 2016, Georgetown publicly acknowledged its involvement in the sale of 272 enslaved people in 1838 to pay off university debts and has since committed to reparative measures, including scholarships for descendants of those enslaved.

In recent years, Georgetown has been actively involved in addressing contemporary social movements such as Black Lives Matter (BLM). Following the nationwide protests in 2020, the university launched several initiatives to address systemic racism and promote diversity, equity, and inclusion (DEI) across its community. Georgetown established the Racial Justice Institute, which serves as an interdisciplinary hub for research on racial justice, social change, and public policy.[351] The university has also implemented curriculum reforms to include more courses focused on race, inequality, and social justice, reflecting its commitment to fostering an inclusive academic environment.

Georgetown's commitment to addressing global challenges extends to its work on climate change and sustainability. The university has pledged to become carbon neutral by 2030 and has invested in sustainable campus initiatives such as energy efficiency projects, green buildings, and renewable energy sources.[352] Through its Earth Commons Institute and its Global Futures Initiative, Georgetown engages in interdisciplinary research on climate change, sustainability, and environmental justice, working to contribute solutions to global environmental issues.[353]

In conclusion, Georgetown University's intellectual and moral leadership is evident in its historical and contemporary engagements with socio-political challenges. From its involvement in the Civil Rights Movement to its recent initiatives addressing racial justice and sustainability, Georgetown continues to be a significant force in shaping public discourse. Its commitment to social justice, informed by its Jesuit values, positions Georgetown as a leading institution not only in academic excellence but also in addressing the pressing social and global challenges of our time.

---

[351] *About Us*, RACIAL JUST. INSTITUTE, https://rji.georgetown.edu/about-us/ (last visited Sept. 28, 2024).
[352] *Georgetown Advances Commitment to Sustainability Through New Partnership Aimed at Reducing Energy Consumption*, GEO. UNIV. (Apr. 5, 2021), https://www.georgetown.edu/news/georgetown-advances-commitment-to-sustainability-through-new-partnership-aimed-at-reducing-energy-consumption/.
[353] *About Us*, THE EARTH COMMONS, https://earthcommons.georgetown.edu/about/ (last visited Sept. 28, 2024); *Global Futures Initiative*, GEO. UNIV., https://globalfutures.georgetown.edu (last visited Sept. 28, 2024).

a. Georgetown's Initial Administrative Statement

Georgetown University's initial administrative statement in response to the events of October 7 was delivered by President John J. DeGioia. In his statement, DeGioia expressed deep concern over the violence in Israel and Gaza and emphasized the need for unity and compassion within the Georgetown community.[354] The tone was one of empathy and reflection, as he acknowledged the suffering caused by the conflict. DeGioia emphasize how the community is called to support one another in moments of profound challenge, and he reiterated Georgetown's commitment to fostering respectful dialogue. Immediate actions included ensuring that mental health resources were available for students and staff.[355]

b. Georgetown Campus Protests and Calls for Divestment

Following the events of October 7, Georgetown University experienced a surge in student activism, particularly organized by Students for Justice in Palestine (SJP) and a coalition of other campus groups, including Jewish Voices for Peace (JVP) and Faculty and Staff for Justice in Palestine (FSJP).[356] These groups organized a series of protests and walkouts, calling for Georgetown to divest its endowment from companies involved with the Israeli military, particularly those supplying technology used by the Israel Defense Forces (IDF).[357] Specific companies targeted included Google and Amazon, due to their involvement in providing cloud computing services to Israel through the $1.2 billion Project Nimbus.[358]

On October 26, students and faculty held a walkout in Red Square, where speakers demanded accountability from the university for what they perceived as Georgetown's silence on Israel's actions in Gaza.[359] The rally also focused on calls for divestment from companies that "support the Israeli state."[360] Protesters urged the university to take a stronger moral stance, asking Georgetown to adhere to its socially responsible investment policies.[361]

---

[354] John J. DeGoia, *A Message From President DeGoia on the Attacks in Israel*, GEORGETOWN UNIVERSITY (Oct. 8, 2023), https://president.georgetown.edu/a-message-from-president-degioia-on-the-attacks-in-israel/.
[355] *Id.*
[356] Franziska Wild, et al., *"Divest From Death": Student Members Walkout to Demand Divestment From Corporations With Israeli Ties*, THE GEORGETOWN VOICE (Feb. 9, 2024), https://georgetownvoice.com/2024/02/09/divest-from-death-community-members-walkout-to-demand-divestment-from-corporations-with-israeli-ties/.
[357] *Id.*
[358] *Id.*
[359] Katherine Hawes & Sabrina Shaffer, *'Silence is Violence', Students Demand University Action on Palestine*, THE GEORGETOWN VOICE (Nov. 9, 2023), https://georgetownvoice.com/2023/11/09/silence-is-violence-students-demand-university-action-on-palestine/.
[360] *Id.*
[361] Wild, *supra* note 330.

In response to the protests, Georgetown President John J. DeGioia initially released a statement condemning the October 7 attacks by Hamas, but his omission of commentary on the humanitarian crisis in Gaza sparked criticism from the student body.[362] After meeting with student leaders, DeGioia issued a second statement on October 19, which acknowledged the dignity of Palestinian lives and the humanitarian crisis in Gaza but stopped short of meeting the protesters' demands for divestment.[363]

Despite these efforts, the university has so far maintained its neutral stance, citing the complexities of international conflict and the role of its investments. Georgetown's administration continued to meet with protest organizers, affirming its commitment to free speech while upholding university regulations concerning protest activities on campus.[364]

c. Analysis of Georgetown's (Dis)Entanglement

Georgetown University's response to the protests and calls for divestment after the events of October 7 sparked both criticism and support from the national public, media, and intellectual circles. Following the initial protests, which were largely organized by *Students for Justice in Palestine (SJP)*, students demanded that Georgetown divest from companies that supported Israel's military actions and cease its perceived silence on the humanitarian crisis in Gaza.[365] The protests escalated with demonstrations on campus and a tent encampment at George Washington University, where Georgetown students joined forces with other universities to amplify their demands.[366]

Georgetown's administration, led by President John DeGioia, initially issued a statement condemning Hamas' October 7 attack but faced heavy criticism from student groups for omitting any mention of Palestinian casualties or the broader humanitarian crisis in Gaza.[367] This omission triggered student walkouts and calls for DeGioia to revise his statement. While he eventually released a second statement acknowledging the humanitarian crisis in Gaza and recognizing the "dignity" of Palestinian lives, this did little to quell the protests, as SJP and other student organizations criticized the statement for failing to explicitly condemn Israel's actions or to commit to divestment.[368]

---

[362] Hawes & Shaffer, *supra* note 333.
[363] John J. DeGoia, *Reflections on Community*, GEORGETOWN UNIVERSITY (Oct. 19, 2023), https://president.georgetown.edu/reflections-on-community-october-2023/; Hawes & Shaffer, *supra* note 283.
[364]
[365] Wild, *supra* note 330
[366] Aamir Jamil & Maren Fagan, *Georgetown Students Remain in Encampment After Seven Days, Legislator's Visit*, THE HOYA (May 2, 2024), https://thehoya.com/uncategorized/georgetown-students-remain-in-encampment-after-seven-days-legislators-visit/.
[367] Hawes & Shaffer, *supra* note 333.
[368] *Id.*

The media response mirrored the divisions on campus, with some outlets criticizing Georgetown for its neutral stance and refusal to divest, while others praised the university's careful balancing of free speech and institutional neutrality. Public intellectuals weighed in as well, with some praising the university for fostering dialogue, while others, particularly from pro-Palestinian groups, argued that the administration's response lacked moral clarity.

Georgetown faced growing national scrutiny, including from alumni and government officials, though the university avoided the more severe congressional oversight that institutions like Harvard and the University of Pennsylvania faced. Georgetown's handling of the situation was seen as moderate, allowing protests to continue while not fully committing to student demands,[369] a strategy that enabled the administration to avoid major leadership turnover or resignations. However, the ongoing tension between free speech rights, student activism, and university policy continues to be a focal point at Georgetown, reflecting broader national conversations about the role of universities in handling contentious geopolitical issues.

12. University of New Hampshire

The University of New Hampshire (UNH), founded in 1866 as the New Hampshire College of Agriculture and the Mechanic Arts, is the state's flagship public research university. Originally established as part of the land-grant system, UNH has played a key role in providing access to higher education, advancing agricultural and mechanical arts, and promoting public service and research throughout New Hampshire. Over the years, it has expanded its academic offerings and grown into a comprehensive research institution, with strengths in areas like environmental sciences, business, and public policy.

UNH has been involved in significant socio-political movements throughout its history. During the Vietnam War era, as on many American campuses, students at UNH organized protests and demonstrations against U.S. military involvement in Southeast Asia. This period marked a shift toward greater political activism at the university, as students engaged with broader national conversations about civil rights, social justice, and governance. The university has maintained an ongoing commitment to public discourse, emphasizing civic responsibility and engagement as core values of its educational mission.

In recent years, UNH has responded to contemporary social movements, particularly the Black Lives Matter (BLM) movement. Following the 2020 protests against police brutality and systemic racism, UNH launched several initiatives aimed at addressing racial

[369] *See id.*

inequality and promoting diversity, equity, and inclusion (DEI) within the university community. UNH formed the President's Task Force on Campus Climate, which works to assess and improve the campus environment for underrepresented students, faculty, and staff. Additionally, the university has enhanced DEI programming, expanded scholarships for students from underrepresented backgrounds, and committed to diversifying its faculty.

UNH is also deeply engaged in addressing global challenges such as climate change and sustainability. The university has set ambitious sustainability goals, including a commitment to achieve carbon neutrality by 2030. UNH is home to the Sustainability Institute, which promotes research, education, and community engagement on environmental issues. The university has received national recognition for its sustainability efforts, including being one of the first in the U.S. to use landfill gas as a renewable energy source for campus operations. UNH's research in areas like marine sciences, agriculture, and environmental engineering reflects its broader contributions to solving global environmental problems.

In conclusion, the University of New Hampshire's intellectual and moral leadership can be seen in its historical role in socio-political movements and its contemporary efforts to address critical issues such as racial justice and climate change. UNH continues to emphasize civic responsibility, public service, and environmental stewardship, reflecting its commitment to both academic excellence and social responsibility. Through its engagement in both local and global challenges, UNH has maintained its relevance as an important institution in shaping public discourse and fostering positive social change.

a. UNH's Initial Administrative Statement

The University of New Hampshire (UNH) responded to the events of October 7 with a statement from President James W. Dean Jr., expressing sorrow and concern for the violence in Israel and Gaza. Dean emphasized the university's commitment to supporting all members of the UNH community, stating, "Our thoughts are with those affected by this tragic conflict." The tone of the statement was empathetic and focused on unity, with a reminder of the availability of counseling and mental health services for students. No political stance was taken, and the university emphasized fostering an environment of open dialogue.

b. UNH Campus Protests and Calls for Divestment

Following the events of October 7, the University of New Hampshire (UNH) became a site for significant student activism, with calls for divestment from companies tied to Israel. [370] The protests, led by the UNH Palestine Solidarity Coalition (PSC) and supported by other campus organizations like the Muslim Student Association and the Black Student Union, gathered at Thompson Hall Lawn to demand that the university disclose its investments and divest from Israeli-based companies, including defense contractors such as Elbit Systems and Sig Sauer.[371] Protesters framed their demands as both a response to the ongoing conflict in Gaza and as a broader human rights issue, calling for immediate action from the administration.

UNH's administration, however, did not adopt the protesters' demands. University spokesperson Tania deLuzuriaga responded that approximately 0.5% of UNH's $475 million endowment is invested in Israeli companies.[372] She further noted that divesting from these companies could impact the university's research and student services, emphasizing that the university's mission and financial strategies would not align with the divestment requests.[373]

The protest included a diverse array of voices, including professors like Joshua Meyrowitz, who criticized Israel's actions and called for a ceasefire in Gaza, highlighting that these actions should not be viewed as representative of all Jewish people.[374] Students expressed frustration with the administration's lack of response, feeling that their voices and concerns were not being adequately addressed by university leadership.[375]

c. Analysis of UNH (Dis)Entanglement

The University of New Hampshire (UNH) faced significant protests following the events of October 7, with student groups, including the Palestinian Solidarity Coalition, demanding the university divest from Israeli-based companies.[376] These protests took place on

---

[370] Abigail Driscoll, *"DEFUND, DISCLOSE, DIVEST": Protestors Urge UNH to Pull Funding From Israel*, THE NEW HAMPSHIRE (Apr. 30, 2024), https://tnhdigital.com/23261/uncategorized/defund-disclose-divest-protestors-urge-unh-to-pull-funding-from-israel/.
[371] *Id.*
[372] Olivia Richardson, *Students Demand That UNH Divest From Israeli Companies*, NEW HAMPSHIRE PUBLIC RADIO (Apr. 26, 2024), https://www.nhpr.org/nh-news/2024-04-26/students-demand-unh-to-divest-from-israeli-companies.
[373] *Id.*
[374] Nancy West, *About 100 People Arrested at Pro-Palestine Rallies at Dartmouth and UNH*, IN DEPTH NH (May 2, 2024), https://indepthnh.org/2024/05/02/about-100-people-arrested-at-pro-palestine-rallies-at-dartmouth-and-unh/
[375] Driscoll, *supra* note 344.
[376] *Id.*

Thompson Hall Lawn, with participants calling for transparency in UNH's investments and questioning the institution's financial priorities.[377] UNH spokesperson Tania deLuzuriaga stated that approximately 0.5% of the university's $475 million endowment was tied to Israeli companies and that divestment would affect research and student services.[378] Despite these protests, UNH did not pursue divestment, maintaining that it was inconsistent with the university's mission.[379]

Nationally, the university's response was seen as measured, with no major leadership turnover resulting from the protests. The administration upheld free speech while defending its financial decisions. Critics, including students and some faculty, argued that the administration's neutral stance on the conflict showed a lack of moral clarity, but no significant national or congressional oversight was reported.[380] The protests at UNH reflect broader trends in the national divestment movement, with similar calls taking place on campuses across the U.S., but without the same levels of fallout as seen at institutions like Harvard or Penn.

C. Summary of Key Findings from Case Study

This table summarizes the disentanglement actions taken by twelve universities, the ethical frameworks applied, key legal/financial implications, and the outcomes of these decisions. It provides a comparative view of how universities navigate complex ethical and financial considerations.

University	Ethical Framework	Consistency	Key Outcomes	Outcome Quality
Harvard University	Utilitarianism (focus on maximizing donor interests), Rawlsian Justice (occasional appeals to equity).	Inconsistent	Donor backlash, negative press, enrollment decline, and president's resignation; significant reputational and financial harm.	Negative
University of Pennsylvania	Utilitarianism (situational changes in response to external pressures).	Inconsistent	President resigned after criticism, donor withdrawals, and federal scrutiny; severe reputational harm.	Negative

[377] *Id.*
[378] Richardson, *supra* note 346.
[379] *Id.*
[380] *See, e.g.,* West, *supra* note 348.

University	Ethical Framework	Consistency	Key Outcomes	Outcome Quality
University of Chicago	Virtue Ethics (adherence to Chicago Principles), Deontological Ethics (principled stance on free expression).	Consistent	$100 million donation received, followed Chicago Principles consistently; reputational challenges mitigated.	Positive
Columbia University	Utilitarianism (inconsistent applications to satisfy various stakeholders).	Inconsistent	Administrative resignations, legal challenges, and public criticism over protest management; severe reputational and legal issues.	Negative
UCLA	Rawlsian Justice (appealed to fairness inconsistently across different incidents).	Inconsistent	National scrutiny, lawsuits related to antisemitism, and delayed response criticisms; significant reputational and legal harm.	Negative
Cornell University	Utilitarianism (shifting responses to manage antisemitism and stakeholder demands).	Inconsistent	Antisemitic incidents, legal risks, and media scrutiny; serious reputational harm.	Negative
MIT	Deontological Ethics (emphasis on institutional autonomy).	Inconsistent	Backlash after congressional testimony, perceived inconsistencies in managing protests; reputational harm.	Negative
Stanford University	Mixed (Utilitarianism for balancing different interests, Deontological Ethics for maintaining autonomy).	Inconsistent	Inconsistent responses to divestment and antisemitism incidents; reputational challenges.	Negative
Princeton University	Utilitarianism (efforts to minimize harm to different groups).	Mixed Approach	Criticism for handling divestment calls and campus safety; minor reputational harm.	Mixed

University	Ethical Framework	Consistency	Key Outcomes	Outcome Quality
NYU	Mixed (Utilitarianism for addressing different stakeholder concerns).	Inconsistent	Struggled with handling antisemitism and divestment calls; reputational harm.	Negative
Georgetown University	Utilitarianism (efforts to balance free speech and safety concerns).	Inconsistent	Criticized for handling antisemitic incidents and divestment protests; affected public image.	Negative
University of New Hampshire	Mixed (Utilitarianism for managing student activism, Deontological Ethics for institutional policies).	Consistent	Minor disruptions due to student activism; maintained a stable overall situation.	Mixed

Table 3. University (Dis)Entanglment after October 7.

Reviewing the chart, several key trends emerge. The analysis of university responses reveals a correlation between the ethical frameworks employed and the outcomes experienced. Institutions that adhered to a consistent ethical approach, particularly those grounded in virtue ethics or deontological principles, generally navigated the challenges with more favorable results. By contrast, universities that adopted a utilitarian stance, often shifting their ethical reasoning to accommodate different stakeholder interests, saw more negative consequences, especially when those shifts appeared inconsistent or reactive.

D. Consistency as a Key Determinant

Universities that applied their chosen ethical frameworks consistently, such as the University of Chicago, which adhered to the Chicago Principles, tended to achieve better outcomes. Chicago's principled stance on free expression, rooted in virtue ethics and deontological obligations to uphold academic freedom, not only mitigated reputational risks but also attracted substantial financial support, including a $100 million donation. This case illustrates that a coherent ethical approach can enhance institutional credibility and stability during periods of turmoil. Similarly, the University of New Hampshire maintained a consistent stance in balancing free speech and student activism, resulting in only minor disruptions and preserving the university's overall stability.

In contrast, institutions with inconsistent applications of their ethical principles faced significant fallout. For example, Columbia University and UCLA vacillated in their responses to antisemitism and campus safety, attempting to balance conflicting stakeholder demands without a steady guiding principle. This inconsistency weakened

their positions, leading to administrative resignations, legal challenges, and severe reputational harm. When ethical frameworks are applied inconsistently, stakeholders perceive actions as opportunistic or unprincipled, eroding trust and exacerbating conflict.

E. The Challenges of Utilitarianism

Utilitarianism, which seeks to maximize benefits for the greatest number, proved particularly challenging to apply effectively in the context of university governance during crises. Institutions like Harvard and Cornell frequently adjusted their ethical justifications to appease different groups, including students, faculty, and donors. While utilitarian reasoning may offer flexibility in addressing diverse interests, its situational nature often led to incoherent responses. For these universities, shifting ethical justifications were perceived as attempts to placate the most vocal or influential stakeholders at the expense of principled decision-making, resulting in donor backlash, federal scrutiny, and declining enrollment.

The negative outcomes associated with utilitarianism were most pronounced when universities failed to apply the framework consistently. The frequent recalibration of ethical rationales based on situational pressures, rather than adherence to a core set of values, created the impression that the institutions lacked a genuine commitment to any particular moral stance. This approach not only fueled criticism but also exposed the universities to legal risks and financial harm.

F. Mixed Approaches Yield Mixed Results

Some universities employed a mixed approach, combining elements of utilitarianism and deontological ethics or switching between ethical frameworks depending on the situation. For instance, Stanford and Princeton navigated their responses to the October 7 events with varying degrees of flexibility, attempting to reconcile demands for campus safety, free expression, and divestment. While this approach helped these institutions avoid some of the severe consequences faced by their peers, it did not offer the same level of protection as a consistent and principled stance. Mixed approaches yielded mixed outcomes, suggesting that while flexibility in ethical reasoning can be beneficial in certain contexts, it also carries risks when stakeholders perceive it as a lack of commitment to core values.

G. Normative Implications for University Governance

The relationship between ethical frameworks and outcomes in the case studies highlights the importance of consistency in institutional governance. Universities that commit to a coherent set of ethical principles—whether grounded in virtue ethics, deontological obligations, or a strategically applied utilitarian framework—are better positioned to manage conflicts and mitigate reputational harm. In contrast, institutions that fluctuate in

their ethical reasoning or apply frameworks inconsistently may find themselves more vulnerable to backlash, legal challenges, and financial losses. The data underscores the need for universities to articulate and adhere to a clear ethical framework, particularly during times of crisis, as a means of safeguarding their long-term reputation and stability.

V. Normative Foundations of University Disentanglement

This Part serves as the culmination of the paper's analysis by grounding the case studies and observations in a coherent ethical framework. Building on the empirical findings about inconsistent or principled responses in Part IV, this section establishes the ethical principles that universities should adopt when navigating conflicts and pressures for disentanglement. It aims to provide a normative basis that not only explains the successes and failures identified in the case studies but also offers a roadmap for institutions to align their actions with their core values. By articulating a principled approach to ethical decision-making, this Part completes the paper's argument by proposing standards for universities to follow, ensuring that future responses to crises are guided by a commitment to justice, autonomy, and the long-term mission of higher education.

A. Introduction to Normative Theories in Disentanglement

Universities, as ethical and intellectual stewards, occupy a unique place in society. They are entrusted with fostering critical thinking, advancing societal welfare, and upholding values of justice and fairness. Yet, when confronted with calls for boycotts or divestment, universities face challenging normative questions: Should they act based on a duty to protect human rights? Or should they maximize the welfare of their entire academic community, balancing conflicting interests and values?

In this part, I propose to evaluate university disentanglement decisions through the lens of established moral theories—**utilitarianism**, **deontological ethics**, **virtue ethics**, and **Rawlsian justice**. These normative frameworks offer profound insights into how universities should navigate the complex terrain of moral responsibility, public accountability, and institutional autonomy. By applying these philosophical principles, we can better understand the ethical obligations that universities face when aligning their actions with their societal role.

B. Utilitarianism and Consequentialism

One of the most influential frameworks in moral philosophy is **utilitarianism**, particularly as articulated by **John Stuart Mill**.[381] Utilitarianism evaluates the morality of actions based on their outcomes, proposing that the ethically right decision is the one that produces the

[381] *See* John Stuart Mill, UTILITARIANISM, 8-37 (1863) (introducing the theory of utilitarianism).

greatest good for the greatest number of people.[382] For universities, this approach suggests that disentanglement decisions—such as divesting from fossil fuels or companies implicated in human rights abuses—should be assessed in terms of their net benefit to society, even if these decisions come with immediate financial costs.[383]

Under a utilitarian lens, university governance is tasked with balancing conflicting interests: the need to maintain financial stability versus the moral imperative to promote social welfare. Consider, for instance, the **fossil fuel divestment movement**. Universities that choose to divest from fossil fuels may face short-term financial losses, as these industries often provide lucrative returns on investment. However, the long-term societal benefits—such as reducing environmental harm, combating climate change, and setting a precedent for responsible investing—may outweigh these immediate costs.

Mill's utilitarianism also compels universities to consider the **global and long-term impacts** of their decisions.[384] Divesting from fossil fuels could inspire other institutions to follow suit, leading to widespread environmental benefits. On the other hand, maintaining investments in environmentally harmful industries might exacerbate the global climate crisis, ultimately harming future generations. A utilitarian framework would argue that universities have a moral obligation to prioritize the **greater societal good** over short-term institutional gain, especially given their unique role as thought leaders in shaping future policy and ethical standards.[385]

For example, institutions such as Stanford University and the University of California system have made headlines for their divestment from fossil fuels, citing ethical obligations to future generations.[386] Early data on their financial performance following

---

[382] *Id.* at 9-10 ("The creed which accepts as the foundation of morals, Utility, or the Greatest Happiness Principle, holds that actions are right in proportion as they tend to promote happiness, wrong as they tend to reverse happiness."); Jeremy Bentham, AN INTRODUCTION TO THE PRINCIPLES OF MORALS AND LEGISLATION 2-3 (1907).

[383] This articulation of utilitarianism finds support in the work of Peter Singer, who proposed that it is a moral imperative to give charitably to end world poverty until doing so would require you to sacrifice something nearly as important as that which you are preventing. Peter Singer, THE LIFE YOU CAN SAVE 15 (2009).

[384] *See* John Stuart Mill, UTILITARIANISM 16-17 (1863) (explaining that utilitarianism is not concerned with the individual agent's maximization of happiness, but with the absolute maximization of happiness for society as a whole).

[385] *Id.*; *See also* citation and accompanying text *supra* note 357.

[386] *Board of Trustees Commits to Accelerating Transition to Net-Zero Greenhouse Gas Emissions, Reports Major Reduction in Fossil Fuel Investments*, STANFORD REPORT (Jun. 12, 202) https://news.stanford.edu/stories/2020/06/trustees-commit-accelerating-transition-to-net-zero-greenhouse-gas-emissions (reporting Stanford's 90% reduction in investment in fossil fuel companies); Leah Asmelash, *The University of California Has Fully Divested From Fossil Fuels. It's the Largest School in the US to Do It.* CNN (May 20, 202 4:03 PM), https://www.cnn.com/2020/05/20/us/university-of-california-divest-fossil-fuels-trnd/index.html.

divestment reveals minimal financial disruption, reinforcing the argument that universities can both prioritize social responsibility and maintain financial health.

However, utilitarian ethics also raises complex challenges for universities. **How do they measure and compare the consequences** of their actions for various stakeholders?[387] Universities must weigh the potential harm of financial losses to students, staff, and research programs against the societal good that comes from aligning their investments with ethical principles. This balancing act illustrates the nuanced role that universities play as both financial entities and moral actors in a globalized world.

By adopting a utilitarian approach, universities can justify their disentanglement decisions not merely as symbolic gestures, but as part of a broader effort to **maximize societal well-being**. Ultimately, this framework encourages universities to act with an eye toward the **collective good**, even if doing so requires sacrifices in other areas of their operations.

C. Deontological Ethics and Duty-Bound Decisions

In contrast to utilitarianism's focus on consequences, **deontological ethics**, associated with **Immanuel Kant**, argues that actions are morally right or wrong based on adherence to duties or principles, regardless of the outcomes.[388] For universities, this framework suggests that disentanglement decisions—such as divestment from companies complicit in human rights violations—should be guided by ethical principles rather than a balance of costs and benefits. If every university adopted a policy of divesting from human rights violations, it would create a universal precedent that upholds justice and morality globally. Universities would thus position themselves as bastions of moral leadership, not only in academia but across societal governance, upholding the categorical imperative to act in ways that promote universal moral laws.

Kant's **categorical imperative** offers a compelling lens through which to view university decision-making. According to Kant, moral actors should act only according to rules that they would want to become **universal laws**.[389] In the context of university divestment, this means that universities should ask: *What if every university divested from companies violating human rights? Would this promote a just and moral society?* If the answer is yes, then divestment becomes a moral duty, not a choice. This is particularly relevant for universities that position themselves as defenders of human rights and social justice.

---

[387] *See* note 358 *supra*. The need to maximize happiness across multiple different groups necessitates a balancing of the relative increase and decrease to each constituent flowing from each action.
[388] Immanuel Kant, PRACTICAL PHILOSOPHY 54-55 (Mary Gregor ed. 1996); *see also* F.M. Kamm, INTRICATE ETHICS, 237-242 (2007) (discussing the role of rights and duties in shaping our obligations to act or refrain from acting in society).
[389] Immanuel Kant, PRACTICAL PHILOSOPHY 57 (Mary Gregor ed. 1996).

A Kantian framework would compel universities to sever financial ties with unethical corporations, not because of financial gain or loss, but because it is the morally right thing to do based on the principle of justice.[390] This duty-bound approach is more concerned with **upholding moral principles** than calculating consequences.[391] For example, if a university recognizes that its investments contribute to environmental harm or human exploitation, Kantian ethics would demand that the university divest, even if doing so leads to financial strain.

By focusing on the **principles of justice and fairness**, deontological ethics provides universities with a clear mandate to act according to their ethical commitments, reinforcing their role as **moral leaders** in society.

1. Duty vs. Consequence in Disentanglement Decisions

In cases where universities face pressure to disengage from entities associated with unethical behavior—such as fossil fuel companies or regimes with poor human rights records—deontological ethics would dictate that these institutions have a **duty to refuse complicity** in such unethical activities.[392] Even if divestment might result in financial losses or controversy, the ethical principle of not supporting unjust practices would take precedence over utilitarian concerns about maximizing the welfare of the majority.[393]

This framework can also be applied to questions of academic freedom and inclusivity. For example, a university might have a **duty to protect free speech** on campus, even if certain forms of expression are controversial or lead to protests. The principle here is that upholding academic freedom is a fundamental duty, one that should not be compromised even when the consequences may be divisive or disruptive.

Deontological ethics also provides a **moral check** against actions that are purely pragmatic. While utilitarianism might justify withholding action if it would harm the institution's financial stability, deontological ethics insists that universities must act according to ethical principles, irrespective of potential losses.[394] For instance, if a university recognizes that continuing financial ties with a fossil fuel company violates its commitment to environmental justice, deontological ethics would require divestment as a duty, not a choice.

---

[390] *Id.* at 54-55
[391] *Id.* at 55 ("That the purposes we may have for our actions, and the their effects as ends and incentives of the will, an give actions no unconditional and moral worth is clear from what has gone before.").
[392] *See id.* at 57.
[393] Immanuel Kant, PRACTICAL PHILOSOPHY 55 (Mary Gregor ed. 1996).
[394] *Id.*

2. Moral Absolutism and Institutional Integrity

A key strength of deontological ethics is its alignment with the **moral absolutism** expected of universities. Society often holds academic institutions to higher moral standards, expecting them to operate as **ethical exemplars**. Universities, under this view, should act as moral leaders, demonstrating integrity even when faced with challenging trade-offs. Acting based on duty ensures that universities maintain their moral authority, a crucial component of their institutional identity.[395]

However, deontological ethics can also present significant **practical challenges** for universities. Adhering to moral absolutes may lead to difficult situations where acting according to duty conflicts with the interests of certain stakeholders. For example, a university's duty to divest from corporations involved in human rights violations could result in the alienation of donors or partnerships, which may have repercussions for student opportunities and research funding. Nonetheless, deontological ethics maintains that these challenges should not deter universities from fulfilling their moral duties.

3. A Duty-Based Framework for University Governance

Deontological ethics offers a clear, principled approach to university governance, one that prioritizes ethical duty over consequences. For universities, this means that decisions about boycotts and divestment must be grounded in an unwavering commitment to moral principles such as justice, fairness, and respect for human rights. In practice, this framework requires universities to engage in **self-reflection**: Are their current practices aligned with the ethical duties they profess to uphold? If not, deontological ethics would demand that they take corrective action, regardless of the potential financial or reputational consequences.[396]

Ultimately, a duty-based approach to university disentanglement serves as a safeguard against ethical compromise, ensuring that institutions remain morally consistent, even in the face of external pressures. By acting according to ethical principles rather than outcomes, universities can preserve their integrity and continue to serve as moral beacons within society.

With deontological ethics outlined, we've established how universities might act out of duty, regardless of the consequences. Next, we can delve into **Virtue Ethics and**

---

[395] Charles W. Anderson, Prescribing the Life of the Mind: An Essay on the Purpose of the University, the Aims of Liberal Education, the Competence of Citizens, and the Cultivation of Practical Reason 32-34 (1993) (discussing the moral responsibility of universities to serve as ethical exemplars, emphasizing the expectation that higher education institutions adhere to principles of integrity and act as moral leaders, particularly in times of societal ethical dilemmas).
[396] Immanuel Kant, PRACTICAL PHILOSOPHY 55 (Mary Gregor ed. 1996).

Institutional Character, exploring how universities' actions reflect their moral character and contribute to institutional integrity.

D. Virtue Ethics and Institutional Character

While both utilitarianism and deontological ethics focus on outcomes and duties, **virtue ethics**, associated with **Aristotle**, emphasizes the importance of cultivating moral character through actions.[397] Universities are expected to act as **moral exemplars** within society, embodying virtues such as **integrity, courage, and justice**. In the context of university disentanglement, virtue ethics asks what kind of institution the university wants to be—an institution that makes ethically sound decisions, or one that prioritizes financial interests over moral integrity.[398]

Universities can cultivate these virtues through their actions. For example, by choosing to divest from industries that cause harm—such as fossil fuel companies or those complicit in human rights abuses—universities demonstrate **courage** in the face of financial or political pressure. Similarly, **integrity** is demonstrated when a university's actions align with its stated values, such as sustainability or social justice.[399] Acting consistently with these virtues enhances the university's reputation as an ethical leader and fosters a culture of moral responsibility.[400] Just as individuals cultivate virtues through repeated moral actions, universities establish their moral character through consistent decisions that align with ethical values.[401] Institutions like Harvard University, with its long-standing leadership on social issues, exemplify how acting with courage and integrity can reinforce a university's identity as a leader in ethical governance.

Aristotle's virtue ethics also suggests that moral actions must be practiced repeatedly to form good habits.[402] For universities, this means that ethical decision-making should not be isolated to one-off actions like divestment, but rather should be integrated into the university's ongoing governance and institutional identity. By making decisions that reflect **moral character**, universities reinforce their commitment to being institutions of **virtue and leadership**.

---

[397] *See* Aristotle, NICOMACHEAN ETHICS 31 (Roger Crisp ed. 2014) (noting that virtue is conscious action directed to the "mean" or the middle ground between the vice of excess and that of deficiency in any given area of life).
[398] *See id.* at 40-42 (discussing the concept of rational choice and the obligation agents to decide rationally (that is, without reference to appetite for pleasure) whether to act "good" or "bad" thereby choosing either virtue or vice).
[399] *See* Alasdair MacIntyre, AFTER VIRTUE, 198-245 (3d ed. 2007) (exploring the concept of Aristotelian virtue ethics, particularly the significance of constancy or integrity–acting with consistency to avoid hypocrisy)
[400] *See id.*
[401] *See id.*
[402] *See id.*; Aristotle, NICOMACHEAN ETHICS, 71–73 (H. Rackham ed. 2014).

1. Integrity and Moral Consistency

At the core of virtue ethics is the idea of **integrity**—the alignment of values and actions.[403] Universities that cultivate virtue act with integrity when their **external actions** reflect their **internal values**.[404] For example, if a university publicly champions sustainability and environmental justice, yet continues to invest in fossil fuel companies, this would be a failure of integrity. Virtue ethics would urge the university to divest, not simply because it is morally right in an abstract sense, but because such an action would align with the institution's core values, demonstrating consistency between belief and practice.

By fostering **moral consistency**, universities build trust with their communities and maintain their reputations as ethical institutions.[405] Acting with integrity enhances the credibility of the university's mission and reinforces its role as a leader in societal moral discourse. This alignment between values and actions is crucial in cultivating trust, respect, and admiration from both internal stakeholders—students, faculty, and staff—and external ones, including the broader community.

2. Courage in the Face of Opposition

A second key virtue in the context of university disentanglement is **courage**.[406] Universities often face significant **pressures from powerful stakeholders**, including alumni, donors, corporate partners, and political groups. Virtue ethics argues that universities should have the courage to act in accordance with their ethical convictions, even when these actions might provoke backlash or financial loss. Courage involves standing firm on principle, even in the face of adversity.[407]

Take, for example, the divestment movement against apartheid South Africa. Universities that chose to divest from companies operating in South Africa did so at a time when such actions were politically controversial and financially costly.[408] Nonetheless, these universities demonstrated courage, aligning their actions with the moral imperative to

---

[403] *See* Aristotle, *supra* note 370, at 75 (noting that the mean between boastfulness and self-deprecation (that which we would call integrity) consists of being truthful regarding one's attributes—anything less is to fail to be a person of integrity).
[404] *Id.*
[405] Aristotle would say that the person who has integrity lives their entire lives pursuing truth, and a clear byproduct of this is a relationship of greater trust with one's community. *Id.*
[406] *See* Aristotle, *supra* note 375 at 77.
[407] *See id.* ("And so with Courage: we become brave by training ourselves to despise and endure terrors, and we shall be best able to endure terrors when we have become brave.")
[408] *See* discussion *supra* Part III.D.

oppose racial oppression.[409] Virtue ethics holds that it is precisely in moments of tension and opposition that the true moral character of an institution is revealed.

In modern contexts, such as the movement to divest from fossil fuels or to boycott companies linked to oppressive regimes, the same principle applies. Universities are called upon to show courage by disentangling themselves from unethical financial relationships, even when doing so may harm their endowments or alienate influential donors. By cultivating this virtue, universities become exemplars of moral fortitude, setting a standard for ethical decision-making in complex and contested spaces.

3. Justice and Fairness in Institutional Decisions

Justice, another central virtue, calls on universities to treat all stakeholders with fairness and respect.[410] In the context of disentanglement, this means ensuring that decisions are not only aligned with institutional values but also **considerate of the broader social impact**.[411] Universities must ask themselves whether their financial and operational decisions promote a just society. For instance, if a university chooses to maintain financial ties with companies that contribute to environmental degradation or human rights abuses, it could be seen as perpetuating injustice.[412]

Virtue ethics demands that universities act in ways that **promote fairness and equity**, not only within their own institutions but in their interactions with the global community.[413] This could involve prioritizing justice in their divestment strategies by severing ties with entities that disproportionately harm vulnerable populations or exacerbate inequalities. By embodying the virtue of justice, universities affirm their commitment to the broader social good and demonstrate leadership in creating a more equitable world.

---

[409] *Id.*

[410] *See* John Stuart Mill, UTILITARIANISM, 61–95 (1863) (exploring the virtue of justice, which includes giving one what is due and respecting the rights of others)

[411] *See id.*

[412] *See id.* at 65-66 (explaining that justice commands that one should receive good or evil as is his due, and that it is unjust that one should act evilly toward one not deserving of this, with clear applications to promoting environmental degradation that will impact all of humanity for the profit of a single institution).

[413] Aristotle, *supra* note 370, at 82-83 (noting that injustice is any form of bad conduct done for personal gain as opposed to done out of weakness to the impulses of the flesh—as applied here this takes the form of investing in industries that harm marginalized communities, not motivated by some pleasure derived from causing harm but rather from a desire for the financial gain that flows from the investment).

4. Wisdom in Navigating Complex Moral Terrain

Virtue ethics also highlights the importance of **wisdom**, or practical reasoning, in making moral decisions.[414] Universities operate in highly complex environments, balancing financial sustainability, academic freedom, and social responsibility. Virtue ethics argues that **moral wisdom**—the ability to navigate these complexities with discernment and balance—is a key characteristic of an ethical institution.[415]

Wisdom, in this context, involves recognizing the nuances of disentanglement decisions, understanding that not all moral dilemmas have clear-cut solutions. For example, universities may face conflicting pressures when deciding whether to divest from certain industries. While disengaging from fossil fuel companies may be the morally virtuous choice for environmental reasons, universities must also consider the potential impacts on their research funding, financial aid resources, and long-term sustainability.

In these situations, virtue ethics encourages universities to exercise **practical wisdom**, making decisions that reflect thoughtful consideration of both moral principles and pragmatic realities.[416] A virtuous university will carefully weigh the ethical implications of its actions, striving to strike a balance that upholds its values while ensuring its ability to continue serving its educational mission.

5. Cultivating Institutional Virtue

Ultimately, virtue ethics calls on universities to see themselves as **moral agents**, capable of cultivating and demonstrating virtues in their governance and decision-making processes.[417] This ethical framework encourages universities to reflect on the kind of institutions they aspire to be and to make decisions that embody their commitment to moral excellence.

---

[414] Aristotle identified three forms of wisdom in his work, NICOMACHEAN ETHICS, these being scientific knowledge, practical wisdom, and wisdom proper. Here we deal with what he would have called practical wisdom, which to him was an understanding of the proper course of conduct in order for the person to live well. And he would have applied this as well to the broader sense of the person, that being the community as a whole. This has clear applications to the university, tasked with promoting ethical conduct and general wellbeing, not only within its institutional community, but also within the broader society. Aristotle, *supra* note 322, at 103-105; Michael C. Legaspi & Ryan Hanley, *Wisdom and Tradition: Aristotle*, UNIV. CHI. CTR. PRAC. WISDOM (Apr. 6, 2010), https://wisdomcenter.uchicago.edu/news/discussions/wisdom-and-tradition-aristotle.

[415] Aristotle, *supra* note 370, at 105-106

[416] *See* source and accompanying text *supra* note 387. Aristotle would have contrasted this 'particularized' or pragmatic wisdom, which deals with the life of man in particular contexts, with the broader sense of wisdom that "is scientific knowledge, combined with [understanding why the situation is as it is], of what is by nature most [honorable]." *Id.* at 107.

[417] *See* Aristotle, *supra* note 370.

By acting with integrity, courage, justice, and wisdom, universities not only fulfill their role as centers of learning and knowledge but also become exemplars of ethical leadership in society. Through the lens of virtue ethics, disentanglement is not merely a financial or operational decision—it is an opportunity to demonstrate moral character, setting a standard for both academic and societal ethics.

E. Rawlsian Justice and Institutional Fairness

John Rawls' theory of justice offers a compelling framework for evaluating university disentanglement decisions through the principles of **fairness** and **equality**. Central to Rawls' theory is the concept of the **veil of ignorance**, where decision-makers are asked to make choices without knowing their own position in society.[418] By doing so, they are more likely to make decisions that promote fairness and justice for all.[419]

In the context of university governance, Rawls' veil of ignorance provides a valuable tool for assessing whether divestment decisions are just. Universities should ask: *What would we choose if we didn't know whether we were part of the financially privileged group benefiting from continued investments, or part of the marginalized communities suffering from the consequences of those investments?*[420] This thought experiment encourages universities to prioritize the **most vulnerable** stakeholders when making ethical decisions.[421]

Moreover, Rawls' emphasis on **distributive justice** compels universities to consider how their financial decisions impact the **least advantaged** members of society.[422] By divesting from industries that contribute to environmental harm or social injustice, universities can act in ways that **benefit the common good** and promote a more equitable distribution of resources. Rawlsian justice thus provides a framework for ensuring that universities act with **fairness and integrity**, particularly when their financial actions have global consequences.

---

[418] John Rawls, THEORY OF Justice 118 (1999 ed.); Rawls argues that under the veil of ignorance, knowing nothing about ones own position within society, or the relative position of his broader community, all would reach the same decisions about what principles and frameworks are just—namely in seeking to protect the most vulnerable. *See id.* 118-123; Simon Caney, JUSTICE BEYOND BORDERS: A GLOBAL POLITICAL THEORY (2005).
[419] *See id.*
[420] *See id.*
[421] *See* Rawls, *supra* note 325 (without knowing one's specific place in society, as Rawls advocates for, actors are encouraged to lift up the most underprivileged and thereby level the playing field, this being the only way to ensure reasonable security for themselves).
[422] Rawls, *supra* note 391, at 64 (discussing the distribution of opportunity in the sense of employment and positions of power and prestige as being partially determined by the "natural lottery" distributing ability, and arguing that this is arbitrary and unjust).

1. The "Veil of Ignorance" and University Decision-Making

In the context of university governance, the veil of ignorance can serve as a powerful tool for evaluating disentanglement decisions. Universities are complex institutions with multiple stakeholders—students, faculty, alumni, investors, and community members—each of whom may have different interests and levels of influence. Rawls' theory invites universities to ask: *What kind of policies would we choose if we did not know which stakeholder group we belonged to?*[423]

For example, when deciding whether to divest from fossil fuel companies or boycott corporations tied to human rights abuses, universities might face conflicting pressures. Financial interests may suggest maintaining investments in lucrative industries, while ethical considerations might favor divestment. Rawls' veil of ignorance requires universities to strip away these biases and consider what is fair to all. If a university did not know whether it was more closely aligned with powerful investors or marginalized communities affected by climate change or human rights abuses, it might be more inclined to adopt policies that promote **justice and fairness for the most vulnerable stakeholders**.[424]

This approach leads to decisions that prioritize the **common good**, even if they come at the expense of short-term financial gains. By applying the veil of ignorance, universities can position themselves as moral leaders, making decisions that align with the principles of **equity** and **social justice** rather than narrow, self-serving interests.

Applying Rawls' veil of ignorance to university investments requires decision-makers to consider what they would choose if they were part of the marginalized communities affected by corporate practices. For example, universities maintaining investments in regions prone to climate change must ask whether those affected would benefit from those decisions or be further marginalized by environmental degradation. Such questions ensure that justice remains at the core of decision-making.

2. Distributive Justice and the Allocation of Resources

Rawls' theory also emphasizes the importance of **distributive justice**, which concerns the fair allocation of resources and opportunities within a society.[425] Universities, as

---

[423] Rawls, *supra* note 391.
[424] Source and accompanying text, *supra* note 391
[425] Rawls, *supra* note 391, at 64, 65-66 (discussing the effect of natural talents and family and social circumstances on economic outcome even where societies guarantee equal opportunity and proposing as a viable solution a framework where no individual in society increases in wealth unless that increase makes all members better off, with the best case scenario being that in which the utility or satisfaction of those least advantaged is maximized).

institutions with significant financial, intellectual, and social capital, have a profound impact on how resources are distributed both within their own communities and in the broader society.

In the context of university disentanglement, distributive justice raises important questions about how the costs and benefits of actions such as divestment are allocated. For instance, if a university decides to divest from a lucrative but ethically questionable industry, how will the resulting financial impact be distributed? Will it affect the availability of scholarships for students from underrepresented backgrounds? Will it reduce funding for academic research? Or will the burdens of divestment primarily fall on more affluent stakeholders, such as alumni donors or corporate partners?

Rawls' theory suggests that universities should structure their policies in ways that **benefit the least advantaged members** of their communities.[426] This might involve ensuring that any financial losses from divestment do not disproportionately harm students from low-income families or underfunded academic programs. By prioritizing the needs of the most vulnerable, universities can make decisions that reflect a commitment to fairness and equity.

Moreover, distributive justice extends beyond the internal university community. Universities, as influential institutions in society, have a responsibility to consider how their financial and operational decisions affect global inequality. For example, investing in companies that exploit labor in developing countries or contribute to environmental degradation disproportionately harms marginalized populations. From a Rawlsian perspective, universities have a **moral obligation** to ensure that their financial activities do not exacerbate existing social and economic inequalities.

3. Fairness in Academic and Administrative Governance

In addition to financial decisions, Rawls' theory of justice has implications for how universities govern themselves. Fairness in academic and administrative policies is crucial for maintaining **institutional legitimacy** and promoting an inclusive educational environment.[427] For example, decisions about faculty hiring, student admissions, and resource allocation should be made with an eye toward **equity and fairness**.[428] The veil of

---

[426] *See id.*

[427] Rawls sees the concept of just distribution through a lens of equal outcome, at least in an ideal scenario. He notes that "perfect procedural justice" has a predetermined fair outcome and a system in place ensuring that outcome, as in the equal division of a cake among a group of people. *See* John Rawls, A THEORY OF JUSTICE 83-90 (1971) (discussing the importance of fair distribution of offices and resources in society with a focus on the necessity of equal access to opportunity).

[428] *See id.*

ignorance can serve as a guiding principle in these processes, ensuring that no group is unfairly advantaged or disadvantaged by institutional policies.

Universities must also consider fairness in their responses to **external pressures**, such as political campaigns or public controversies. When universities face demands to boycott or divest, they should apply the principles of Rawlsian justice to evaluate the fairness of their actions. This requires a careful balancing of the interests of all stakeholders, with particular attention to how decisions affect **marginalized groups** or those with less political or financial influence.[429]

4. Rawlsian Justice as a Guide for Institutional Ethics

Rawls' theory of justice provides universities with a **framework for ethical decision-making** that goes beyond mere compliance with legal standards. By applying the principles of the veil of ignorance and distributive justice, universities can ensure that their policies promote fairness, equity, and the common good. This approach encourages institutions to act as **moral leaders**, prioritizing justice in their financial, academic, and administrative decisions.

Ultimately, Rawlsian justice offers universities a way to **reconcile competing interests** and navigate complex moral dilemmas. In the context of disentanglement, this framework enables universities to evaluate the fairness of their actions, ensuring that they do not privilege the powerful at the expense of the vulnerable. By embracing Rawls' vision of justice, universities can make decisions that reflect their commitment to creating a more equitable and just society.

F. The Tension Between Autonomy and Social Responsibility

Universities are often caught in a philosophical and practical tension between **institutional autonomy** and **social responsibility**. Autonomy reflects a university's right to self-governance, ensuring that academic freedom, inquiry, and decision-making are protected from external interference.[430] On the other hand, social responsibility reflects the expectation that universities, as centers of moral and intellectual leadership, should actively engage in promoting societal good, particularly in responding to calls for ethical divestment or boycott. Balancing these competing imperatives is a core challenge for modern university governance, and it raises fundamental questions about how universities should navigate their role in addressing moral and ethical dilemmas.

---

[429] *See* note and accompanying text *supra* note 398.
[430] *See* Joseph Raz, THE MORALITY OF FREEDOM (2003).

1. Autonomy as a Core Institutional Value

Institutional autonomy is one of the cornerstones of academic freedom. Historically, universities have been granted a degree of independence from external authorities—be they government, corporate interests, or even public opinion—to foster an environment where scholarship and inquiry can thrive.[431] The value of autonomy is that it allows universities to explore **controversial ideas**, pursue **independent research**, and make governance decisions that are in the best interest of their academic mission, without being unduly influenced by external pressures.[432]

In the context of disentanglement decisions, autonomy allows universities to **retain control over their financial and ethical choices**, resisting pressures to divest or boycott if they believe such actions compromise their academic freedom or financial stability. For instance, a university might argue that maintaining investments in certain industries, even those considered ethically problematic, is necessary to sustain its long-term educational mission. The preservation of financial resources ensures that the institution can continue to offer scholarships, fund research, and uphold its broader academic goals.

Moreover, autonomy protects universities from becoming **political battlegrounds**, where external groups might seek to impose their own agendas. By maintaining autonomy, universities can safeguard their integrity and resist the politicization of their financial or governance decisions.

2. Social Responsibility as Moral Imperative

At the same time, universities have a profound **social responsibility**.[433] As institutions that shape future generations of leaders, they are expected to uphold **moral standards** and act in ways that promote justice, equality, and the common good.[434] This responsibility

---

[431] Charles W. Anderson, PRESCRIBING THE LIFE OF THE MIND 152 (1993) ("We do need to preserve, indeed to strengthen, the strange quasimedieval belief that the university is a kind of natural autonomous corporation which the state is obligated to nurture and protect but which must be permitted to define and seek its own ends.").

[432] *See id.* (explaining the importance of freedom from coercion in order for actors to maintain autonomy and freely choose their course).

[433] Henry Shue, BASIC RIGHTS: SUBSISTENCE, AFFLUENCE, AND U.S. FOREIGN POLICY 59-60 (2020) (discussing the "positive duty" to design institutions that respect the rights of individuals, clearly applicable to the institution of the university and its positive duty to act in ways that respect the rights of all people through financial, educational, and research endeavors); Some theorists argue that responsibility is itself a component of autonomy. *See* Cass R. Sunstein, *Social Norms and Social Roles* in Eric Posner, LAW AND ECONOMICS 167 (2000) ("A citizen can be understood as autonomous insofar as she is able to choose among a set of reasonably good options and to be reflective and deliberative about her choice.").

[434] *See* Jean-Paul Sartre, EXISTENTIALISM AND HUMANISM 29 (translated by Philip Mairet, 1968) (hereinafter Sartre) (contending that an agent's actions have broad social implications, "When a man commits to anything, fully

extends beyond their internal academic community to the broader society, as universities are often viewed as moral exemplars.[435] The public expects universities to take a stand on critical social issues, from environmental sustainability to human rights, particularly when these issues are tied to university investments or partnerships.

Social responsibility compels universities to engage in **ethical decision-making**, ensuring that their financial actions are aligned with their stated values and that they do not contribute to global injustices. For example, if a university continues to invest in companies that are complicit in human rights abuses or environmental harm, it risks **undermining its moral legitimacy** and losing the trust of its students, faculty, and the wider community.[436]

In this sense, social responsibility can be seen as an extension of the university's educational mission. Universities are not just centers for academic learning but are also incubators for ethical leadership. By divesting from unethical industries or boycotting companies that engage in unjust practices, universities demonstrate their commitment to **moral leadership**, setting an example for other institutions to follow.

3. Navigating the Tension: Autonomy in Service of Social Responsibility

The challenge for universities is how to reconcile these two imperatives—autonomy and social responsibility—without compromising either. One approach is to view autonomy not as an end in itself, but as a **means to fulfill the university's broader social mission**.[437] Autonomy should empower universities to make decisions based on their ethical

---

realizing that he is not only choosing what he will be but is thereby at the same time a legislator deciding for the whole of mankind–in such a moment a man cannot escape from the sense of complete and profound responsibility."); This can also be understood through considering the relative ease with which universities can shape the social norms adhered to by the up and coming generation, a pivotal means of affecting the state of society. Cass R. Sunstein, *Social Norms and Social Roles* in Eric Posner, LAW AND ECONOMICS 138-139 (2000).

[435] *See* Charles W. Anderson, PRESCRIBING THE LOGIC OF THE MIND 150-156 (1993) (exploring ways to factor public perception and opinion into university governance and decision-making, including the perspectives of the student body as well as the broader society).

[436] This mirrors the disappointment among Stanford stakeholders following the university's refusal to commit to total divestment from fossil fuels and their entrance into a public relations deal with a firm tied to the fossil fuel industry. Dharna Noor, *Stanford Disappoints Critics of Fossil Fuel Donations by Hiring PR Firm with Big Oil Ties*, THE GUARDIAN (June 17, 2024), https://www.theguardian.com/us-news/article/2024/jun/17/stanford-pr-firm-fossil-fuels.

[437] This idea finds support in Sartre's existential argument for the life of man, wherein he posits that humans are "subjective" creatures insofar as it is our obligation to determine for ourselves what our nature will be, Sartre contends that this implies individual freedom, but even more importantly an inherent connection to the broader society and responsibility to our communities. *See* Sartre *supra* note 332.

principles, free from coercive forces, while ensuring that these decisions promote justice and the common good.[438]

For example, a university might exercise its autonomy to decide whether or not to divest from a controversial industry. Rather than seeing this as a capitulation to external pressures, the university could frame its decision as an **ethical choice made on its own terms**, consistent with its values.[439] This would allow the institution to demonstrate both its independence and its commitment to social responsibility.

4. The Limits of Autonomy

However, autonomy has its limits, particularly when universities' actions (or inactions) perpetuate harm. When universities claim autonomy as a defense against calls for divestment or boycott, they risk appearing indifferent to pressing social issues. Autonomy should not be used as a **shield for inaction** when the university's financial activities contribute to global injustices or undermine its moral authority.

For instance, in cases where universities are pressured to divest from fossil fuels, claiming that autonomy allows them to continue these investments might erode public trust.[440] Students, faculty, and alumni may see this as a failure to live up to the university's ethical responsibilities. In these situations, universities need to weigh the **ethical costs** of inaction against the benefits of maintaining autonomy.

Autonomy, therefore, should be exercised **responsibly**, with an understanding that universities, as influential societal actors, have obligations beyond their academic missions.[441] Universities must ensure that their actions do not conflict with their moral and ethical obligations to society.

5. A New Framework for Ethical University Autonomy

To navigate the tension between autonomy and social responsibility, universities should adopt a framework that recognizes autonomy as a tool for promoting **ethical governance**. This framework would allow universities to maintain their independence while also acting in ways that reflect their social responsibilities.

---

[438] *See id.*
[439] *Id.*
[440] *See* source and accompanying text *supra* note 334.
[441] *See* Sartre, *supra* note 407, at 30 (contending that an agent's actions have broad social implications, "When a man commits to anything, fully realizing that he is not only choosing what he will be but is thereby at the same time a legislator deciding for the whole of mankind–in such a moment a man cannot escape from the sense of complete and profound responsibility.")

Such a framework could involve **transparent decision-making processes**, where universities openly discuss the ethical implications of their investments or partnerships.[442] By engaging students, faculty, and other stakeholders in these decisions, universities can ensure that their actions are both autonomous and morally sound.[443] This approach would allow universities to retain control over their financial decisions while also fulfilling their role as ethical leaders.

Furthermore, universities should establish **guiding principles** for when and how to engage in divestment or boycott actions. These principles could be based on the university's commitment to **justice, sustainability, and human rights**, ensuring that decisions are consistent with its values. By having clear, articulated standards, universities can exercise their autonomy in ways that enhance their moral authority rather than diminish it.

G. Moral Legitimacy and Public Accountability

As institutions of higher learning, universities are often held to **exceptionally high moral standards**. Society expects universities to serve not only as centers of education and research, but also as **moral exemplars** that reflect and promote the values of justice, equality, and ethical leadership. This expectation gives rise to the concept of **moral legitimacy**—the idea that universities must operate in ways that are ethically sound and publicly defensible, thereby maintaining the trust and confidence of the broader community.[444]

In the context of university disentanglement decisions—whether related to divestment from industries such as fossil fuels or withdrawal from partnerships with unethical corporations—**moral legitimacy** plays a critical role. Universities' actions in these areas are scrutinized by their stakeholders, including students, faculty, alumni, and the public.

---

[442] *See* Charles W. Anderson, PRESCRIBING THE LOGIC OF THE MIND 150-156 (1993) (exploring ways to factor public perception and opinion into university governance and decision-making, including the perspectives of the student body as well as the broader society); Stanford attempted to implement a transparent decision-making process via formation of a committee to analyze their fossil fuel investments and recommend the proper course of action going forward. Institutional News, Stanford Report, Stanford Committee Report Calls for 'Better Guardrails' But Not a Blanket Ban on Fossil Fuel Industry Research Funding (Jun 27, 2024), https://news.stanford.edu/stories/2024/06/fossil-fuel-funding-committee-report.

[443] *Id.*

[444] For a discussion of the concept of the conduct and choices of individual actors as it relates to their moral standing see G.A. Cohen, *If You're an Egalitarian, How Come You're So Rich?*, 4 J. ETHICS 1 (2000) (considering the obligation of rich individuals who claim to be pro-equality and opposed to the wealth gap to contribute personally and directly to the resolution of the problem through donating vast amounts of wealth). In some sense, the university occupies an interesting role, as they have no defense for inaction. While some would argue that individuals have no obligation to contribute vast sums of their personal wealth, absent institutional frameworks that ensure others will do likewise thereby alleviating the problem of wealth disparity, universities may not be able to avail themselves of this defense because they *are* institutions constructing frameworks. *See id.*

Decisions that align with societal values of justice and equity bolster the university's moral legitimacy, while those that are perceived as ethically inconsistent or indifferent to injustice can seriously undermine it.[445]

1. The Importance of Public Accountability

Moral legitimacy is closely tied to **public accountability**. Universities are not isolated institutions; they are embedded within local, national, and global communities. As such, they must be accountable to the public for their actions, particularly when those actions have broader social implications.[446] Public accountability demands that universities act transparently, explaining the ethical reasoning behind their decisions and ensuring that these decisions reflect their role as moral leaders.[447]

In recent years, students, faculty, and activists have increasingly called for universities to be more **socially responsible** in their financial and operational decisions.[448] Movements advocating for fossil fuel divestment, fair labor practices, and human rights have placed pressure on universities to reassess their investments and partnerships.[449] The rise of social media and the 24-hour news cycle has intensified this pressure, as universities' actions are now subject to real-time public scrutiny. In this climate, universities can no longer make decisions behind closed doors without risking damage to their reputation and moral authority.

Universities, therefore, must embrace **public accountability** by engaging with their communities in meaningful ways. This could involve holding **public forums**, where students and faculty can express their views on university investments, or establishing **advisory committees** to guide ethical decision-making.[450] By fostering open dialogue and involving stakeholders in the decision-making process, universities can build trust and demonstrate their commitment to acting with moral integrity.

---

[445] Consider, for instance, the discussion by G.A. Cohen, *supra* note 417, at 1-2 (noting the perceived inconsistency and apparent hypocrisy of the wealthy egalitarian).
[446] *See* Arthur L. Stinchcombe, THE LOGIC OF SOCIAL RESEARCH 211 (2005) (discussing the importance of knowledgeable group members in order to promote "bargains" within society, directly applicable to the need for universities to maintain transparency with students and other community members in order to maintain the bargain of mutual respect and support).
[447] *Id.*
[448] *See* discussion *supra* Part III.
[449] *Id.*
[450] *See* Charles W. Anderson, PRESCRIBING THE LOGIC OF THE MIND 150-156 (1993) (exploring ways to factor public perception and opinion into university governance and decision-making, including the perspectives of the student body as well as the broader society

2. Moral Leadership in a Global Context

Universities' role as moral leaders extends beyond their immediate communities. As influential institutions with significant financial and intellectual capital, universities have the power to shape **global norms** around justice, human rights, and sustainability.[451] By divesting from industries that contribute to environmental degradation or human rights abuses, universities can send a powerful message to the world that they stand on the side of **justice** and **moral integrity**.[452]

For example, the global movement to divest from apartheid-era South Africa, spearheaded by university students and faculty, played a critical role in raising awareness about the moral failings of the regime and contributed to the eventual dismantling of apartheid.[453] Similarly, today's movements calling for divestment from fossil fuels or boycotts of companies that exploit labor in developing countries reflect universities' capacity to influence **global ethical standards**.

By embracing this role, universities can leverage their moral authority to **lead societal change**, pushing for reforms that promote sustainability, equity, and justice. This moral leadership is not just about protecting the university's reputation; it is about fulfilling the institution's ethical responsibility to contribute to a more just and equitable world.

3. The Risks of Failing Public Expectations

While moral legitimacy and public accountability are powerful tools for enhancing a university's reputation, the **failure to meet public expectations** can have serious consequences. When universities are perceived as acting in ways that contradict their stated values—such as by investing in industries that harm the environment or perpetuate human rights violations—they risk **losing the trust** of their communities.

This erosion of trust can lead to student protests, faculty resignations, and negative media attention, all of which can damage the university's reputation and financial standing.[454] Moreover, universities that fail to act in accordance with their ethical responsibilities may find it harder to attract talented students and faculty, as well as funding from ethically minded donors and organizations.

---

[451] *See* Cass R. Sunstein, *Social Norms and Social Roles* in Eric A. Posner LAW AND ECONOMICS 142, 145 (2000) (discussing the positive effect of changing social norms and the impact of agents going against the grain to challenge current norms and effect new ones).
[452] *See Id.*
[453] *See* discussion *supra* Part III.D.
[454] *See* discussion *supra* Part III (discussing myriad historical cases of campus protests all induced by stakeholder discontent with the decisions of universities to hypocritically align with companies, groups, and organizations perceived to go against the universities' stated values).

In short, universities that fail to live up to their **moral obligations** risk losing their moral legitimacy and the public's confidence. To avoid this, universities must continually assess their actions through the lens of ethical responsibility, ensuring that their decisions are consistent with the values of justice, equity, and public accountability.

4. A Framework for Building Moral Legitimacy

To maintain and strengthen their moral legitimacy, universities should adopt a framework for decision-making that prioritizes **ethical transparency** and **public accountability**. This framework could include the following elements:

1. **Ethical Guidelines**: Establish clear ethical guidelines that govern university investments, partnerships, and operations. These guidelines should be based on the institution's core values and aligned with broader societal standards of justice and equity.
2. **Stakeholder Engagement**: Create formal mechanisms for engaging students, faculty, and other stakeholders in the decision-making process. This could include public forums, advisory committees, and open discussions about the ethical implications of university actions.
3. **Transparency**: Ensure that university governance is transparent, particularly in areas where moral and ethical decisions are involved. Universities should provide clear, accessible information about their investments and partnerships, as well as the reasoning behind their ethical decisions.
4. **Public Reporting**: Commit to regular public reporting on the university's ethical decision-making, including progress on divestment or boycott initiatives. This reporting should include measurable outcomes and demonstrate the university's commitment to its ethical responsibilities.
5. **Ethical Leadership**: Finally, universities must embrace their role as moral leaders, using their influence to advocate for social justice, human rights, and environmental sustainability. By leading by example, universities can inspire other institutions to follow suit and contribute to a more just and equitable world.

H. Summary of Moral Philosophy of Disentanglement

In examining university disentanglement decisions through the lenses of **utilitarianism**, **deontological ethics**, **virtue ethics**, **Rawlsian justice**, and the tension between **autonomy and social responsibility**, it becomes clear that universities play a profound role as moral agents within society. Each of these philosophical frameworks provides

unique insights into how universities should navigate the complex ethical terrain of divestment, boycotts, and broader governance decisions.

Utilitarianism emphasizes the **maximization of societal welfare**, asking universities to consider the consequences of their actions and strive for the greatest good.[455] Deontological ethics, on the other hand, insists that universities must adhere to **moral principles** regardless of the outcomes, reflecting their commitment to justice and integrity.[456] Virtue ethics highlights the importance of cultivating an institution's **moral character**, ensuring that actions reflect virtues like courage, integrity, and wisdom.[457] Rawlsian justice offers a framework for ensuring that university decisions are grounded in **fairness and equity**, particularly when viewed through the veil of ignorance.[458] Finally, the tension between autonomy and social responsibility challenges universities to balance their **independence** with their **moral obligations** to society, ensuring that their actions promote the common good.[459]

By integrating these philosophical approaches, universities can create a comprehensive ethical framework that informs their governance and decision-making processes. Disentanglement decisions, far from being merely financial or operational, are opportunities for universities to demonstrate their **moral leadership** and **public accountability**. Acting in accordance with these principles strengthens the university's moral legitimacy and ensures that it fulfills its role as a **beacon of ethical integrity** in an increasingly complex and interconnected world.

VI. Conclusion

The evolving landscape of higher education demands that universities confront moral and ethical challenges with a level of sophistication and foresight that extends far beyond the crisis of the moment. As illuminated in Part I, the pressures on universities to respond to social and political conflicts are not new; they echo through the past century, manifesting as a recurring struggle to reconcile institutional autonomy with the demands of justice and public accountability. By tracing these dilemmas across time, this paper reveals the persistent and profound challenge of university disentanglement, establishing the need for a theory of the university.

Part II laid the foundation for a central element of such a theory by presenting ethical principles and decision-making models that serve as more than theoretical constructs: the

[455] *See* discussion *supra* Part V.B.
[456] *See* discussion *supra* Part V.C.
[457] *See* discussion *supra* Part V.D.
[458] *See* discussion *supra* Part V.E.
[459] *See* discussion *supra* Part V.F.

matrix of university disentanglement is a tool for evaluating the moral and ethical dimensions of university governance. The matrix offer a structured way to think about how institutions can navigate demands for action in a manner that is both principled and practical. Yet, as Part III demonstrated, merely adopting a moral frame is not enough. Through the examination of historical examples, this paper shows that the choice of ethical approach is decisive—certain frameworks consistently lead to more favorable outcomes, while others can exacerbate harm and controversy. It is not simply the presence of ethical reasoning that matters, but its quality, depth, and alignment with the institution's values.

Part IV provided empirical evidence to support this argument, with case studies that laid bare the real-world consequences of inconsistent or opportunistic ethical applications. Institutions like Harvard and Columbia, which wavered in their moral commitments, encountered reputational, financial, and legal turmoil. By contrast, the University of Chicago's unwavering adherence to the Chicago Principles allowed it to navigate controversy with a resilience that others lacked, reaping not only stability but also substantial financial support. These case studies reveal the immense stakes involved in ethical decision-making, underscoring that the selection and consistent application of the right ethical framework can determine an institution's ability to withstand and even thrive amidst moral crises.

The normative frameworks introduced in Part V offer more than a synthesis of prior insights from philosophy; this Part offers a pathway to a transformative approach to university governance. It provides a structured model for assessing the ethical and practical dimensions of various strategies, guiding institutions toward decisions that are not only defensible but aspirational. Integrating the matrix offers a blueprint for navigating future challenges with a level of integrity and purpose that transcends reactive governance, positioning universities as true moral leaders in society. It does so by urging institutions to ground their decision-making in well-chosen, consistently applied ethical principles—principles that reflect the enduring mission of higher education.

Thus, this Article does not merely critique the current state of university governance as an under-theorized application of corporate governance. It sets forth a vision for a fully fledged theory of university governance that reflects the unique role these institutions play in society. The argument advanced here is not bound by the particulars of any single crisis; rather, it speaks to the timeless responsibility of universities to lead with moral clarity and to fulfill their complex roles as both academic institutions (with triple missions in teaching, research, and social progress), moral actors, and financial stewards. By adopting and consistently applying the right ethical and moral frameworks, universities can achieve a

form of governance that not only addresses immediate challenges but also positively shapes the social landscape for generations to come.

The insights offered in this paper aim to redefine the very nature of principled governance in higher education by inviting a new conversation about university governance per se. The next challenge is for university leadership and academics to think beyond mere compliance with ethical standards or application on existing governance models, so university may embody the values they profess. In doing so, this work provides not just a model for navigating crises, but a foundation for a theory of the university that can elevate the mission of higher education to new heights.[460]

* * *

[460] In drafting this Article, I utilized AI tools, including ChatGPT, Perplexity.AI, LexisAI, and NotebookLM to critique my argument and thesis. I also employed AI tools to assist with locating and eliminating redundancies and improving sentences for clarity and grammatical accuracy. I consulted with Dr. Julie Simpson, Director of Research Integrity Services at the University of New Hampshire, on the ethical considerations of using AI in legal scholarship. Dr. Simpson provided guidance and shared resources, including relevant publications and the UNH Responsible Conduct of Research & Scholarly Activity Library Guide. I thank Dr. Simpson for her insights, which helped inform my responsible use of AI tools. All substantive legal analysis, arguments, and final revisions were conducted by me—Seth C. Oranburg—to ensure accuracy and scholarly rigor. Any errors or omissions remain my own.